

SOLICITATION, OFFER, AND AWARD

1. This Contract is a Rated Order under the Defense Priorities and Allocations System (DPAS) - Code of Federal Regulations - at 15 CFR 700.

RATING

PAGE OF PAGES

2. CONTRACT NUMBER	3. SOLICITATION NUMBER	4. TYPE OF SOLICITATION ☐ SEALED BID (IFB) INVITATION FOR BID ☐ NEGOTIATED (RFP) REQUEST FOR PROPOSAL	5. DATE ISSUED	6. REQUISITION/PURCHASE NUMBER
7. ISSUED BY	CODE	8. ADDRESS OFFER TO (If other than item 7)		

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder".**SOLICITATION**

9. Sealed offers in original and _____ copies for furnishings the supplies or services in the Schedule will be received at the place specified in item 8, or if hand carried, in the depository located in _____ until _____ local time _____
(Hour) (Date)

CAUTION - LATE Submissions, Modifications, and Withdrawals: See Section L, Provision Number 52.214-7 or 52.215-1. All offers are subject to all terms and conditions contained in this solicitation.

10. FOR INFORMATION CALL:	A. NAME	B. TELEPHONE (NO COLLECT CALLS)		C. EMAIL ADDRESS
		AREA CODE	NUMBER	EXTENSION

11. TABLE OF CONTENTS

(X)	SECTION	DESCRIPTION	PAGE(S)	(X)	SECTION	DESCRIPTION	PAGE(S)
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	B	SUPPLIES OR SERVICES AND PRICES/COSTS				PART III - LIST OF DOCUMENTS, EXHIBITS AND OTHER ATTACHMENTS	
	C	DESCRIPTION/SPECIFICATIONS/WORK STATEMENT			J	LIST OF ATTACHMENTS	
	D	PACKAGING AND MARKING				PART IV - REPRESENTATIONS AND INSTRUCTIONS	
	E	INSPECTION AND ACCEPTANCE			K	REPRESENTATIONS, CERTIFICATIONS AND OTHER STATEMENTS OF OFFERORS	
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OFFER (Must be fully completed by offeror)

NOTE: Item 12 does not apply if the solicitation includes the provisions at 52.214-16, Minimum Bid Acceptance Period.

12. In compliance with the above, the undersigned agrees, if this offer is accepted within _____ calendar days (60 calendar days unless a different period is inserted by the offeror) from the date for receipt of offers specified above, to furnish any or all items upon which prices are offered at the set opposite each item, delivered at the designated point(s), within the time specified in the schedule.

13. DISCOUNT FOR PROMPT PAYMENT (See Section I, Clause Number 52.232-8)	10 CALENDAR DAYS (%)	20 CALENDAR DAYS (%)	30 CALENDAR DAYS (%)	CALENDAR DAYS (%)
14. ACKNOWLEDGMENT OF AMENDMENTS (The offeror acknowledges receipt of amendments to the SOLICITATION for offerors and related documents numbered and dated):	AMENDMENT NUMBER	DATE	AMENDMENT NUMBER	DATE
15A. NAME AND ADDRESS OF OFFEROR	CODE	FACILITY	16. NAME AND THE TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or print)	
15B. TELEPHONE NUMBER	15C. CHECK IF REMITTANCE ADDRESS IS DIFFERENT FROM ABOVE - ENTER SUCH ADDRESS IN SCHEDULE.		17. SIGNATURE	18. OFFER DATE
AREA CODE	NUMBER	EXTENSION		

AWARD (To be completed by Government)

19. ACCEPTED AS TO ITEMS NUMBERED	20. AMOUNT	21. ACCOUNTING AND APPROPRIATION
22. AUTHORITY FOR USING OTHER THAN FULL OPEN COMPETITION UNDER THE UNITED STATES CODE AT: ☐ 10 U.S.C. 3204(a) ☐ 41 U.S.C. 3304(a) ()	23. SUBMIT INVOICES TO ADDRESS SHOWN IN (4 copies unless otherwise specified)	ITEM
24. ADMINISTERED BY (If other than Item 7)	25. PAYMENT WILL BE MADE BY	CODE
26. NAME OF CONTRACTING OFFICER (Type or print)	27. UNITED STATES OF AMERICA (Signature of Contracting Officer)	28. AWARD DATE

IMPORTANT - Award will be made on this Form, or on Standard Form 26, or by other authorized official written notice.

AUTHORIZED FOR LOCAL REPRODUCTION
Previous edition is unusable

STANDARD FORM 33 (REV. 12/2022)
Prescribed by GSA - FAR (48 CFR) 53.214 (c)

Section A - Solicitation/Contract Form

Mobility MAC Follow-On

Section B - Supplies or Services & Prices or Costs

Additional Information/Notes

Allowed Per Order

Minimum: 1,000.00 Dollars, U.S.
Maximum: 25,000,000.00 Dollars, U.S.

Government Minimum/Maximum to Order

Minimum: 1,000.00 Dollars, U.S.
Maximum: 25,000,000.00 Dollars, U.S.

Item	Supplies/Service	Estimated Quantity	Unit	Unit Price	Amount
0001	Technology Area 1 Powertrain Performance Prototyping In accordance with the Statement of Work Pricing Arrangement: Firm Fixed Price	1	Lot		
0002	Technology Area 2 Advanced Chassis, Body, and Mobility Handling Prototyping In accordance with the Statement of Work Pricing Arrangement: Firm Fixed Price	1	Lot		
0003	Technology Area 3 Mobility Testing Services In accordance with the Statement of Work Pricing Arrangement: Firm Fixed Price	1	Lot		
0004	Technology Area 4 General Prototype Fabrication and Integration In accordance with the Statement of Work Pricing Arrangement: Firm Fixed Price	1	Lot		
0005	Data Technical Data Requirements for CLIN(s) 0001 through 0004 in accordance with the Statement of Work Section 5.0, CDRL(s) A001 through A018 provided in Section J, and applicable DID(s). This CLIN is Not Separately Priced (NSP). Pricing Arrangement: Firm Fixed Price				
0006	FFP Minimum Guarantee \$1,000 Pricing Arrangement: Firm Fixed Price	1	Lot		

Section C - Description/Specifications/Statement of Work

STATEMENT OF WORK

1.0 SCOPE

This Statement of Work (SOW) defines the effort required for the design, development, engineering, fabrication, and test of prototype components and systems for Department of War (DoW) vehicles and mobility platforms such as: Ground Mobility Vehicle, Mine Resistant Ambush Protected, Lightweight Tactical All-Terrain Vehicle, Joint Light Tactical Vehicle, Non-Standard Commercial Vehicle, trailers, auxiliary power systems, autonomous operation and testing, and any system that contributes to operational safety, logistics, maintenance, lethality, mobility, reliability, durability, availability, overall mobility range, suitability and effectiveness of the warfighter. The scope of this effort shall include concept, Preliminary and Critical Design Reviews and detailed design prototyping for form, fit, and function verification, and validation of determined requirements and performance parameters defined by each individual Delivery Order (DO) issued under this contract. Each DO will require the delivery of a final prototype and/or test report to meet the Statement of Objectives (SOO) requirements. Individual DO requirement scope will range from integration prototypes, Engineering Development Models (EDM), and Low-Rate Initial Production (LRIP). System prototypes, EDMs, and LRIPs shall be designed, developed, engineered, fabricated, and tested for compliance with the individual DO SOO requirements. It is not expected that all DOs will require the end-to-end development described in the contract level SOW due to variations in product maturity and required timelines for development at the DO level. Section 3.0 of this SOW describes the technical requirements that may be required to complete for each individual DO. Not every technical task listed under paragraph 3.0 will be required for completion of each DO, but a combination of these tasks will be required to be performed to ensure individual DO requirements are met. Each individual DO shall provide technical requirements and Key Performance Parameters (KPPs) of the prototype to be developed along with development schedule, test requirements/plans, and Contract Data Requirements List (CDRL) Deliverables. DOs where end items are intended for combat evaluations or quick reaction capability may have abbreviated testing and schedule requirements.

For all DOs, final product acceptance and final service report evaluation will be conducted by the Government Requiring Technical Activity (RTA). Paragraph 1.2 describes the Technology Areas for the types of DOs awarded in this contract. The Technology Areas are all Mobility focused tasking but are separated to align specific technical categories of tasking to facilitate bringing industry expertise to complete each DO. This is a Multi-Award Contract where interested vendors shall propose on any or all Technology Areas by providing historical documentation and current capabilities for each individual Technology Area proposed against for evaluation by NSWC Mobility Systems Engineering Branch Technical Evaluation team for contract award. Interested Vendor proposals shall determine award in any or all Technology Areas. Individual DO SOO shall be sent to specific Technology Area awardees for proposal. Technology Area vendors shall submit a SOW that includes technical plan, tasks, cost, and schedule to accomplish the requirements of the DO SOO. DO proposals shall be evaluated by DO Technical Evaluation Team and NSWC Contracting for award.

1.1 BACKGROUND

Being at the forefront of the combat forces engaged in our current war efforts requires the constant research and implementation of latest technologies into the mobility platforms to increase operational safety, lethality, maintainability, mobility, reliability, durability and availability. To continually adapt to evolving warfare landscapes and mission scenarios, various DoW agencies require a contract mechanism which provides the capability to design, acquire and test prototype vehicle components, enabling the ability to provide the best material solutions for new and legacy ground mobility vehicles.

In conjunction with the requirement to prototype vehicle components is the requirement for the ability to conduct studies forming a basis for an analysis of alternatives to assist in programmatic decisions. Technical Studies required under contract can include transportability testing of in-process design components and systems with defined mission profiles and test track requirements.

NSWC Crane, Mobility Systems Engineering Branch (MXPQ) provides project oversight, engineering, and logistics for mobility platforms across the life cycle, from conceptual design development to engineering field support. MXPQ Subject Matter Experts shall utilize this 5-year multi-award contract to effectively reach industry leaders in mobility engineering and integration and successfully develop prototype solutions to advance the current mobility performance and develop new vehicle technology areas. Prototypes developed under DO shall be considered for Limited Rate Production Quantities for Engineering Development Models, Training Assets, and Test Assets. The need for this contract is to create a prototyping development mechanism to advance mobility technology with industry partners to facilitate an efficient transition of conceptual ideas to integrated production at systems and sub-system levels.

1.2 TECHNOLOGY AREA DESCRIPTIONS

MXPQ supports the engineering and development of mobility platforms from Engineering Concepts derived from Customer Needs to New Equipment Training of Developed and Tested Mobility Systems into the hands of the warfighter operators. The Mobility Prototyping Contract will focus on the initial development, testing, and user evaluations during the Systems Life Cycle of vehicles and mobility components.

The efforts under this contract shall be separated into four Technology Areas in order to gain industry subject matter experts specific to each technology area. The Technology Areas are:

- 1) Powertrain Performance Prototyping
- 2) Advanced Chassis, Body and Mobility Handling Prototyping
- 3) Mobility Testing Services
- 4) General Prototype Fabrication and Integration.

Paragraph 2.0, Applicable Documents, and 3.0 Required Capabilities apply to all Technology Areas. Prospective Contractors shall be able to provide proposals to develop prototypes within these areas with NSWC Crane MXPQ Requiring Technical Activities providing determination if prospective Contractor capabilities align within the technology areas. DO objectives may require the development of a prototype system or LRIP that has characteristics affecting multiple technology areas of a mobility system and requiring a contractor to develop systems with mobility characteristics that cross technology areas. The preponderance of work by technology area for each individual DO will be determined by NSWC Crane technical and contracting team to determine in which technology area the DO shall be released to the technical area contractors.

1.2.1 Technology Area 1, Powertrain Performance Prototyping

Powertrain Performance Prototyping shall focus on developing improvements directly related to the vehicle's powertrain & drivetrain performance including but not limited to the engine, transmission, axles, electrical motors, and on-board electrical and power systems. The intent of this effort will be to improve the mobility capabilities of a vehicular system by improving existing Original Equipment Manufacturer components or by developing new components or complete systems.

This technology area includes the development of the following:

- 1) Performance tuning kits
- 2) Energy capacity storage and distribution devices
- 3) Horsepower, torque, auxiliary power generation, shift points, fuel economy, and tractive capability improvements.
- 4) Gas and diesel engine integration
- 5) Electrical motor drive and hybrid electric drive power plants
- 6) Auxiliary power generators
- 7) Power transmission gearboxes and transfer cases
- 8) Power transfer efficiency
- 9) Acoustic and thermal management
- 10) Data Logging, data transmission, and diagnostic tools and equipment, and on-board maintenance systems to reduce the maintenance time of a vehicle and increase Operational Availability (Ao).

Powertrain prototype design analysis shall include prototyping efforts requiring mechanical, electrical, and automotive engineering for the mobility system's propulsion and power systems from system requirements and KPPs designated by each individual DO SOO. Powertrain design and analysis CDRLs shall include 3D models, Technical Data Package (TDP), Computer Aided Engineering (CAE), Electrical Power Schematics, Operational Simulations, reports and technical studies. Integration of the Prototype onto a vehicle platform may be required for testing specified by the DO. Physical verification and system operation on Government-Furnished Material (GFM)/Government-Furnished Equipment (GFE) shall be specified by DO. Powertrain Prototype design and analysis shall improve the mobility capabilities of the vehicular system by improving existing and creating new component and system level integration pieces. Advanced Engineering Design, Analysis, and Simulation Capabilities related to a vehicle's powertrain and power generation with an understanding of industry and Government automotive specifications, and testing shall be required to complete CDRL requirements within this Technology Area. Each individual DO will define system Interoperability and Interface parameters along with required analysis and testing. All DOs with a focus on a vehicle's powertrain, power generation, and propulsion shall be included within this technology area. Prototypes shall have the ability to transition to LRIP.

1.2.2 Technology Area 2, Advanced Chassis, Body, and Mobility Handling Prototyping

Advanced Chassis Body and Mobility Handling Prototyping will focus on the areas of chassis, frame, sub frame, suspension and steering, body panels, survivability, and overall payload improvements. Suspension, steering mobility improvements shall focus on designing new prototypes and modifying existing vehicle suspension systems to improve the steering & handling and payload capacities of the mobility platform. Current vehicle suspensions include leaf spring, coil spring, four link suspensions, air ride, and all areas of a vehicle suspension and mobility for varying terrain including on-road and off-road profiles as prescribed in each vehicle's Mission Terrain Profile.

Dynamic analysis simulation and off-road course testing requirements will be defined within each DO. Each individual DO will define system Interoperability and Interface parameters along with required analysis and testing required within this technology area. Areas of improvements under this area can be:

1. Ride quality
2. Increase payload capability
3. Increase ground clearance
4. Improve turning radius
5. Improved mobility on grades and slopes
6. Roll over protection systems
7. Advanced chassis development
8. Analysis of weight and center of gravity parameters to improve mobility
9. Development of electrical circuits, and system design of communication and lighting components to improve line of sight, and situational awareness of the operators of the vehicles
10. Vertical Acceleration

Engineering on a mobility platforms frame, chassis, and body shall require utilizing Computer Aided Design (CAD) 3D models to develop mechanical and electrical interfaces. Design and analysis CDRLs shall include 3D models, TDP, CAE, Electrical Schematics, Durability Simulations, and reports and technical studies. Integration of the Prototype onto a vehicle platform may be required for testing specified by the DO. Advanced Prototype Design and Analysis shall improve the mobility capabilities of a vehicular system by improving existing and creating new component and system level integration pieces. Prototypes developed within this technology area shall include mechanical and electrical systems to contain, integrate, and distribute fuel, water, mission related gear, and survivability armor components. Advanced Engineering Design, Analysis, and Simulation Capabilities relating to a vehicles suspension, steering, and frame with an understanding of industry and Government automotive specifications and testing shall be required to complete CDRL requirements within this Technology Area.

Physical verification and system operation on GFM/GFE shall be specified by DO. Vehicle interface of weapon and sensor components shall be included within this technology area. Individual DOs shall state Interoperability and Interface objectives, along with required analysis and testing of prototypes that shall be completed within this technology area. Development of prototypes shall utilize advanced materials and innovative designs to create more agile and robust vehicles and vehicle equipment. Prototypes shall have the ability to transition to LRIP.

1.2.3 Technology Area 3, Mobility Testing Services

Mobility Testing Services shall focus on the system level testing of complete vehicles, vehicle payload, autonomous testing, and equipment of existing equipment and new developmental prototypes. As determined by individual DO, the contractor may be required to take delivery of GFM/GFE and system performance specifications to develop and execute test plans and strategies including but not limited to complete system level testing, environmental testing, vehicle and component durability, tie-down load pull testing, armor survivability testing, and overall vehicle mobility testing. Testing to Test Operation Procedures, Federal Motor Vehicle Safety Standards and Society of Automotive Engineers (SAE) as well as other US and NATO testing standards may be required.

Typical testing can include on course/track testing, off-road mobility testing, environmental chamber, and dynamometer testing of vehicle mobility components and overall system performance capabilities of the vehicles. Testing parameters will include mission profiles, coarse terrain characteristics, and vehicle components to be tested. Deliverables shall include developing a test report showing requirement verification and performance requirement conformance. Each individual DO will define system interoperability and interface parameters along with required analysis and testing CDRLs.

Mobility Testing Services may include providing on-site assessment of a mobility platform at the contractor's testing facilities or locations determined by the Government where demonstration of the mobility platform's performance can be analyzed and changes in components recommended. Contractors may provide recommendations to Government test and engineering representatives and Government contractors developing prototypes and improvements on a mobility platform to provide test evaluation, field engineering, and platform training in accordance with MIL-PRF-29612B NOT 3 on performance equipment integrated into the mobility platform system. The degree and scope of these services shall be defined within each DO with reports, studies, and techniques for integration defined in the SOO.

1.2.4 Technology Area 4, General Prototype Fabrication and Integration

General Prototype Fabrication and Integration shall focus on developing physical components and assemblies from fabricated, Commercial off-the-Shelf (COTS), modified COTS, and GFM/GFE components as well as integrating these items into a deliverable vehicle or assembly prototype. This technology area shall utilize, and leverage already developed designs in the form of existing components and assemblies, conceptual models, TDPs, and engineering sketches to develop physical prototypes to refine manufacturability and design finalization for verification of fit, form, and function. The DOs shall specify what vehicle or mobility platform system the prototypes shall be integrated into for system verification and if GFM or GFE will be provided. Prototypes developed within this technology area shall require machining, fabrication, and automotive electrical assembly from engineering conceptual designs and drawings. CDRLS under this technology area shall include manufacturability verification modification documentation, physical prototypes, and integration reports. The intent of this technology area is to transition a developed design into a physical prototype while refining manufacturability characteristics of the prototype, TDP validation and aid in the transition to LRIP.

1.3 REPRESENTATIVE CUSTOMERS

The following list depicts the representative customers for the projects and programs: USSOCOM HQ, TSOCs, and Service Special Operations Components, Technical Support Working Group, US Navy, US Marine Corps, US Army, US Air Force, OSD, and COCOMS (CENTCOM, PACOM, AFRICOM, SOUTHCOM, EUCOM), and Other Government Agencies.

2.0 APPLICABLE DOCUMENTS

The following documents, specifications, standards, and handbooks form a part of this SOW to the extent cited herein. Unless otherwise specified, the issue of Government documents that are listed in the current issue of the Department of Defense Index of Specifications and Standards on the issue date of the solicitation associated with this SOW. Non-Government standards listed are those in effect on the issue date of the solicitation associated with this SOW. This is a partial list, and other documents, specifications, standards, and handbooks may be required for any effort within this SOW. It is the contractor's responsibility to know what standards are applicable to the requested DO effort.

2.1 Military Specifications, Standards and Handbooks

MIL-STD-31000B	Detail Specification, Technical Data Packages, 31 OCT 2018
MIL-HDBK-470A Notice 2	Design and Develop Maintainable Products and Systems, 31 May 2012
MIL-HDBK-781A	Reliability Test Methods, Plans, and Environments for Engineering Development, Qualification, and Production, 30 Jan 2015
MIL-HDBK-1785 NOT 2	System Security Program Management requirements, 11 Feb 2019
MIL-STD-881D	Work Breakdown Structures for Defense Materiel Items, 09 Apr 2018
MIL-STD-129R	DoD Standard for Military Marking for Shipment and Storage, 24 May 2018
MIL-STD-130 NOT 1	DoD Standard Practice for Identification Marking of U.S. Military Property, 26 Aug 2019
MIL-STD-461G	Requirements for the Control of Electromagnetic Interference Emissions & Susceptibility, including notices, 11 Dec 2015
MIL-STD-882E	DoD Standard Practice for System Safety, 11 May 2012
MIL-PRF-29612B NOT 3	Training Data Products 31 Mar 2016
MIL-STD-464C	Electromagnetic Environmental Effects Requirements for Systems 01 Dec 2010
MIL-STD-1472G, CH 1	Human Engineering, 17 Jan 2019
MIL-STD-2073-1E	DoD Standard Practice for Military Packaging, change notice, 22 Apr 2019
MIL-HDBK-61B	Configuration Management Guidance, 07 Apr 2020
MIL-STD-810	Environmental Engineering Considerations and Laboratory Tests, 31 Jan 2019
MIL-STD-1366	Interface Standard for Transportability Criteria, 31 Oct 2006
MIL-STD-209	Interface Standard for Lifting and Tiedown Provisions, 22 Feb 2005
MIL-DTL-46100	Armor Plate, Steel, Wrought, High-Hardness, 19 Jul 2019Interface Standard for Transportability Criteria, 31 Oct 2006
MIL-DTL-32332	Armor Plate, Steel, Wrought, Ultra-High-Hardness, 19 Jul 2019Interface Standard for Lifting and Tiedown Provisions, 22 Feb 2005

MIL-DTL-12560	Armor Plate, Steel, Wrought, Homogeneous, 9 Jul 2019
STANAG 4569 / AEP-55	Protection Levels for Occupants of Armored Vehicles, 23 May 2014
ATPD-2352	Automotive Tank Purchase Description, Transparent Armor
MIL-PRF-46103E NOT 1	Armor: Lightweight, Composite, 20 Apr 2017
MIL-STD-3038	Test Methods for Ballistic Defeat Materials, 18 May 2011

2.2 Joint Chiefs of Staff, Department of Defense and DoD Services Documents

DoDM 4120.24 CH 2	Defense Standardization Program (DSP) Procedures, 15 October 2018
DoDI 4161.02 CH 2	Accountability and Management of Government Contract Property, dated 31 Aug 2018
DoDI 5000.64 CH 3	Accountability and Management of DoD Equipment and Other Accountable Property, 10 Jun 2019
DoDI 5200.39, CH 3	Mandatory Procedures for Research & Technology Protection with the DoD, 10 Jan 2020
DoD MCTL	Military Critical Technologies List
DoDI 5000.02	Operation of the Adaptive Acquisition Framework, 08 Jun 2022
DoDM 4140.01, Vol 6	DoD Supply Chain Material Management Procedures: Material Returns, Retention and Disposition
Directive-Type Memorandum (DTM) 08-027	Security of Unclassified DoD Information on Non-DoD Information Systems, 16 Sep 2010
OPNAVINST 4440.26C CH-1	Accountability and Management of Operating Materials And Supplies And Government Furnished Property
SECNAVINST 5200.43A	Government Furnished Property, Accountability and Management
NAVSEAINST 5200.15	General Equipment Accountability and Management

2.3 Non-Government and Commercial Standards, Specifications and Other Applicable Publications

AR 700-15	Packaging Of Materiel, 12 Jan 2004
ASME Y14.24M	Types and Applications of Engineering Drawings, 2012

IEEE 1220-2005	IEEE Standard for Application and Management of the Systems Engineering Process, 09 Sept 2005
IEEE/EIA 12207-2008	IEEE Systems and Software Engineering - Software Life Cycle Processes
GEIA-STD-0007	Logistics Product Data
ISO/IEC-15288	Systems Engineering- System Life Cycle Processes, 01 Nov 2002
ISO 9000 & 9001	Quality Management Systems, 01 Dec 2000
ISO 10007	Quality Management - Guidelines for Configuration Management
NAS 411	National Aerospace Standard (NAS) 411, Hazardous Materials Management Program
29 CFR 1910	OSHA standard for General Industry
SAE AS5553C	Counterfeit Electronic Parts; Avoidance, Detection, Mitigation, & Disposition

The Contractor shall use the revision effective as of the date of contract award for each of the documents listed in the following subparagraphs and to the extent specified in the requirements of this SOW. Nothing in this document, however, supersedes applicable laws and regulations unless a specific exemption has been obtained.

It is the intent of this solicitation and the resulting contract to fully implement the principles of the DoD Acquisition Reform initiatives. Specifically, reference is made to the Secretary of Defense policy promulgated by memorandum on 29 June 1994 regarding the use of specifications and standards. When specifications are not practical, non-Government (industry developed) standards shall be used.

In the event of conflict between the documents referenced herein and the contents of this SOW, the Order of precedence shall be:

- 1) Individual DO SOO;
- 2) Section 3 of this SOW;
- 3) Specifications, Standards and Other Documents, listed in Section 2.1 of this SOW.

Unless otherwise indicated, copies of federal and military specifications, standards, and handbooks are available on the internet at the Department of Defense Single Stock Point at <https://assist.dla.mil>. DoD Directives, Instructions and Publications documents, as well as other services publications at DoD Issuances website at: <http://www.dtic.mil/whs/directives/>. Non- Government documents should be obtained from commercial sources. Requests for copies of documents not available from sources listed above should be directed to the designated Government technical point of contact.

3.0 REQUIREMENT CAPABILITIES

Requirements contained herein describe at the contract level the deliveries that are associated with this SOW. The individual DO's will further define specific requirements and will provide the necessary details via a SOO and GFI. Individual Technology Areas may include multiple requirement capabilities to facilitate a successful DO requirement completion.

3.1 PROTOTYPE DEVELOPMENT

3.1.1 Engineering Design

The Contractor shall provide technical designs to meet the requirements as detailed in each DO SOO utilizing a systems engineering approach as referenced in IEEE 1220-2005 and IEEE/EIA 12207-2008. The Contractor shall implement a robust design process beginning with conceptual design leading into detailed design while creating engineering artifacts such as engineering models, drawings, simulations, and analysis to create solutions that maximize KPPs listed in the DO SOO. The Contractor shall utilize market research and analysis of alternatives to justify use of COTS and Non-Development Items as well as new development as necessary, to meet the requirements of the SOO. The Contractor shall conduct an obsolescence study on products that will help avoid or resolve hardware and software/firmware obsolescence issues as necessary, refer to MIL-HDBK-470A Notice 2. The Contractor shall utilize CAD modeling and analysis to ensure component interfaces leading to fabrication of physical prototypes for mobility solutions. Design of electrical circuits may require electromagnetic design factors in accordance with MIL-STD-464C.

As determined by each DO SOO the Contractor shall provide Technical Progress Reports and Engineering presentations to support technical interchange meetings, a Preliminary Design Review (PDR) and Critical Design Review (CDR) for each prototype design as determined by each DO.

(CDRL A001, Engineering Presentation)

3.1.1.1 Preliminary Design Review

When required by DO, the contractor shall conduct a system PDR to assess the state of the system architecture and preliminary system design for each hardware and or software configuration item (CI). The PDR shall identify all single source, sole source, and diminishing source(s). The Contractor shall conduct a PDR via phone conference or at a facility determined in the DO SOO. The PDR shall include, but not be limited to, presentation of the results of the design analysis and finalization and formalization of the design for fabrication. As specified by each DO, the contractor shall develop a Specification Requirement Verification (SRV) Matrix that documents how each requirement will be verified.

(CDRL A002, Specification Requirement Verification Matrix)

3.1.1.2 Critical Design Review

As determined by DO, the contractor shall conduct a CDR in accordance with DoDI 5000.02 to demonstrate the system detailed design is complete, meets requirements, and the system can proceed to fabrication, demonstration and readiness to test. The CDR shall be conducted prior to fabrication when required by individual DO. The overall technical program risks shall also be reviewed on a technical, manufacturing, cost and schedule basis. High-risk components shall have risk resolution identified (form/fit replacement, subset manufacturing/repair, tech refresh, etc.). The Contractor shall incorporate all Government approved design changes, finalizing the design.

(CDRL A003, Risk Identification and Mitigation)

3.1.2 Design Analysis

The Contractor shall conduct design analysis of the proposed prototype design as specified by SOO requirements. Detailed physical and performance design characteristics shall be specifically identified including, where applicable, the engineering decision process for using one methodology over another. The Contractor shall include a discussion of alternatives and the ramifications thereof, risk assessments and trade-offs made and proposed logistic support/level of repair. The Contractor shall present the results of the design analysis at technical interchange meetings and included in DO CDRLs. Individual DO's may require the contractor to perform an Analysis of Alternatives (AoA) by researching and documenting technologies

applicable to the mobility area of improvement or design change. The Contractor shall document data obtained during the AoA and present as a technical report. The contractor shall provide a technical report - studies/services, identifying each of the major assemblies/sub- assemblies, software modules, manufacturer names, model, and product/part numbers. If the DO requires, the contractor shall provide CAE, a report showing suitability for the integrated systems, components, and platforms to meet mission profiles, durability, and requirements specified in the DO SOO.

(CDRL A004, Design Data); (CDRL A005, CAE Report)

3.1.3 Prototype Fabrication and Integration

The contractor shall perform fabrication of newly designed and modified COTS components and subassemblies to meet DO prototype integration requirements. Part fabrication shall include ensuring best machining practices and Human Factors Engineering in accordance with MIL-STD-1472G, CH 1 are maximized to meet DO SOO KPPs. The contractor shall provide all certifications of materials or manufacturing processes as required by DO (CDRL A006, Certificate of Compliance). The contractor shall provide general and specialized fabrication support, which includes small manufacturing quantities to build new design prototypes, models, pre-production assemblies, sub-assemblies, and systems. The contractor shall follow engineering drawing specifications for fabrication and integration efforts and provide draft modifications of changes for Government review and approval. Utilizing proper system engineering, GFM, GFE, and GFI, the contractor shall support the fabrication and installation of upgrades to the mobility systems as specified by the DO. The contractor shall provide integration of developed prototypes and GFE onto mobility system platforms to meet DO requirements and KPPs following design instructions and engineering drawings. The contractor shall be required to deliver an integration summary report as determined by each DO SOO.

(CDRL A007, Integration Summary Report)

3.1.4 Technical Drawing Package

The Contractor shall develop, maintain, and deliver a TDP in accordance with MIL- STD-31000B and ASME Y14.24M as required by each DO. The TDP shall include all components, sub-assemblies, and final assemblies to complete a final prototype. The Contractor shall document any test requirements on the components, sub-assemblies, and final-assemblies necessary to ensure the characteristics of performance and include these in the TDP. Material and process specifications, special inspection equipment drawings and special tooling drawings and their associated lists shall be included in the TDP for complete product definition and total design disclosure. The TDP shall contain, but not be limited to, drawings, parts lists, data lists, wiring lists, schematics, interconnect diagrams, special tooling drawings, specifications, special packaging instructions that include storage and shipping containers and any requirements per MIL-STD-129R, MIL-STD-130 NOT 1, MIL-STD-2073-1E and AR 700-15, source control drawings, specification control drawings, cable dressing techniques, software/firmware/middleware version description documents, and interface control documents and information for both hardware and software/firmware/middleware, operating systems, and artifacts. The contractor shall modify/revise the TDP as necessary to obtain Government approval of the TDP prior to Government acceptance of each TDP. TDP requirements shall be stated in each DO SOO.

(CDRL A008, Technical Data Package)

3.1.5 Corrosion Control

The contractor shall be responsible for corrosion control IAW the vehicle level Corrosion Prevention and Control Plan.

3.1.6 Low-Rate Initial Production

The contractor shall manufacture LRIP systems in accordance with the TDP provided in each DO. The contractor shall procure materials, manufacture, assemble and conduct component and manufactured item/system testing necessary to assure the quality of the manufactured items. Any additional changes or deviations from the baselined TDP shall be submitted for approval via the Government Integrator's Engineering Change

Proposal process. DO's developing prototypes may transition to LRIP after Government acceptance of prototypes and agreement from contracting representative and requiring technical agent to enter DO phase II. LRIP quantities shall be delivered with a Quality Assurance Report verifying each quantity meets TDP and SOO requirements.

The contractor shall develop work instructions and Bill of Materials (BOM) for components and kits to be field installed.

- a. Installation instructions shall be provided, in contractor format, on how to install the kit in its entirety onto the vehicle. The installation instructions shall include a list of all tools required for installation as well as any preparations necessary prior to installation of the kit, such as removing or modifying other components. The instructions shall include illustrated part diagrams and individual part illustrations with descriptions.
- b. The kit shall include a complete BOM with part numbers, description and quantities.
- c. All components of the kit shall be individually labeled with serial numbers and part numbers IAW ML-STD 130.
- d. All labeling shall be located as not to be visible from the exterior of the vehicle.
- e. Standard hardware and fasteners do not require individual labeling.
- f. All components of the kit shall be packaged/preserved using commercial best practices and materials.

(CDRL A009, Quality Assurance Report) (CDRL A016, BOM); (CDRL A017, Installation Instructions)

3.1.6.1 Production Readiness Review

The Contractor shall conduct a Production Readiness Review (PRR), to determine whether the design is ready for LRIP and if the producer has accomplished adequate production planning. The PRR focuses on assessing the readiness of the manufacturing processes, the Quality Management System, and the production planning (i.e., facilities, tooling and test equipment capacity, personnel development and certification, process documentation, inventory management, supplier management, etc.). The PRR determines whether the traceability of final system requirements to the final production system is maintained. The PRR determines if production or production preparations incur unacceptable risk that might breach thresholds of schedule, performance, cost, or other established criteria. A successful PRR shall demonstrate the design is ready to move into LRIP.

As a precursor to the PRR, the contractor shall provide the Government with access to the appropriate artifacts for review and assessment to ensure entrance and exit criteria are satisfied.

(CDRL A010, Production Readiness Review)

3.1.6.2 Quality Assurance

The contractor shall be in compliance with ANSI/ISO/ASQ 9001:2008 standards. All manufacturing processes and quality systems procedures shall be in accordance with applicable ANSI/ISO Standards. The contractor shall flow all quality system requirements down to subcontractors, sub-tier suppliers, and vendors. The Contractor shall identify counterfeit parts and mitigate the inclusion of counterfeit parts into a system by utilizing guidance within SAE AS5553C.

3.1.6.3 Configuration Control

The contractor shall implement a process of change approval authority, which allows for change authority at the lowest practical level for changes which do not affect the contract requirements and a normal progression of approval authority up through the Government TDA for changes which do affect contract requirements. The contractor shall control changes of each End Item, support equipment, and hardware/software, firmware, middleware CI following guidance from MIL-HDBK-61B.

3.1.6.4 Configuration Audits

The contractor shall conduct audits to assure conformance to requirements of established baselines. The Contractor shall conform to change control procedures to ensure incorporation of approved changes only, ensure effectiveness of test objectives, and ensure that the developed software and hardware products are the same as the specified software and hardware products. Physical and functional configuration audits of each End Item and support equipment hardware and software CI, such as internal baselines and documentation, shall be performed by the Contractor using ISO 10007 as guidance.

3.2 TESTING SERVICES

As determined by DO, the contractor shall prepare a test plan that employs an integrated test and evaluation strategy designed to provide continuous insight into the design and performance of the mobility systems under test. The test plan shall be the top-level working document that addresses all testing anticipated by the contractor and its subcontractors and encompasses all major system and component level testing.

The contractor shall perform all testing in accordance with the test plan to validate the testing requirements of the SOO. The contractor shall reference MIL-HDBK-781A for guidance on testing methods. The test procedure, master test plan shall include procedures for all testing required in this SOW. The contractor shall develop a Test/Inspection Report for any test performed.

(CDRL A011 - Test Plan); (CDRL A012, Test/Inspection Report)

3.2.1 Interface and Performance Tests

When required by DO, the contractor shall perform testing of prototypes and GFE on vehicles and mobility platforms. These tests may include system interface, durability, vibration, power and energy, noise, tie-down, environmental tests as well as interoperability tests for trailers, aircraft, and other vehicle systems and platforms. The contractor shall observe, provide test equipment, collect all data during a test, and document the results against specified requirements within each DO. The contractor shall provide adequate facilities for the type of testing specified by DO. Durability testing shall require various levels of on and off-road terrain specified in each DO relevant to the vehicle platforms mission profile and Performance Specification (PSPEC). Applicable Military Standards shall include MIL-STD-1366, MIL-STD-209, MIL-STD-810, and Federal Motor Vehicle Safety Standards. DOs may specify that developed prototypes transition to a testing phase to determine integration integrity, user evaluation, and overall system functionality capabilities. In the event a DO transitions from a completed prototype to a test event, the Contracting Representative and Requiring Technical Agent will agree on transitioning to Phase II of the DO. A Final Test Report shall be developed that summarizes all findings determined during testing with recommendations on design improvements and any safety concerns regarding prototype design and integration.

(CDRL A012, Test/Inspection Report)

3.2.2 Armor Prototyping Integration and Testing

When required by DO, the contractor shall provide design prototyping of armor solutions for survivability objectives determined by the Government. Armor prototyping shall include understanding armor materials, armor integration, and armor testing techniques. Armor prototyping and integration to a mobility platform may include sourcing armor materials from armor manufacturers and designing integration systems to assemble armor to a mobility platform. Prototype armor solutions including armor materials and assembly components determined by DO to be installed onto a mobility platform for system integration verification. DOs may specify armor prototypes to be tested by the contractor at recognized armor testing facilities. The Government will specify and/or approve all armor test procedures, quantity of test articles, and retain the right to witness armor testing. Armor that is tested shall be delivered to the Contractor as GFM for a testing service or developed by the Contractor during advanced chassis and body prototype design from a list of survivability specifications delivered specified in the DO. The contractor shall utilize certified testing agencies to meet testing specifications and procedures outlined in the DO SOO. Upon completion of armor testing the contractor shall deliver a final test report which describes the results of the armor testing along with any material certifications required to validate the armor material as required in each DO SOO.

(CDRL A012, Test/Inspection Report)

3.3 PROGRAM MANAGEMENT

The contractor shall establish and perform the necessary management procedures required to ensure that all work performed under the contract is planned and executed in a manner that will satisfy the requirements and achieve all management, technical, logistical, quality control, cost, and schedule objectives in accordance with standardization objectives of DoD 4120.24-M. The Contractor shall address, at a minimum, the following areas:

- Program Planning and Control Procedures
- Subcontractor Control Procedures
- Financial Management
- Data Management
- Quality Control Procedures
- Risk Management
- Management and Accountability for Government Furnished Equipment, Material, Information and Data. The Contractor shall utilize a Program Office like function to manage all technical performance, reliability, maintainability, integrated logistic support, quality control, cost, schedule, and system/data delivery requirements of the contract.

3.3.1 Meetings

The contractor shall coordinate, schedule, prepare, conduct, facilitate and participate in reviews, meetings and conferences specified herein. The contractor shall prepare a conference agenda and presentation materials for all meetings, reviews, and conferences identified in this SOW. Each DO will specify required meetings by CDRL.

(CDRL A013, Conference Agenda); (A014, Conference Minutes); (A015, Presentation Material)

3.3.2 Data Rights

All developmental data rights are proprietary to the Government. Developmental data rights shall be defined as conceptual, detailed, and verification data derived from a Government set of requirements or SOO, where the developed information and physical items are a result of the project GFI or resulted from the Government intent to satisfy project needs. This may include technical studies, test reports, parts lists, engineering drawing packages, and logistics data developed utilizing GEIA-STD-0007 related to the prototype, engineering design model, or LRIP assemblies. As required by the Government, the contractor shall turn over to the Government without proprietary markings all design data, documentation, drawings, processes, test metrics, process metrics, source code developed, and analyses performed under this contract for a complete design disclosure. The technical report - study/services, design data shall be provided in a format consistent with best commercial practice and widely acceptable by industry. Development and engineering data from concepts and physical components previously designed and documented by a contractor prior to being used to satisfy DO objectives but included as part as a deliverable may be determined to be restricted data and proprietary to the contractor that had developed the item. Data subject to restricted rights must be declared per DFARS clause 252.225.7017 and disclosed in a data accession list during proposal per DFARS clause 252.227.7028.

3.3.3 Product System Safety

In performance of this SOW, the contractor shall ensure that the systems engineering approach for all deliverables are per MIL-STD-882E and MIL-STD-461G. Hazardous materials shall be handled as referenced in NAS 411. Industry best practices for safety shall be followed in accordance with Occupational Safety and Health Standards 29 CFR 1910.

3.4 PROGRAM SECURITY

3.4.1 International Traffic in Arms Regulations

The contractor shall be solely responsible for obtaining any State Department approvals, licenses, Technical Assistance Agreements, etc. required by the International Traffic in Arms Regulations (ITAR).

3.4.2 Development and Production Security

It is anticipated that information for systems developed under this contract will be Export Controlled and must remain under continuous US control. No ITAR-controlled information, critical components identified under DoD Military Critical Technologies List (MCTL) or Critical Program Information shall be released to or developed, tested, fabricated or assembled by foreign: nationals, facilities, subcontractors, suppliers or vendors. As part of the Program Protection Implementation Plan, the Contractor shall notify the Government of any part, information, material, or labor not provided by a Trusted Source and must obtain specific written authorization from the Procurement Contracting Officer, Contracting Officer's Representative, or program Security Manager to proceed with its use. DTM 08-027 shall be followed when handling Government sensitive equipment and during visits by contractor personnel.

4.0 GOVERNMENT-FURNISHED PROPERTY

Government Furnished Property (GFP) may be required for completion of tasks under this SOW.

4.1 Procurement Integrated Enterprise Environment (PIEE) GFP Module Reporting & Accountability

All Government Furnished Property is property of the U.S. Government and shall not be transferred to any individual or agency, public or private, without the express written approval of the originating Contracting Officer except as required for the specific performance of tasks under this contract /order. Accountability for Government Property under this contract/order shall be managed in accordance with FAR Part 45, DFARS Part 245 and DFARS PGI Part 245 as well as the Government Property clauses in the contract/order whether acquired by the prime or subcontractors (Contractor Acquired Property (CAP)), provided by the Government, or received directly from another commercial source as a deliverable from a Government issued contract. Additional Government Property accountability requirements are outlined in the following Directives and Instructions and shall be adhered to as applicable:

- DoDI 4161.02 CH 2, Accountability & Management of Government Contract Property
- DoDM 4140.01, Vol 6, DoD Supply Chain Material Management Procedures: Material Returns, Retention and Disposition
- DoDI 5000.64 CH 3, Accountability & Management of DoD Equipment and Other Accountable Property
- OPNAVINST 4440.26C CH 1, Accountability and Management of Operating Materials & Supplies and Government Furnished Property
- SECNAVINST 5200.43A, Government Furnished Property, Accountability and Management
- NAVSEAINST 5200.15, General Equipment Accountability and Management

4.1.1 Receipt Reporting

FAR 52.245-1(f)(1)(ii) requires the contractor to report receipt of all GFP. Reporting of Government Furnished Property (DFARS 252.245-7005) and DoDI 4161.02, Accountability and Management of Government Contract Property Instruction requires that contractors, as part of the required receipt of any Government property, report to the DoD Item Unique Identification (IUID) Registry using WAWF, DLMS transactions, or direct update of the registry. Contractors shall ensure appropriate accountable property records are maintained utilizing the data reported in the DoD IUID Registry and its integral GFP Module in the PIEE. At the time of reporting receipt of GFP in the GFP Module, the contractor will also send an email notification to cran_gfpaccounta.fct@navy.mil to ensure the NSWC Crane Property Management Division is notified.

4.1.2 Shipping Notification

DoDI 4161.02 requires use of electronic transactions when transferring Government property to a contractor and upon return of property to DoW. The contractor shall use the GFP Module in PIEE when returning GFP back to the Government. At the time of creating the shipping document to return GFP using the GFP Module, the contractor will also send an email notification to cran_gfpaccounta.fct@navy.mil to ensure the NSWC Crane Property Management Division is notified.

4.1.3 CAP

FAR 52.245-1 defines CAP as property acquired, fabricated, or otherwise provided by the Contractor for performing a contract, and to which the government has title. To request CAP conversion to GFP or contractor to buy back, the contractor must utilize the CAP Pre-screening capability within the PIEE GFP Module.

4.1.4 Lost, Damaged or Stolen GFP Reporting

FAR clause 52.245-1 requires the contractor to investigate and report to the Government all incidents of property loss as soon as the facts become known. DFARS 252.245-7005 further requires the contractor to report lost, damaged or stolen government property using the Property Loss functionality within the PIEE GFP Module.

4.1.5 Excess Property Reporting

SECNAVINST 5200.43A requires unused or excess GFP to be properly dispositioned as soon as the excess is identified without waiting for formal contract closeout processing. Recovering excess property from the contractor will be completed by the return of GFP back to the government via a DD-1149 or utilizing the GFP Module Plant Clearance capability as soon as possible to ensure the property is available to fill other requirements and can potentially reduce the administrative costs of the contract. The Government-appointed Plant Clearance Officer will accept or reject the request to excess GFP using the GFP Module Plant Clearance capability.

4.2 INVENTORY REPORTING

4.2.1 GFP Reporting

The contractor shall provide data deliverables IAW the listed CDRLs by contract and contract order number (if applicable) to provide accountability for all Government furnished property that has been provided in support of the contract. The report shall include the fields required by the Data Item Description noted in the CDRL, DFARS 252.245-7005 and DFARS PGI 245.103-72 for the purpose of accountability.

(CDRL A018, Government Property Inventory Report)

4.4 GFM

The GFM will be provided when the Contractor has a requirement for special or specific Government material in the performance of specific tasking or as lay-in material for repairs, refurbishment, and/or upgrade of systems. GFM planned to be provided will be identified on a GFP attachment for each contract, as applicable. The contractor shall maintain a complete listing of all serial managed operating materials and supplies where title is vested to the government.

4.5 GFE

4.5.1 Industrial Operations

GFE will be provided when the Contractor has a requirement for special tooling, special test equipment or specific Government equipment per specific tasking and be identified on the GFP attachment for each contract as applicable. The contractor shall maintain a complete listing of all general equipment where title is vested to the Government.

5.0 DATA DELIVERABLES

CDRL	CDRL Title	DID Title	DID Number	SOW Paragraph
A001	Engineering Presentation	Technical Report-Study/Services	DI-MISC-80508B	3.1.1
A002	Specification Requirement Verification Matrix	Specification Requirement Verification Matrix	DI-MISC-81283	3.1.1.1
A003	Risk Identification and Mitigation	Risk Management Status Report	DI-MGMT-81809	3.1.1.2
A004	Design Data	Technical Report - Study/Services	DI-MISC-80508B	3.1.2
A005	Computer Aided Engineering (CAE) Report	Technical Report - Study/Services	DI-MISC-80508B	3.1.2
A006	Certificate of Compliance	Certificate of Compliance	DI-MISC-81356A	3.1.3
A007	Integration Summary Report	Technical Report - Study/Services	DI-MISC-80508B	3.1.3
A008	Technical Data Package (TDP)	Technical Data Package (TDP)	DI-SESS-80776B NOT 1	3.1.4
A009	Quality Assurance Report	Technical Report - Study/Services	DI-MISC-80508B	3.1.6
A010	Production Readiness Review	Technical Report - Study/Services	DI-MISC-80508B	3.1.6.1
A011	Test Plan	Test Plans/Test Procedures	DI-SESS-81704	3.2
A012	Test/Inspection Report	Test/Inspection Report	DI-NDTI-80809	3.2, 3.2.1, 3.2.2
A013	Conference Agenda	Meeting Agenda	DI-ADMN-81249C	3.3.1
A014	Conference Minutes	Meeting Minutes	DI-ADMN-81250C	3.3.1

A015	Presentation Material	Presentation Material	DI-ADMN-81373 NOT 2	3.3.1
A016	Bill of Materials (BOM)	Priced Bill of Materials	DI-MGMT-81994B	3.1.6
A017	Installation Instructions	Technical Report - Study/Services	DI-MISC-80508B	3.1.6
A018	Government Property Inventory Report	Government Property Inventory Report	DI-MGMT-80441D	4.2.1

6.0 SPECIAL CONDITIONS

6.1 PROGRAM MANAGER

The contractor shall assign a technical single point of contact, also known as the Program Manager (PM) who shall work closely with the government Contracting Officer, Contracts Specialist, and DO level Government Technical Representatives as required. Located in the contractor's facility, the PM shall be ultimately responsible for ensuring that the contractor's performance meets all government contracting requirements within cost and schedule, adhering to MIL-STD-881D for program reporting purposes. PM shall have the requisite authority for full control over all company resources necessary for contract performance. Responsibilities shall also include, but not be limited to, the following: personnel management; management of government material and assets; and personnel and facility security. The contractor shall follow MIL-HDBK-1785 NOT 2 to identify and eliminate security vulnerabilities for program development.

6.2 SKILLED PERSONNEL

The Contractor shall ensure that all personnel and subcontractors are skilled in the technical areas required to meet the requirements of each DO. The DO SOO shall state areas of subject matter expertise required to meet requirements. DO tasks may require specific certifications in understanding areas of welding, inspection, testing, automotive, armoring, engineering, and mobility. Subject Matter Expertise shall be required following procedures found in industry from the American Welding Society, Automotive Center of Excellence, SAE, and military standards and specifications such as MIL-DTL-46100, MIL-DTL-32332, MIL-DTL-12560, MIL-STD-810, MIL-STD-1366, MIL-STD-209, STANAG 4569 / AEP-55, ATPD-2352, and MIL-STD-3038.

6.3 CONTRACT MONITORING AND MAINTENANCE

The contractor shall have processes established in order to provide all necessary resources and documentation during various times throughout the day in Order to facilitate a timely DO award or modification. To address urgent requirements, the contractor shall have processes established during business and non-business hours/days in order to facilitate a timely DO award or modification.

6.4 TRAVEL

The Contractor shall be required to travel throughout the Continental United States in support of prototype development and testing on mobility platforms. Each DO SOO will specify the anticipated travel locations to support the effort. During the proposal phase for each DO, the Contractor shall propose travel locations not included in the SOO that the Contractor may need to travel to for project completion. These instances may include a test facility or subcontractor location. The RTA and Contracting Representative will evaluate proposed travel to determine acceptability. Estimated travel costs should be included in each proposal when applicable.

Requirements

Mobility MAC Follow-On

Additional Regulation or Supplemental Clauses Incorporated by Full Text

C-202-H001 ADDITIONAL DEFINITIONS--BASIC

(Oct 2018)

- (a) Department means the Department of the Navy.
- (b) Commander, Naval Sea Systems Command means the Commander of the Naval Sea Systems Command of the Department of the Navy or his duly appointed successor.
- (c) References to The Federal Acquisition Regulation (FAR) All references to the FAR in this contract shall be deemed to also reference the appropriate sections of the Defense FAR Supplement (DFARS), unless clearly indicated otherwise.
- (d) National Stock Numbers Whenever the term Federal Item Identification Number and its acronym FIIN or the term Federal Stock Number and its acronym FSN appear in the contract, order or their cited specifications and standards, the terms and acronyms shall be interpreted as National Item Identification Number (NIIN) and National Stock Number (NSN) respectively which shall be defined as follows:
- (1) National Item Identification Number (NIIN). The number assigned to each approved Item Identification under the Federal Cataloging Program. It consists of nine numeric characters, the first two of which are the National Codification Bureau (NCB) Code. The remaining positions consist of a seven digit nonsignificant number.
 - (2) National Stock Number (NSN). The National Stock Number (NSN) for an item of supply consists of the applicable four-position Federal Supply Class (FSC) plus the applicable nine-position NIIN assigned to the item of supply.

(End of Text)

C-204-H001 USE OF NAVY SUPPORT CONTRACTORS FOR OFFICIAL CONTRACT FILES

(Oct 2018)

- (a) NAVSEA may use a file room management support contractor, hereinafter referred to as "the support contractor", to manage its file room, in which all official contract files, including the official file supporting this procurement, are retained. These official files may contain information that is considered a trade secret, proprietary, business sensitive or otherwise protected pursuant to law or regulation, hereinafter referred to as "protected information". File room management services consist of any of the following: secretarial or clerical support; data entry; document reproduction, scanning, imaging, or destruction; operation, management, or maintenance of paper-based or electronic mail rooms, file rooms, or libraries; and supervision in connection with functions listed herein.
- (b) The cognizant Contracting Officer will ensure that any NAVSEA contract under which these file room management services are acquired will contain a requirement that:
- (1) The support contractor not disclose any information;
 - (2) Individual employees are to be instructed by the support contractor regarding the sensitivity of the official contract files;
 - (3) The support contractor performing these services be barred from providing any other supplies and/or services, or competing to do so, to NAVSEA for the period of performance of its contract and for an additional three years thereafter unless otherwise provided by law or regulation; and,
 - (4) In addition to any other rights the contractor may have, it is a third party beneficiary who has the right of direct action against the support contractor, or any person to whom the support contractor has released or disclosed protected information, for the unauthorized duplication, release, or disclosure of such protected information.
- (c) Execution of this contract by the contractor is considered consent to NAVSEA's permitting access to any information, irrespective of restrictive markings or the nature of the information submitted, by its file room management support contractor for the limited purpose of executing its file room support contract responsibilities.
- (d) NAVSEA may, without further notice, enter into contracts with other contractors for these services. Contractors should enter into separate non-disclosure agreements with the file room contractor. Contact the Procuring Contracting Officer for contractor

specifics. However, any such agreement will not be considered a prerequisite before information submitted is stored in the file room or otherwise encumber the government.

(End of Text)

C-211-H017 UPDATING SPECIFICATIONS AND STANDARDS (NAVSEA) (DEC 2018)

(Dec 2018)

The contractor may request that this contract be updated to include the current version of the applicable specification or standard if the update does not affect the form, fit or function of any deliverable item or increase the cost/price of the item to the Government. The contractor should submit update requests to the Procuring Contracting Officer with copies to the Administrative Contracting Officer and cognizant program office representative for approval. The contractor shall perform the contract in accordance with the existing specifications and standards until notified of approval/disapproval of its request to update by the Procuring Contracting Officer. Any approved alternate specifications or standards will be incorporated into the contract.

(End of Text)

C-211-H016 SPECIFICATIONS AND STANDARDS (NAVSEA) (OCT 2018)

(Oct 2018)

(a) Definitions.

(i) A "zero-tier reference" is a specification, standard, or drawing that is cited in the contract (including its attachments).

(ii) A "first-tier reference" is either: (1) a specification, standard, or drawing cited in a zero-tier reference, or (2) a specification cited in a first-tier drawing.

(b) Requirements. All zero-tier and first-tier references, as defined above, are mandatory for use. All lower tier references shall be used for guidance only unless specifically identified below.

(End of Text)

C-211-H018 APPROVAL BY THE GOVERNMENT (NAVSEA) (JAN 2019)

(Jan 2019)

Approval by the Government as required under this contract and applicable specifications shall not relieve the Contractor of its obligation to comply with the specifications and with all other requirements of the contract, nor shall it impose upon the Government any liability it would not have had in the absence of such approval.

(End of Text)

C-215-H002 CONTRACTOR PROPOSAL (NAVSEA) (OCT 2018)

(Oct 2018)

(a) Performance of this contract by the Contractor shall be conducted and performed in accordance with detailed obligations to which the Contractor committed itself in Proposal _____ dated _____ in response to NAVSEA Solicitation No. N0016426RMP01.

(b) The technical volume(s) of the Contractor's proposal is(are) hereby incorporated by reference and made subject to the "Order of Precedence" (FAR 52.215-8) clause of this contract. Under the "Order of Precedence" clause, the technical volume(s) of the Contractor's proposal referenced herein is (are) hereby designated as item (f) of the clause, following "the specifications" in the order of precedence.

(End of Text)

C-223-H003 EXCLUSION OF MERCURY (NAVSEA) (MAR 2019)

(Mar 2019)

(a) Definitions. As used in this text:

Article means a manufactured item other than a fluid or particle: (i) which is formed to a specific shape or design during manufacture; (ii) which has end use function(s) dependent in whole or in part upon its shape or design during end use; and (iii) which under normal conditions of use does not release more than very small quantities, e.g., minute or trace amounts of a hazardous chemical, and does not pose a physical hazard or health risk to employees.

Boundary of containment means a continuous tight seal (barrier) to prevent the release of functional mercury during normal operation and maintenance. Examples include the exterior of a fluorescent lamp, glass capsule of a mercury switch, and container for mercury reagents. A double boundary of containment consists of two independent seals.

Functional mercury means mercury or mercury compound(s) contained in equipment that is required for the equipment to operate properly, such as that found in mercury switches, fluorescent lamps, flat-panel monitors, thermostats, thermostat probes, small coin type batteries, barometers, and dental amalgams.

Hardware means any article, container, piece of material, individual part, subassembly, assembly, component, or system to which mercury control requirements apply.

Mercury-free means hardware that does not contain functional mercury and is not contaminated by mercury or mercury compounds.

Portable means items that are frequently transported during normal operation. Desk lamps, shop lights, and hand-held instruments are considered portable, while bulbs in stationary light fixtures are not. In general, items that require transport only during maintenance, installation, and removal of the items are not considered portable.

(b) The Contractor, and all subcontractors and vendors, shall ensure that mercury or mercury containing compounds are not intentionally added to, or come in direct contact with, hardware or supplies furnished under this contract.

(1) The Contractor shall ensure that mercury and mercury compounds are not taken onboard naval vessels by Contractor, subcontractor, or vendor personnel except for functional mercury used in batteries, dental amalgams, fluorescent lamps, flat-panel monitors, required instruments, sensors or controls, weapon systems, and chemical analysis reagents specified by the Naval Sea Systems Command (NAVSEA).

(2) Portable fluorescent lamps and portable instruments containing elemental mercury must be shock-proof in accordance with MIL-DTL-901E entitled Requirements for Shock Tests, H.I. (High Impact) Shipboard Machinery, Equipment, and Systems and have mercury enclosed by a double boundary of containment. Some devices with liquid crystal display (LCD) screens utilize a fluorescent bulb backlight to illuminate the LCD screen. No additional restrictions or controls apply to devices with LCD screens; however, the Contractor shall remove the LCD screen and seal it in plastic following any evidence that the backlight failed.

(3) For Submarines, any use of mercury containing items must be approved as required by the Nuclear Powered Submarine Atmosphere Control Manual (S9510-AB-ATM-010/U) Volume 1.

(4) The Contractor shall ensure that mercury and mercury compounds do not contact hardware surfaces in systems covered by NAVSEA Manual NAVSEA 0989-064-3000 entitled Cleanliness Requirements for Nuclear Propulsion Plant Maintenance and Construction, submarine air systems, level I systems per NAVSEA Publication 0948-LP-045-7010, NAVSEA Material Control Standard, or the submarine safety program (SUBSAFE) surfaces during maintenance or repair. Such hardware is designated as mercury-free. The Contractor shall ensure that all other hardware that could be structurally degraded by contamination with elemental mercury or reactive mercury compounds is separated from it by sufficient distance, or boundaries of containment that effectively prevents contact in all but the most extreme circumstances.

(5) The Contractor shall check any hardware surfaces in the above systems which are known or suspected to have come in contact with mercury or mercury compounds for evidence of structural degradation and external mercury contamination. The existence of external mercury contamination can be determined following MIL-STD-2041D entitled Control of Detrimental Materials.

(6) The presence of mercury in a product may be determined by checking product labeling on material safety data sheets or safety data sheets. Chemical analysis is not required.

(7) The Contractor shall dispose of any mercury and mercury compounds in accordance with OPNAV Manual (OPNAV M-5090.1) entitled Environmental Readiness Program Manual of 10 January 2014.

(8) If the use of mercury or mercury compounds cannot be avoided, a risk assessment and waiver request, if required, must be performed and submitted per the NAVSEA Hazardous Material Avoidance Process (T9070-AL-DPC-020/077-2). For systems covered by the NAVSEA Manual NAVSEA 0989-064-3000 entitled Cleanliness Requirements for Nuclear Propulsion Plant Maintenance and Construction, submit the risk assessment and waiver request, if required to Nuclear Propulsion (NAVSEA 08).

(c) In all cases where mercury or a mercury compound has contacted hardware surfaces required to be mercury-free the Contractor shall immediately provide a report to the NAVSEA Dry Environmental Systems and Hazardous Materials (NAVSEA 05P5) via the cognizant contract administration safety office. Reports concerning systems covered by NAVSEA Manual 0989-064-3000 must include NAVSEA Nuclear Propulsion Directorate (SEA 08) in the distribution. Reports must be in letter form and include the date and details of the contact, the surfaces contacted, the recovery actions taken, and the status of the affected surfaces.

(End of Text)

C-227-H006 DATA REQUIREMENTS (NAVSEA) (OCT 2018)

(Oct 2018)

The data to be furnished hereunder shall be prepared in accordance with the Contract Data Requirements List, DD Form 1423, Exhibit(s) A001-A018, attached hereto.

(End of Text)

C-227-H009 ACCESS TO DATA OR COMPUTER SOFTWARE WITH RESTRICTIVE MARKINGS (NAVSEA) (JAN 2019)

(Jan 2019)

(a) Performance under this contract may require that the Contractor have access to technical data, computer software, or other sensitive data of another party that contains restrictive markings. If access to such data or software is required or to be provided, the Contractor shall enter into a written agreement with such party prior to gaining access to such data or software. The agreement shall address, at a minimum, (1) access to, and use of, the restrictively marked data or software exclusively for the purposes of performance of the work required by this contract, and (2) safeguards to protect such data or software from unauthorized use or disclosure for so long as the data or software remains properly restrictively marked. In addition, the agreement shall not impose any limitation upon the Government or its employees with respect to such data or software. A copy of the executed agreement shall be provided to the Contracting Officer. The Government may unilaterally modify the contract to list those third parties with which the Contractor has agreement(s).

(b) The Contractor agrees to: (1) indoctrinate its personnel who will have access to the data or software as to the restrictions under which access is granted; (2) not disclose the data or software to another party or other Contractor personnel except as authorized by the Contracting Officer; (3) not engage in any other action, venture, or employment wherein this information will be used, other than under this contract, in any manner inconsistent with this requirement; (4) not disclose the data or software to any other party, including, but not limited to, joint venturer, affiliate, successor, or assign of the Contractor; and (5) reproduce the restrictive stamp, marking, or legend on each use of the data or software whether in whole or in part.

(c) These restrictions on use and disclosure of the data and software also apply to information received from the Government through any means to which the Contractor has access in the performance of this contract that contains restrictive markings.

(d) The Contractor agrees that it will promptly notify the Contracting Officer of any attempt to gain access to any information with restrictive markings. Such notification shall include the name and organization of the individual, company, or Government representative seeking access to such information.

(e) The Contractor shall include this requirement in subcontracts of any tier which involve access to information covered by paragraph (a), substituting "subcontractor" for "Contractor" where appropriate.

(f) Compliance with this requirement is a material requirement of this contract.

(End of Text)

C-233-H001 DOCUMENTATION OF REQUESTS FOR EQUITABLE ADJUSTMENT--BASIC (NAVSEA) (OCT 2018)

(Oct 2018)

(a) For the purposes of this special contract requirement, the term "change" includes not only a change that is made pursuant to a written order designated as a "change order" but also (1) an engineering change proposed by the Government or by the Contractor and (2) any act or omission to act on the part of the Government in respect of which a request is made for equitable adjustment.

(b) Whenever the Contractor requests or proposes an equitable adjustment of \$100,000 or more per vessel in respect to a change made pursuant to a written order designated as a "change order" or in respect to a proposed engineering change and whenever the Contractor requests an equitable adjustment in any amount in respect to any other act or omission to act on the part of the Government, the proposal supporting such request shall contain the following information for each individual item or element of the request:

(1) A description (i) of the work required by the contract before the change, which has been deleted by the change, and (ii) of the work deleted by the change which already has been completed. The description is to include a list of components, equipment, and other identifiable property involved. Also, the status of manufacture, procurement, or installation of such property is to be indicated. Separate description is to be furnished for design and production work. Items of raw material, purchased parts, components and other identifiable hardware, which are made excess by the change and which are not to be retained by the Contractor, are to be listed for later disposition;

(2) Description of work necessary to undo work already completed which has been deleted by the change;

(3) Description of work not required by the terms hereof before the change, which is substituted or added by the change. A list of components and equipment (not bulk materials or items) involved should be included. Separate descriptions are to be furnished for design work and production work;

(4) Description of interference and inefficiencies in performing the change;

(5) Description of each element of disruption and exactly how work has been, or will be disrupted:

(i) The calendar period of time during which disruption occurred, or will occur;

(ii) Area(s) aboard the vessel where disruption occurred, or will occur;

(iii) Trade(s) disrupted, with a breakdown of manhours for each trade;

(iv) Scheduling of trades before, during, and after period of disruption;

(v) Description of measures taken to lessen the disruptive effect of the change;

(6) Delay in delivery attributable solely to the change;

(7) Other work attributable to the change;

(8) Supplementing the foregoing, a narrative statement of the direct "causal" relationship between any alleged Government act or omission and the claimed consequences therefor, crossreferenced to the detailed information provided as required above; and

(9) A statement setting forth a comparative enumeration of the amounts "budgeted" for the cost elements, including the material costs, labor hours and pertinent indirect costs, estimated by the Contractor in preparing its initial and ultimate proposal (s) for this contract, and the amounts claimed to have been incurred and/or projected to be incurred corresponding to each such "budgeted cost" elements.

(c) Each proposal in excess of \$100,000 submitted in support of a claim for equitable adjustment under any requirement of this contract shall, in addition to the information required by paragraph (b) hereof, contain such information as the Contracting Officer may require with respect to each individual claim item.

(d) It is recognized that individual claims for equitable adjustment may not include all of the factors listed in paragraph (b) above. Accordingly, the Contractor is required to set forth in its proposal information only with respect to those factors which are comprehended in the individual claim for equitable adjustment. In any event, the information furnished hereunder shall be in sufficient detail to permit the Contracting Officer to cross-reference the claimed increased costs, or delay in delivery, or both, as appropriate, submitted pursuant to paragraph (c) of this requirement, with the information submitted pursuant to paragraph (b) hereof.

(End of Text)

C-242-H002 POST AWARD MEETING (NAVSEA) (OCT 2018)

(Oct 2018)

(a) A post-award meeting with the successful offeror will be conducted within [*] days after award of the [contract / task order]. The meeting will be held at the address below:

Location/Address: [*]

(b) The contractor will be given [*] working days notice prior to the date of the meeting by the Contracting Officer.

(c) The requirement for a post-award meeting shall in no event constitute grounds for excusable delay by the contractor in performance of any provisions in the [contract / task order].

(d) The post-award meeting will include, but is not limited to, the establishment of work level points of contact, determining the administration strategy, roles and responsibilities, and ensure prompt payment and close out. Specific topics shall be mutually agreed to prior to the meeting.

[*] To be specified at [contract / task order] award

(End of Text)

C-242-H001 EXPEDITING CONTRACT CLOSEOUT (NAVSEA) (OCT 2018)

(Oct 2018)

(a) As part of the negotiated fixed price or total estimated amount of this contract, both the Government and the Contractor have agreed to waive any entitlement that otherwise might accrue to either party in any residual dollar amount of \$1,000 or less at the time of final contract closeout. The term "residual dollar amount" shall include all money that would otherwise be owed to either party at the end of the contract, except that, amounts connected in any way with taxation, allegations of fraud and/or antitrust violations shall be excluded. For purposes of determining residual dollar amounts, offsets of money owed by one party against money that would otherwise be paid by that party may be considered to the extent permitted by law.

(b) This agreement to waive entitlement to residual dollar amounts has been considered by both parties. It is agreed that the administrative costs for either party associated with collecting such small dollar amounts could exceed the amount to be recovered.

(End of Text)

C-243-H003 CONFIGURATION MANAGEMENT (NAVSEA) (APR 2024)

(Apr 2024)

(a) Baseline Definition - All contractual documentation in effect at the time of contract award shall constitute the Contract Baseline, which shall be considered incorporated in the baseline documentation.

(b) General Requirement -

(1) The Contractor shall maintain a Configuration Control Program to assure that all detail level work being performed under this contract is in compliance with appropriate baseline documentation. The Contractor shall prepare a Configuration Management Plan in accordance with the requirements of the contract. If required, the Contractor's Configuration Management Plan shall be submitted through the appropriate Contract Data Requirements List (CDRL) for approval by the Government.

(2) Whenever a situation arises wherein the Contractor cannot comply with a baseline document, or whenever intent of such documentation is significantly changed by detail level documentation, the Contractor shall submit change documents to modify the baseline to resolve the conflict or to allow noncompliance. Whenever the cost of implementing a proposed change is less than the threshold requiring certified cost or

pricing data, the Contractor shall provide such detail of related costs as to allow the Government to determine an equitable adjustment for the change document submission. Whenever the contract cost changes by an amount greater than the threshold requiring certified cost or pricing data, the Contractor shall complete such cost and pricing data as the Contracting Officer shall require detailing all related costs, and attach it to the change document. Requirements for cost and pricing data shall be determined by the gross amount of the change unless otherwise directed by the Contracting Officer. Change documentation shall be submitted to the Contracting Officer in accordance with the appropriate CDRL, and as described in paragraphs (c) through (f) below.

(c) Engineering Change Proposals (ECPs) - ECPs shall be prepared in accordance with the approved configuration management plan and the requirements of the contract. DI-SESS-80639E approved 11 February 2020, EIA-649-1A dated 10 August 2020, and MIL-HDBK-61B dated 7 April 2020 apply. An ECP shall be submitted whenever the detail level physical configuration, material quality, operational or functional performance of equipment or installed systems will not be in compliance with baseline design-related documents (Specifications, Contract Drawings, etc.), and a change to the baseline document is considered an appropriate means of resolving a design-related issue. The contractor shall develop documentation in sufficient detail to enable Government review and evaluation of the merits of the proposed change, including cost and scheduling impact, ship class impact if applicable, and consequences if disapproved. List all existing drawings and technical manuals impacted by the change, including a brief narrative explanation of needed changes to incorporate the ECP if approved. Provide weight and moment data incidental to the change, if applicable. The Contractor shall also prepare applicable baseline document insert sheets, with specific word changes or proposed rewrite, to facilitate baseline documentation changes.

(d) Non-Engineering Change Proposals (NECPs) - An NECP shall be submitted whenever necessary to document administrative, procedural, scheduling, or documentation changes that do not directly impact the physical configuration of the equipment. The NECP shall explain the nature of the problem, identify the applicable baseline document (i.e., Contract Data Requirement List (CDRL), Contract Clause, etc.) and provide a detailed explanation justifying the proposed course of action desired to resolve the problem. Insert sheets for applicable documents shall also be attached to facilitate change action in the event the NECP is approved.

(e) Deviations/Waivers - In the event that a baseline design-related document requirement cannot be met, and a change to the baseline document is considered inappropriate, the Contractor shall submit a Request for Variance. The explanation of "Need for Deviation/Waiver" in the DD1694 shall provide detailed justification and consequences of approval, to include technical details explaining the degree of noncompliance and the effect on ship equipment or system operation.

(f) Equitable Adjustments for Change Documentation Preparations - For its effort expended in preparing ECPs, NECPs, and Deviations/Waivers, the Contractor shall receive equitable adjustment under the following circumstances:

(1) In the event the Contractor, on its own initiative, and without written request from the Contracting Officer, develops a change document that is later disapproved by the Government, the Contractor shall bear the cost of this effort.

(2) To avoid such loss, and at its option, the Contractor may submit a "preliminary" document that outlines intent, but without detailed supporting documentation and request the Contracting Officer's approval for expenditure of effort to complete the detailed supporting documentation. In the event the Contracting Officer denies this request, the Contractor will bear the cost of development of the "preliminary" document, and shall make no further effort to complete detailed supporting documentation.

(3) In the event the Contracting Officer approves the Contractor's request to develop supporting documentation, the Contractor shall be equitably compensated for its effort for both the "preliminary" and "final" documentation, regardless of whether or not the change document is later approved.

(4) In the event the Contracting Officer requests in writing that the Contractor develop change documentation, the effort expended by the Contractor in developing such documentation shall be subject to equitable adjustment, regardless of whether or not the change document is later approved.

(5) In the event the Contractor, on its own initiative, and without written request from the Government, develops a change document that is later approved by the Contracting Officer, the cost of developing such documentation shall be subject to equitable adjustment.

(6) Failure to agree to such equitable adjustment in contract price shall constitute a dispute, and shall be adjudicated in accordance with the requirements of the clause entitled "Disputes" (FAR 52.2331).

(g) Any cost reduction proposal submitted pursuant to the clause entitled "Value Engineering" (FAR 52.2481) shall be submitted as a Value Engineering Change Proposal (VECP). The Contractor shall follow the VECP preparation requirements of FAR 52.248-1(c) and any additional guidance provided by the Contracting Officer.

(End of text)

C-245-H005 INFORMATION AND DATA FURNISHED BY THE GOVERNMENT--ALTERNATE I (NAVSEA) (MAY 2019) (May 2019)

(a) Contract Specifications, Drawings and Data. The Government will furnish, if not included as an attachment to the contract, any unique contract specifications or other design or alteration data cited or referenced in Section C.

(b) Government Furnished Information (GFI). GFI is defined as that information essential for the installation, test, operation, and interface support of all Government Furnished Material identified in an attachment in Section J. The Government shall furnish only the GFI identified in an attachment in Section J. The GFI furnished to the contractor need not be in any particular format. Further, the Government reserves the right to revise the listing of GFI as follows:

(1) The Contracting Officer may at any time by written order:

(i) delete, supersede, or revise, in whole or in part, data identified in an attachment in Section J; or

(ii) add items of data or information to the attachment identified in Section J; or

(iii) establish or revise due dates for items of data or information in the attachment identified in Section J.

(2) If any action taken by the Contracting Officer pursuant to subparagraph (1) immediately above causes an increase or decrease in the costs of, or the time required for, performance of any part of the work under this contract, the contractor may be entitled to an equitable adjustment in the contract amount and delivery schedule in accordance with the procedures provided for in the "CHANGES" clause of this contract.

(c) Except for the Government information and data specified by paragraphs (a) and (b) above, the Government will not be obligated to furnish the Contractor any specification, standard, drawing, technical documentation, or other publication, notwithstanding anything to the contrary in the contract specifications, the GFI identified in an attachment in Section J, the clause of this contract entitled "Government Property" (FAR 52.245-1) or "Government Property Installation Operation Services" (FAR 52.245-2), as applicable, or any other term or condition of this contract. Such referenced documentation may be obtained:

(1) From the ASSIST database via the internet at <https://assist.dla.mil/online/start/>; or

(2) By submitting a request to the

Department of Defense Single Stock Point (DoDSSP)

Building 4, Section D
700 Robbins Avenue
Philadelphia, Pennsylvania 19111-5094
Telephone (215) 697-6396
Facsimile (215) 697-9398

Commercial specifications and standards, which may be referenced in the contract specification or any sub-tier specification or standard, are not available from Government sources and should be obtained from the publishers.

(End of Text)

C-246-H003 LIMITATION OF LIABILITY--HIGH VALUE ITEMS (NAVSEA) (OCT 2018) (Oct 2018)

The following items are subject to the clause of this contract entitled "Limitation of Liability--High Value Items" (FAR 52.246-24 Alternate I):

<u>CLIN</u>
To be determined at order level.

(End of Text)

C-246-H001 EXTENSION OF COMMERCIAL WARRANTY (NAVSEA) (OCT 2018) (Oct 2018)

The Contractor shall extend to the Government the full coverage of any standard commercial warranty normally offered in a similar commercial sale, provided that such warranty is available at no additional cost to the Government. The Contractor shall provide a copy of the standard commercial warranty with the item. The standard commercial warranty period shall begin upon the final acceptance of the applicable material or software. Acceptance of the standard commercial warranty does not waive the Government's rights under the "Inspection" clause, nor does it limit the Government's rights with regard to other terms and conditions of the contract. In the event of a conflict, the terms and conditions of the contract shall take precedence over the standard commercial warranty.

(End of Text)

C-247-H001 PERMITS AND RESPONSIBILITIES (NAVSEA) (DEC 2018) (Dec 2018)

The Contractor shall, without additional expense to the Government, be responsible for obtaining any necessary licenses and permits for complying with any applicable Federal, State, and Municipal laws, codes, and regulations for shipping and transportation including, but not limited to, any movement over public highways of overweight/over dimensional materials.

(End of Text)

Section D - Packaging and Marking

Additional Regulation or Supplemental Clauses Incorporated by Full Text

D-211-H001 PACKAGING OF DATA (NAVSEA) (FEB 2022)

(Feb 2022)

Data to be delivered by Integrated Digital Environment (IDE) or other electronic media shall be as specified in the contract.

All unclassified data to be shipped shall be prepared for shipment in accordance with best commercial practice.

Classified reports, data, and documentation shall be prepared for shipment in accordance with National Industrial Security Program Operating Manual (NISPO), 32 CFR Part 117.

(End of Text)

D-211-H002 MARKING OF REPORTS (NAVSEA) (OCT 2018)

(Oct 2018)

All reports delivered by the Contractor to the Government under this contract shall prominently show on the cover of the report:

(1) name and business address of the Contractor

(2) contract number

(3) sponsor: _____ NSW Crane Code MXPQ

(Name of Individual Sponsor)

*To be completed at Award

(Name of Requiring Activity)

Crane, IN

(City and State)

(End of Text)

D-211-H004 IDENTIFICATION MARKING OF PARTS -- BASIC (NAVSEA) (OCT 2018)

(Oct 2018)

For all parts not subject to the marking requirements in DFARS 252.211-7003 - Item Unique Identification and Valuation, marking shall be accomplished in accordance with the following:

(1) Parts shall be marked in accordance with generally accepted commercial practice.

(2) In cases where parts are so small as not to permit identification marking as provided above, such parts shall be appropriately coded so as to permit ready identification.

(End of Text)

D-247-W002 UNPACKING INSTRUCTIONS (NAVSEA) (OCT 2018)

(Oct 2018)

(a) Location on Container. When practical, one set of the unpacking instructions will be placed in a heavy water-proof envelope prominently marked "UNPACKING INFORMATION" and firmly affixed to the outside of the shipping container in a protected location, preferably between the cleats on the end of the container adjacent to the identification marking. If the instructions cover a set of equipment packed in multiple containers, the instructions will be affixed to the number one container of the set. When the unpacking instructions are too voluminous to be affixed to the exterior of the container, they will be placed inside and directions for locating them will be provided in the envelope marked "UNPACKING INFORMATION".

(b) Marking Containers. When unpacking instructions are provided, shipping containers will be stenciled "CAUTION-THIS EQUIPMENT MAY BE SERIOUSLY DAMAGED UNLESS UNPACKING INSTRUCTIONS ARE CAREFULLY FOLLOWED. UNPACKING INSTRUCTIONS ARE LOCATED ___ [insert location]." When practical, this marking will be applied adjacent to the identification marking on the side of the container.

(End of Text)

D-247-H004 MARKING AND PACKING LIST(S) – BASIC (NAVSEA) (FEB 2022)

(Feb 2022)

(a) Marking. Shipments, shipping containers and palletized unit loads shall be marked in accordance with ASTM-D-3951-18 approved 1 May 2018, Standard Practice for Commercial Packing.

(b) Packing List(s). A packing list (DD Form 250 Material Inspection and Receiving Report may be used) identifying the contents of each shipment, shipping container or palletized unit load shall be provided by the Contractor with each shipment. When a contract line item identified under a single stock number includes an assortment of related items such as kit or set components, detached parts or accessories, installation hardware or material, the packing list(s) shall identify the assorted items. Where assortment of related items is included in the shipping container, a packing list identifying the contents shall be furnished.

(c) Master Packing List. In addition to the requirements in paragraph (b) above, a master packing list shall be prepared where more than one shipment, shipping container or palletized unit load comprise the contract line item being shipped. The master packing list shall be attached to the number one container and so identified.

(d) Part Identification. All items within the kit, set, installation hardware or material shall be suitably segregated and identified within the unit pack (s) or shipping container by part number and/or national stock number.

(End of Text)

D-247-W001 PROHIBITED PACKING MATERIALS (NAVSEA) (OCT 2018)

(Oct 2018)

The use of asbestos, excelsior, newspaper or shredded paper (all types including waxed paper, computer paper and similar hygroscopic or non-neutral material) is prohibited. In addition, the use of yellow wrapping or packaging material is prohibited except where used for the containment of radioactive material. Loose fill polystyrene is prohibited for shipboard use.

(End of Text)

Section E - Inspection and Acceptance

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.246-2	Inspection of Supplies-Fixed-Price.	Aug 1996		
52.246-4	Inspection of Services-Fixed-Price.	Aug 1996		
52.246-7	Inspection of Research and Development-Fixed-Price.	Aug 1996		
52.246-16	Responsibility for Supplies.	Apr 1984		

Additional Regulation or Supplemental Clauses Incorporated by Full Text

E-246-H014 INSPECTION AND ACCEPTANCE OF ENGINEERING SERVICES (NAVSEA) (OCT 2018) (Oct 2018)

Item(s) To Be Determined - Inspection and acceptance shall be made by the Contracting Officer's Representative (COR) or a designated representative of the Government.

(End of Text)

E-246-H022 INSPECTION AND TEST RECORDS (NAVSEA) (JAN 2019) (Jan 2019)

Inspection and test records shall, as a minimum, indicate the nature of the observations, number of observations made, and the number and type of deficiencies found. Data included in inspection and test records shall be complete and accurate, and shall be used for trend analysis and to assess corrective action and effectiveness. The data shall, on request, be identified and made available for on-site review by the Contracting Officer or designated Government representative.

(End of Text)

E-246-H013 INSPECTION AND ACCEPTANCE OF DATA (NAVSEA) (OCT 2018) (Oct 2018)

Inspection and acceptance of all data shall be as specified on the attached Contract Data Requirements List(s), DD Form 1423.

(End of Text)

E-246-H020 QUALITY MANAGEMENT SYSTEM REQUIREMENTS (NAVSEA) (OCT 2018) (Oct 2018)

The Contractor shall provide and maintain a quality management system that, as a minimum, adheres to the requirements of ASQ/ANSI/ISO 9001: 2015 "Quality Management Systems - Requirements" and supplemental requirements imposed by this contract. The quality management system procedures, planning, and all other documentation and data that comprise the quality management system shall be made available to the Government for review. Existing quality documents that meet the requirements of this contract may continue to be used. The Government may perform any necessary inspections, verifications, and evaluations to ascertain conformance to requirements and the adequacy of the implementing procedures. The Contractor shall flow down such standards, as applicable, to lower-tier subcontractors under instances covered in FAR 52.246-11(b) or at the direction of the Contracting Officer. The Government reserves the right to disapprove the quality management system or portions thereof when it fails to meet the contractual requirements.

(End of Text)

E-246-W007 NOTIFICATION OF INSPECTION OR TEST (NAVSEA) (OCT 2018) (Oct 2018)

The Contractor agrees to notify Scott Robertson at scott.w.robertson5.civ@us.navy.mil, in writing, when the material will be inspected and/or tested. A minimum of 14 working days is required to arrange such a visit.

(End of Text)

E-246-W004 PROCUREMENT QUALITY ASSURANCE INSPECTION AND ACCEPTANCE (NAVSEA) (OCT 2018) (Oct 2018)

(a) Initial inspection of the supplies to be furnished hereunder shall be made by NSWC Crane at the contractor's or subcontractor's plant located at _____ [insert location]. The contractor shall notify the cognizant inspector when the material is available for inspection. The place

designated for such inspections shall not be changed without authorization of the Contracting Officer. Final inspection and acceptance shall be made by NSWC Crane within 14 days after [receipt OR installation/checkout/test].

(b) Initial inspection shall consist of quality assurance at point of manufacture or assembly and check/test prior to shipment. Final inspection and acceptance will be made by the Receiving Activity after installation/check out/testing of the supplies.

(End of Text)

Section F - Deliveries or Performance

Overall Contract Delivery Period

Contractor
Destination

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.242-15	Stop-Work Order.	Aug 1989		
52.242-17	Government Delay of Work.	Apr 1984		
52.247-34	F.o.b. Destination.	Jan 1991		

Additional Regulation or Supplemental Clauses Incorporated by Full Text

F-242-H001 CONTRACTOR NOTICE REGARDING LATE DELIVERY (NAVSEA) (OCT 2018) (Oct 2018)

In the event the contractor anticipates or encounters difficulty in complying with the contract delivery schedule or date, the contractor shall immediately notify, in writing, the Contracting Officer and the cognizant Contract Administration Services Office, if assigned. The notice shall give the pertinent details; however, such notice shall not constitute a waiver by the Government of any contract delivery schedule, or of any rights or remedies provided by law or under this contract.

(End of Text)

F-247-H001 DELIVERY OF DATA (NAVSEA) (OCT 2018) (Oct 2018)

All data to be furnished under this contract shall be delivered prepaid to the destination(s) and at the time(s) specified on the Contract Data Requirements List(s), DD Form 1423.

(End of Text)

Section G - Contract Administration Data

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.201-7000	Contracting Officer's Representative.	Dec 1991		
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	Dec 2018		

DFARS Clauses Incorporated by Full Text

252.232-7006 Wide Area WorkFlow Payment Instructions. (Jan 2023)

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

TBD at order level

(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

TBD at order level

(Contracting Officer: Insert either "Invoice 2in1" or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

Field Name in WAWF	Data to be entered in WAWF
Pay Official DoDAAC	<u>TBD</u>
Issue By DoDAAC	<u>N00164</u>
Admin DoDAAC	<u>TBD</u>
Inspect By DoDAAC	<u>N00164</u>
Ship To Code	<u>N00164</u>
Ship From Code	<u>N/A</u>
Mark For Code	<u>N/A</u>
Service Approver (DoDAAC)	<u>N/A</u>
Service Acceptor (DoDAAC)	<u>N/A</u>
Accept at Other DoDAAC	<u>N/A</u>
LPO DoDAAC	<u>N/A</u>
DCAA Auditor DoDAAC	<u>N/A</u>
Other DoDAAC(s)	<u>N/A</u>

(*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")

(**Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

usn.crane.nswc-cd-crane-in.mbx.cran-acquisitn-wawf@us.navy.mil

(Contracting Officer: Insert applicable information or "Not applicable.")

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Additional Regulation or Supplemental Clauses Incorporated by Full Text

G-216-H003 Ordering Process for Multiple Award Contracts (MACS) (NAVSEA) (FEB 2024)

(Feb 2024)

(a) General. One or more orders may be issued during the performance period of this contract. The Contractor agrees to accept and perform orders issued by the Contracting Officer within the scope and within the maximum value of this contract. It is understood and agreed that the Government has no obligation to issue any orders under this contract, except the minimum order. In the event of any inconsistency between any order and this contract, this contract shall take precedence.

(b) Fair Opportunity for Orders.

(1) All orders in excess of the micro-purchase threshold to be issued under this indefinite delivery, indefinite quantity (IDIQ) MAC will be competed per FAR 16.505(b)(1), unless one of the exceptions to fair opportunity at FAR 16.505(b)(2)(i) applies. Orders will be tailored to specific project requirements and issued per the evaluation criteria established in the order solicitation.

(2) During the Fair Opportunity Process, the Government may elect to restrict competition for orders, either totally or in part, to Small Businesses or other available Small Business Administration (SBA) small business designations (i.e., 8(a), HubZone, Service Disabled Veteran Owned Small Business (SDVOSB), Economically Disadvantaged Women-Owned Small Business (EDWOSB)). The order solicitation will notify Offerors if the order will be solicited on a restricted or an unrestricted basis.

(c) Competitive Ordering Process.

(1) Pre solicitation and solicitation. All eligible IDIQ MAC holders will receive notification of the solicitation for each order via a formal Fair Opportunity Proposal Request (FOPR) and a Statement of Objectives (SOO)/or Statement of Work (SOW) with specific requirements and performance parameters. All proposed orders will incorporate all terms of the IDIQ MAC unless otherwise specified in the proposed order. IDIQ MAC holders will be provided a reasonable response period to prepare and submit proposals based on the estimated dollar value and complexity of the proposed order.

(i) The due date for the order proposals will be set forth in each solicitation.

(ii) Proposals received from IDIQ MAC holders not eligible to participate in the competition for the specific order will not be considered.

(2) Evaluation. The Government will evaluate proposals against the selection criteria contained in the order solicitation. At a minimum, evaluation criteria will include:

(i) **Factor 1: Technical Approach:** The Government will assess which Offeror's proposal provides the most complete and technically relevant solution/approach in response to the requirements and objectives. The Technical rating reflects the degree to which the proposed

approach meets or does not meet the minimum requirements or objectives through an assessment of the strengths, weaknesses, significant weaknesses, and/or deficiencies. The Offeror shall include the following in their technical proposal: (1) equipment/facilities to be used; (2) any teaming arrangements; and (3) plan for execution.

Adjectival Ratings for Factor 1: Combined Technical/Risk Rating

Color Rating	Adjectival Rating	Description
Blue	Outstanding	Proposal demonstrates an exceptional approach and understanding of the requirements and contains multiple strengths and/or at least one significant strength, and risk of unsuccessful performance is low.
Purple	Good	Proposal indicates a thorough approach and understanding of the requirements and contains at least one strength or significant strength, and risk of unsuccessful performance is low to moderate.
Green	Acceptable	Proposal meets requirements and indicates an adequate approach and understanding of the requirements, and risk of unsuccessful performance is no worse than moderate.
Yellow	Marginal	Proposal has not demonstrated an adequate approach and understanding of the requirements, and/or risk of unsuccessful performance is high.
Red	Unacceptable	Proposal does not meet requirements of the solicitation, and thus, contains one of more deficiencies and is unawardable, and/or risk of performance is unacceptably high.

Significant Strength: is an aspect of an Offeror's proposal with appreciable merit or will exceed specified performance or capability requirements to the considerable advantage of the Government during Task Order performance.

Strength: is an aspect of an Offeror's proposal that has merit or exceeds specified performance or capability requirements in a way that will be advantageous to the Government during Task Order performance.

Weakness: is a flaw in the proposal that increases the risk of unsuccessful Task Order performance.

Significant Weakness: in the proposal is a flaw that appreciably increases the risk of unsuccessful Task Order performance.

Deficiency: is a material failure of a proposal to meet a Government requirement or a combination of significant weaknesses in a proposal that increases the risk of unsuccessful Task Order performance to an unacceptable level.

Risk: is the potential for unsuccessful Task Order performance. The consideration of risk assesses the degree to which an Offeror's proposed approach to achieving the technical Factor may involve risk of disruption of schedule, increased cost or degradation of performance, the need for increased Government oversight, and the likelihood of unsuccessful Order performance.

(ii) **Factor 2: Schedule:** The Government will assess how the Offeror's proposed schedule meets the order's period of performance or final delivery date, while considering contract deliverables, milestone objectives, and dates associated with the CLIN structure (minus pricing). If an Offeror proposes to deliver earlier than solicited, the Offeror will be assessed on how achievable and realistic the tighter timeline is. The Government may determine a proposal unacceptable if the proposed schedule does not meet schedule requirements.

Adjectival Ratings for Factor 2: Combined Technical/Risk Rating

Color Rating	Adjectival Rating	Description
Blue	Outstanding	Proposal demonstrates an exceptional approach and understanding of the requirements and contains multiple strengths and/or at least one significant strength, and risk of unsuccessful performance is low.
Purple	Good	Proposal indicates a thorough approach and understanding of the requirements and contains at least one strength or significant strength, and risk of unsuccessful performance is low to moderate.
Green	Acceptable	Proposal meets requirements and indicates an adequate approach and understanding of the requirements, and risk of unsuccessful performance is no worse than moderate.

Yellow	Marginal	Proposal has not demonstrated an adequate approach and understanding of the requirements, and/or risk of unsuccessful performance is high.
Red	Unacceptable	Proposal does not meet requirements of the solicitation, and thus, contains one of more deficiencies and is unawardable, and/or risk of performance is unacceptably high.

(iii) **Factor 3: Past Performance on the contract:** The Government will assess the degree of confidence that the Offeror has the ability to supply products or services that meet users' needs, based on demonstrated record of performance on this MAC.

The Government will initially evaluate the Offeror's past performance recency, and relevancy, using the table below:

Recency: The first is to evaluate the recency of the Offerors past performance. Recency is generally expressed as a time period during which past performance references are considered relevant and is critical to establishing the relevancy of past performance information. For the purposes of the order level competition, recent orders are defined as any order issued under this MAC.

Relevance: The second is to determine how relevant a recent effort accomplished by the Offeror is to the effort to be acquired through the source selection.

Past Performance Relevancy Ratings

Adjectival Rating	Description
Very Relevant	Present/past performance effort involved essentially the same scope and magnitude of effort and complexities this solicitation requires.
Relevant	Present/past performance effort involved similar scope and magnitude of effort and complexities this solicitation requires.
Somewhat Relevant	Present/past performance effort involved some of the scope and magnitude of effort and complexities this solicitation requires.

Not Relevant	Present/past performance effort involved little or none of the scope and magnitude of effort and complexities this solicitation requires.
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Based on the above evaluation, the Government will then determine whether the Offeror's relevant past performance record provides for Substantial Confidence, Satisfactory Confidence, Neutral Confidence, Limited Confidence or No Confidence, using the descriptions in the table below:

Past Performance Confidence Assessments Rating

Adjectival Rating	Description
Substantial Confidence	Based on the offeror's recent/relevant performance record, the Government has a high expectation that the offeror will successfully perform the required effort.
Satisfactory Confidence	Based on the offeror's recent/relevant performance record, the Government has a reasonable expectation that the offeror will successfully perform the required effort.
Neutral Confidence	No recent/relevant performance record is available or the offeror's performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned. The offeror may not be evaluated favorably or unfavorably on the factor of past performance.
Limited Confidence	Based on the offeror's recent/relevant performance record, the Government has a low expectation that the offeror will successfully perform the required effort.
No Confidence	Based on the offeror's recent/relevant performance record, the Government has no expectation that the offeror will successfully perform the required effort.

Note: In the case of an offeror without a record of relevant past performance or for whom information on past performance is not available may not be evaluated favorably or unfavorably on past performance (see FAR 15.202(c)(1)). Therefore, the offeror shall be determined to have unknown (or "neutral") past performance.

(iv) **Factor 4: Price:** A total evaluation price will be based on a summation of the extended prices of all CLINs within the proposal.

The Government will assess which proposal provides the best value to the Government. Factor 1 (Technical) is significantly more important than Factor 2 (Schedule). Factor 1 (Technical) is significantly more important than Factor 3 (Past Performance). Factor 2 (Schedule) is significantly more important than Factor 3 (Past Performance). Factors Other Than Price, when combined, are significantly more important than Factor 4 (Price). The price factor becomes more important as the degree of equality of Factors Other Than Price increases, or when the price is so significantly high as to diminish the value of the technical superiority to the Government. The best value determination may result in the Government being willing to pay more for higher technical capability.

(3) Order Execution. Upon completion of evaluations of proposals for an order, the Contracting Officer will issue an order to the IDIQ MAC holder whose proposal is most advantageous to the Government under the selection criteria set forth in the order solicitation. The Government reserves the right to issue one, more than one, or no orders following completion of evaluations. The Contracting Officer will notify the IDIQ MAC holders of the selection decision.

(d) Unauthorized Work. The Contractor is not authorized to commence performance prior to issuance of a signed order. Orders shall either be funded at time of issuance, or under the authority of FAR 52.232-18, Availability of Funds (if included in the order).

(e) Ordering Authority and Tracking. Contracting Officers from the below listed activities are authorized to issue orders under this contract for services or supplies listed in Section B from contract award through the end of the ordering periods specified in Section F.

NSWC Crane

(End of text)

G-232-H002 H002 PAYMENT INSTRUCTIONS (NAVSEA) (FEB 2024)

(Feb 2024)

Payment office allocation methods can be found in the table at DFARS PGI 204.7108(b)(2) (https://www.acq.osd.mil/dpap/dars/pgi/pgi_htm/current/PGI204_71.htm#payment_instructions).

(End of text)

G-232-H005 SUPPLEMENTAL INSTRUCTIONS REGARDING INVOICING (NAVSEA) (JAN 2019)

(Jan 2019)

(a) For other than firm fixed priced contract line item numbers (CLINs), the Contractor agrees to segregate costs incurred under this contract/task order (TO), as applicable, at the lowest level of performance, either at the sub line item number (SLIN) or CLIN level, rather than at the total contract/TO level, and to submit invoices reflecting costs incurred at that level. Supporting documentation in Wide Area Workflow (WAWF) for invoices shall include summaries of work charged during the period covered as well as overall cumulative summaries by individual labor categories, rates, and hours (both straight time and overtime) invoiced; as well as, a cost break down of other direct costs (ODCs), materials, and travel, by technical instruction (TI), SLIN, or CLIN level. For other than firm fixed price subcontracts, subcontractors are also required to provide labor categories, rates, and hours (both straight time and overtime) invoiced; as well as, a cost breakdown of ODCs, materials, and

travel invoiced. Supporting documentation may be encrypted before submission to the prime contractor for WAWF invoice submittal. Subcontractors may email encryption code information directly to the Contracting Officer and Contracting Officer Representative (COR). Should the subcontractor lack encryption capability, the subcontractor may also email detailed supporting cost information directly to the Contracting Officer and COR; or other method as agreed to by the Contracting Officer.

(b) Contractors submitting payment requests and receiving reports to WAWF using either Electronic Data Interchange (EDI) or Secure File Transfer Protocol (SFTP) shall separately send an email notification to the COR and Contracting Officer on the same date they submit the invoice in WAWF. No payments shall be due if the contractor does not provide the COR and Contracting Officer email notification as required herein.

(End of Text)

G-232-W001 PROMPT PAYMENT (FAR 52.232-25) REVISED Constructive Acceptance PERIOD (Oct 2018)
(NAVSEA) (OCT 2018)

In accordance with FAR 32.904(b)(1)(ii)(B)(4), the Contracting Officer has determined that more than seven days are needed for constructive acceptance. Contractors are hereby advised that the constructive acceptance period established in paragraph (a) (5) (i) of FAR clause 52.232-25, Prompt Payment is revised to 14 working days in lieu of 7 working days.

(End of Text)

G-242-W001 CONTRACT ADMINISTRATION FUNCTIONS (NAVSEA) (OCT 2018) (Oct 2018)

(a) In accordance with FAR 42.302(a) all functions listed are delegated to the ACO except the following items to be retained by the PCO: **To be specified at time of contract award.**

_____ [List specific functions that will be retained by the PCO]

(b) In accordance with FAR 42.302(b), the following additional functions are delegated to the ACO:

_____ [List any additional functions that will be delegated to the ACO]

(End of Text)

G-242-H001 GOVERNMENT CONTRACT ADMINISTRATION POINTS-OF-CONTACT AND (Oct 2023)
RESPONSIBILITIES (NAVSEA) (OCT 2023)

(a) The Government reserves the right to administratively substitute any of the points of contact listed below at any time.

(b) The contracting officer is the only person authorized to change this contract or orders issued thereunder. The Contractor shall not comply with any order, direction or request of Government personnel - that would constitute a change - unless it is issued in writing and signed by the Contracting Officer or is pursuant to specific authority otherwise included as part of this contract. If, in the opinion of the contractor, an effort outside the existing scope of this contract is requested, the contractor shall promptly comply with the Notification of Changes clause of this contract.

(c) The points of contact are as follows:

(i) The Procuring Contracting Officer (PCO) is:

Name: Jodee Cool

Address:

Naval Surface Warfare Center, Crane Division

B. 3373, Code 0233

Crane, IN 47522

Phone: (812) 381-7229
E-mail: jodee.l.cool.civ@us.navy.mil

(ii) The Contract Specialist is:

Name: Ashley Bechtel
Address:
Naval Surface Warfare Center, Crane Division

B. 3373, Code 0233

Crane, IN 47522
Phone: (812) 381-7233
E-mail: ashley.n.bechtel2.civ@us.navy.mil

(iii) The Administrative Contracting Officer (ACO) is:

Name: TBD at order level

Address:
[*Street]
[*City, State, Zip]
Phone: (Area Code) xxx- [xxxx]
E-mail: [*]

(d) The Contracting Officer's Representative (COR) is the contracting officer's appointed representative for technical matters. The COR is not a contracting officer and does not have the authority to direct the accomplishment of effort which is beyond the scope of the contract or to otherwise change any contract requirements. An informational copy of the COR appointment letter, which provides a delineation of COR authority and responsibilities, will be provided upon award of this contract.

The Contracting Officer's Representative (COR) is:

Name: TBD at order level
Address:
[*Street]
[*City, State, Zip]
Phone: (Area Code) xxx- [xxxx]
E-mail: [*]

(e) The Technical Point of Contact (TPOC) is the contracting officer's representative for technical matters when a COR is not appointed. The TPOC is responsible for technical issues of contract administration, such as providing all items of Government Furnished Information (GFI), Government Furnished Material (GFM) and Government Furnished Equipment (GFE) if specified in the contract as well as the inspection and acceptance of all contract deliverables.

The Technical Point of Contact (TPOC) is:

Name: TBD at Award
Address:
[*Street]
[*City, State, Zip]
Phone: (Area Code) xxx- [xxxx]
E-mail: [*]

(f) The Contractor's point of contact for performance under this contract is: **TO BE FILLED IN BY OFFEROR**

Name: [*]
Address:
[*Street]
[*City, State, Zip]
Phone: (Area Code) xxx- [xxxx]
E-mail: [*]

[*] To be completed at contract award

(End of Text)

G-242-H002 HOURS OF OPERATION AND HOLIDAY SCHEDULE (NAVSEA) (JUL 2021)

(Jul 2021)

(a) The policy of this activity is to schedule periods of reduced operations or shutdown during holiday periods. Deliveries will not be accepted on Saturdays, Sundays or Holidays except as specifically requested by the [insert activity name]. All goods or services attempted to be delivered on a Saturday, Sunday or Holiday without specific instructions from the Contracting Officer or his duly appointed representative will be returned to the contractor at the contractor's expense with no cost or liability to the U. S. Government.

(b) The federal Government observes public Holidays that have been established under 5 U.S.C. 6103. The actual date of observance for each of the holidays, for a specific calendar year, may be obtained from the OPM website at OPM.GOV or by using the following direct link: <https://www.opm.gov/policy-data-oversight/pay-leave/federal-holidays/>.

(c) Delayed Opening, Early Dismissal and Closure of Government Facilities. When a Government facility has a delayed opening, is closed or Federal employees are dismissed early (due to severe weather, security threat, security exercise, or a facility related problem) that prevents personnel from working, onsite contractor personnel regularly assigned to work at that facility shall follow the same reporting and/or departure directions given to Government personnel. The contractor shall not direct charge to the contract for such time off, but shall follow parent company policies regarding taking leave (administrative or other). Non-essential contractor personnel, who are not required to remain at or report to the facility, shall follow their parent company policy regarding whether they should go/stay home or report to another company facility. Subsequent to an early dismissal, delayed opening, or during periods of inclement weather, onsite contractors should monitor the OPM website as well as radio and television announcements before departing for work to determine if the facility is closed or operating on a delayed arrival basis.

(d) When Federal employees are excused from work due to a holiday or a special event (that is unrelated to severe weather, a security threat, or a facility related problem), on site contractors shall continue working established work hours or take leave in accordance with parent company policy. Those contractor employees who take leave shall not direct charge the non-working hours to the contract. Contractors are responsible for predetermining and disclosing their charging practices for early dismissal, delayed openings, or closings in accordance with the FAR, applicable cost accounting standards, and the company's established policy and procedures. Contractors shall follow their disclosed charging practices during the contract period of performance, and shall not follow any verbal directions to the contrary. The Contracting Officer will make the determination of cost allowability for time lost due to facility closure in accordance with FAR, applicable Cost Accounting Standards, and the Contractor's established accounting policy and procedures.

(End of Text)

Section H - Special Contract Requirements

Additions to clause G-216-H003

A. General

Minimum guaranteed order as described in CLIN 0006.

B. Competitive Ordering Process

The Government may solicit multiple Technology Areas for a single Order, depending upon the Government need but the proposed solutions may vary; however, Offerors are only allowed to propose solutions within the stated Technology Areas of their contract.

C. Rolling Admissions

The Government will review MAC performance and requirements every two (2) years to determine the necessity of Rolling Admissions. The Government reserves the right to announce and issue a new Solicitation for the purpose of: (1) adding additional Contractors to meet the requirements; and (2) increase competition at the Order level. If it is determined to be in the best interest of the Government to initiate Rolling Admissions, the notification will be posted via SAM.gov. The Government will utilize the same basis of award established in the initial Solicitation. Any resulting IDIQ MAC(s) awarded will include the same terms and conditions as the current basic contract. Implementing this procedure will not affect the overall ordering period of the IDIQ MAC. Rolling Admissions will be limited to only Small Business concerns.

The Government reserves the right to provide additional evaluation criteria on each Order's SOO or SOW.

Additional Regulation or Supplemental Clauses Incorporated by Full Text

H-209-H003 REQUIRED DISCLOSURE OF ORGANIZATIONAL CONFLICT OF INTEREST (NAVSEA) (NOV 2022) (Nov 2022)

(a) "Organizational Conflict of Interest" means that because of other activities or relationships with other persons, a person is unable or potentially unable to render impartial assistance or advice to the Government, or the person's objectivity in performing the contract work is or might be otherwise impaired, or a person has an unfair competitive advantage. "Person" as used herein includes Corporations, Partnerships, Joint Ventures, and other business enterprises.

(b) The Contractor warrants that to the best of its knowledge and belief, and except as otherwise set forth in the contract, at the time of execution of this contract the Contractor does not have any organizational conflict of interest(s) as defined in paragraph (a).

(c) The Contractor agrees that, if after award, it discovers an actual or potential organizational conflict of interest, it shall make immediate and full disclosure in writing to the Contracting Officer. The notification shall

include a description of the actual or potential organizational conflict of interest, a description of the action which the Contractor has taken or proposes to take to avoid, mitigate, or neutralize the conflict, and any other relevant information that would assist the Contracting Officer in making a determination on this matter. Notwithstanding this notification, the Government may terminate the contract for the convenience of the Government if determined to be in the best interest of the Government.

(d) Notwithstanding paragraph (c) above, if the Contractor was aware, or should have been aware, of an organizational conflict of interest prior to the award of this contract or becomes, or should become, aware of an organizational conflict of interest after award of this contract and does not make an immediate and full disclosure in writing to the Contracting Officer, the Government may terminate this contract for default.

(e) If the Contractor fails to take action required by this requirement, or required by the Contracting Officer upon receipt of the Contractor's disclosure required by paragraph (c), the Government may terminate this contract for default.

(f) The Contracting Officer's decision as to the existence or nonexistence of an actual or potential organizational conflict of interest shall be final.

(g) The Contractor shall promptly notify the Contracting Officer, in writing, if it has been tasked to evaluate or advise the Government concerning its own products or activities, those of its subcontractors, those of one of its prime contractors (to which the contractor is a subcontractor), or those of a competitor in order to ensure proper safeguards exist to guarantee objectivity and to protect the Government's interest.

(h) The Contractor shall include this requirement in subcontracts of any tier which involve access to information or situations/conditions covered by the preceding paragraphs, substituting "subcontractor" for "contractor" where appropriate.

(i) The rights and remedies described herein shall not be exclusive and are in addition to other rights and remedies provided by law or elsewhere included in this contract.

(j) Compliance with this requirement is a material requirement of this contract.

(End of Text)

**H-209-H004 RESTRICTIONS RESULTING FROM POTENTIAL ORGANIZATIONAL
CONFLICT OF INTEREST (NAVSEA) (NOV 2022)**

(Nov 2022)

(a) "Organizational Conflict of Interest" means that because of other activities or relationships with other persons, a person is unable or potentially unable to render impartial assistance or advice to the Government, or the person's objectivity in performing the contract work is or might be otherwise impaired, or a person has an unfair competitive advantage. "Person" as used herein includes Corporations, Partnerships, Joint Ventures, and other business enterprises.

(b) It is recognized that the effort to be performed by the Contractor under this contract may create a potential organizational conflict of interest on the instant contract or on a future acquisition. In order to avoid this potential conflict of interest, and at the same time to avoid prejudicing the best interest of the Government, the right of the Contractor to participate in future procurement of equipment or services that are the subject of any work under this contract shall be limited in accordance with FAR 9.5.

(c) The Contractor agrees that to prevent the existence of conflicting roles and unfair competitive advantage, during the performance of this contract and for a period of three years after completion of performance of this contract, the Contractor, any affiliate, subcontractor, consultant, or employee of the Contractor, any joint venture, any entity into or with which it may subsequently merge or affiliate, or any other successor or assign of the Contractor, shall not furnish to the United States Government, either as a prime contractor or as a subcontractor, or as a consultant to a prime contractor or subcontractor, any system, component or services which is the subject of the work to be performed under this contract, unless an exception under FAR

9.505 exists. This exclusion also does not apply to any work covered by FAR 9.505-2 (a)(3) or (b)(3) or recompitation for those systems, components or services furnished pursuant to this contract.

(d) Nothing in this requirement is intended to prohibit or preclude the Contractor from marketing or selling to the United States Government its product lines in existence on the effective date of this contract; nor, shall this requirement preclude the Contractor from participating in any research and development or delivering any design development model or prototype of any such equipment. Additionally, sale of catalog or standard commercial items are exempt from this requirement.

(e) The Contractor shall include this requirement in subcontracts of any tier which involve access to information or situations/conditions covered by the preceding paragraphs, substituting "subcontractor" for "contractor" where appropriate.

(f) The rights and remedies described herein shall not be exclusive and are in addition to other rights and remedies provided by law or elsewhere included in this contract.

(g) Compliance with this requirement is a material requirement of this contract.

(End of Text)

H-246-H001 CALIBRATION SYSTEM REQUIREMENTS (NAVSEA) (FEB 2023)

(Feb 2023)

(a) Definitions:

(1) All definitions, with the exception of Commercial Service Provider, are found in OPNAVINST3960.16 (series).

(2) Commercial Service Providers. Suppliers of tools, instruments, fixtures, test, measurement, and diagnostic equipment, including original equipment manufacturers, who may calibrate their own products but are not engaged in calibration as a major line of business, and other commercial laboratories that provide either calibration services in support of Navy contracts, or low volume, model specific, or unique parameter calibration services.

(b) The accuracy of Navy and Contractor calibrated equipment used for quantitative and qualitative measurements are ensured through measurement traceability. The Contractor is required to ensure that all calibrated equipment used for quantitative or qualitative measurements required for the research, design, test, production, and maintenance of NAVSEA systems will be maintained and calibrated in accordance with references OPNAVINST 3960.16 and NAVSEAINST 4734.1. Calibration sources shall be accredited by a U.S. based, Navy approved accreditation body to U.S. national standards:

(1) ANSI/NCSL Z540.3, Requirements for the Calibration of Measuring and Test Equipment, dated 3 Aug 2006; or

(2) ISO/IEC 17025:2017, General Requirements for the Competence of Testing and Calibration Laboratories (3rd Edition), dated 29 Nov 2017; or

(3) Certified by the U.S. Navy to NAVSEA 04-4734, Navy and Marine Corps Calibration Laboratory Audit /Certification Manual.

(c) ISO/IEC 17025:2017 and ANSI/NCSL Z540.3 accreditations must be performed by a U.S. based accreditation body. Calibration accreditation must include the parameters required to execute the calibration at appropriate ranges and tolerances. A calibration certificate meeting the requirements of ANSI/NCSL Z540.3 or ISO/IEC 17025:2017 must be provided with the returned calibrated unit. The calibration certificate must be evaluated to confirm that the calibration was performed within the laboratory's accreditation scope and that each calibration measurement met or exceeded a 4:1 Test Uncertainty Ratio (TUR).

(d) Certification to Navy standard NAVSEA 04-4734, is acceptable in place of ANSI/NCSL Z540.3 and ISO /IEC 17025:2017 accreditations. For activities certified to NAVSEA 04-4734, calibrations must be evaluated to confirm that the calibration was performed within the laboratory's NAVSEA scope of certification, and calibration event records shall be provided to the Government upon request. Calibration intervals that deviate from NAVSEA OD 45845, Metrology Requirements List (METRL), shall reflect Test, Measurement and Diagnostic Equipment (TMDE) end of period reliability greater than 85%. TMDE reliability data shall be provided upon request. TURs shall be greater than or equal to 4:1, or ensure a Probability of False Acceptance (PFA) of 2% or less and a Probability of False Rejections (PFR) of 15% or less. Measurement traceability, including TUR, PFA, and PFR shall be documented in accordance to MIL-STD-1839. Calibration procedures, methods, and measurement traceability used by the Contractor shall be provided to the Government upon request.

(e) All calibrations supporting this contract shall meet the requirements of OPNAVINST 3960.16. If the Contractor executes, subcontracts or outsources the initial or reoccurring calibration of calibrated equipment, the respective calibration laboratory, and all of their employees who perform calibration or supply calibrated equipment, shall be certified or accredited to the requirements of paragraphs (b), (c), and (d).

(f) Contractors electing certification to NAVSEA 04-4734 will contact the Contracting Officer's Representative (COR) or Technical Point of Contact (TPOC) within 60 days of contract award, who will then contact the NAVSEA09MM METCAL Technical Warrant Holder (TWH), at NAVSEA_METCAL_INSERTSERVICE@us.navy.mil, to begin the Navy certification process.

(End of Text)

Section I - Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.202-1	Definitions.	Jun 2020		
52.203-3	Gratuities.	Apr 1984		
52.203-5	Covenant Against Contingent Fees.	May 2014		
52.203-6	Restrictions on Subcontractor Sales to the Government.	Jun 2020		
52.203-7	Anti-Kickback Procedures.	Jun 2020		
52.203-8	Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity.	May 2014		
52.203-10	Price or Fee Adjustment for Illegal or Improper Activity.	May 2014		
52.203-12	Limitation on Payments to Influence Certain Federal Transactions.	Jun 2020		
52.203-13	Contractor Code of Business Ethics and Conduct.	Nov 2021		
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	Jan 2017		
52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards. (Deviation)	Feb 2026		
52.204-13	System for Award Management-Maintenance. (Deviation)	Feb 2026		
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Deviation)	Feb 2026		
52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters. (Deviation)	Feb 2026		
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations. (Deviation)	Feb 2026		
52.210-1	Market Research. (Deviation)	Feb 2026		
52.211-5	Material Requirements. (Deviation)	Feb 2026		
52.211-15	Defense Priority and Allocation Requirements.	Apr 2008		
52.215-2	Audit and Records-Negotiation. (Deviation)	Feb 2026		
52.215-8	Order of Precedence-Uniform Contract Format. (Deviation)	Feb 2026		
52.215-10	Price Reduction for Defective Certified Cost or Pricing Data.	Aug 2011		
52.215-12	Subcontractor Certified Cost or Pricing Data. (Deviation)	Feb 2026		
52.215-14	Integrity of Unit Prices.	Nov 2021		
52.215-21	Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data-Modifications. (Deviation)	Feb 2026		
52.219-6	Notice of Total Small Business Set-Aside. (Deviation)	Feb 2026		
52.219-8	Utilization of Small Business Concerns. (Deviation)	Feb 2026		
52.219-13	Notice of Set-Aside of Orders.	Mar 2020		
52.219-33	Nonmanufacturer Rule. (Deviation)	Feb 2026		
52.222-3	Convict Labor. (Deviation)	Feb 2026		
52.222-4	Contract Work Hours and Safety Standards-Overtime Compensation. (Deviation)	Feb 2026		
52.222-19	Child Labor-Cooperation with Authorities and Remedies. (Deviation)	Feb 2026		
52.222-20	Contracts for Materials, Supplies, Articles, and Equipment. (Deviation)	Feb 2026		
52.222-35	Equal Opportunity for Veterans. (Deviation)	Feb 2026		
52.222-36	Equal Opportunity for Workers with Disabilities. (Deviation)	Feb 2026		
52.222-37	Employment Reports on Veterans. (Deviation)	Feb 2026		
52.222-40	Notification of Employee Rights Under the National Labor Relations Act. (Deviation)	Feb 2026		
52.222-41	Service Contract Labor Standards. (Deviation)	Feb 2026		
52.222-44	Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment. (Deviation)	Feb 2026		
52.222-50	Combating Trafficking in Persons. (Deviation)	Feb 2026		
52.222-54	Employment Eligibility Verification. (Deviation)	Feb 2026		
52.222-55	Minimum Wages for Contractor Workers Under Executive Order 14026. (Deviation)	Feb 2026		
52.222-62	Paid Sick Leave Under Executive Order 13706. (Deviation)	Feb 2026		
52.223-23	Sustainable Products. (Deviation)	Feb 2026		
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	May 2024		
52.227-1	Authorization and Consent. (Alternate I)	Jun 2020	Alternate I	Apr 1984
52.227-2	Notice and Assistance Regarding Patent and Copyright Infringement.	Jun 2020		
52.227-3	Patent Indemnity.	Apr 1984		
52.227-13	Patent Rights-Ownership by the Government.	Dec 2007		
52.229-3	Federal, State, and Local Taxes.	Feb 2013		
52.232-1	Payments.	Apr 1984		
52.232-2	Payments under Fixed-Price Research and Development Contracts.	Apr 1984		
52.232-8	Discounts for Prompt Payment.	Feb 2002		
52.232-11	Extras.	Apr 1984		
52.232-17	Interest.	May 2014		
52.232-25	Prompt Payment.	Jan 2017		
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	Oct 2018		
52.232-39	Unenforceability of Unauthorized Obligations.	Jun 2013		
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	Mar 2023		
52.233-1	Disputes. (Deviation)	Feb 2026		
52.233-3	Protest after Award. (Deviation)	Feb 2026		

52.233-4	Applicable Law for Breach of Contract Claim. (Deviation)	Feb 2026		
52.240-91	Security Prohibitions and Exclusions. (Deviation)	Feb 2026		
52.242-13	Bankruptcy.	Jul 1995		
52.243-1	Changes-Fixed-Price. (Deviation)	Feb 2026		
52.243-1	Changes-Fixed-Price. (Deviation) (Alternate V)	Feb 2026	Alternate V	Feb 2026
52.243-1	Changes-Fixed-Price. (Deviation) (Alternate II)	Feb 2026	Alternate II	Feb 2026
52.244-6	Subcontracts for Commercial Products and Commercial Services. (Deviation)	Feb 2026		
52.245-1	Government Property.	Sep 2021		
52.245-9	Use and Charges.	Apr 2012		
52.246-23	Limitation of Liability.	Feb 1997		
52.246-24	Limitation of Liability-High-Value Items.	Feb 1997		
52.246-25	Limitation of Liability-Services.	Feb 1997		
52.246-26	Reporting Nonconforming Items.	Aug 2024		
52.249-1	Termination for Convenience of the Government (Fixed-Price) (Short Form).	Apr 1984		
52.249-2	Termination for Convenience of the Government (Fixed-Price).	Apr 2012		
52.249-8	Default (Fixed-Price Supply and Service).	Apr 1984		
52.249-9	Default (Fixed-Price Research and Development).	Apr 1984		
52.253-1	Computer Generated Forms. (Deviation)	Feb 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	Sep 2011		
252.203-7001	Prohibition on Persons Convicted of Fraud or Other Defense-Contract-Related Felonies.	Jan 2023		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	Dec 2022		
252.203-7003	Agency Office of the Inspector General.	Aug 2019		
252.203-7004	Display of Hotline Posters.	Jan 2023		
252.204-7003	Control of Government Personnel Work Product.	Apr 1992		
252.204-7009	Limitations on the Use or Disclosure of Third-Party Contractor Reported Cyber Incident Information.	Jan 2023		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting. (DEVIATION 2024-O0013 REVISION 1)	May 2024	Deviation 2024-O0013	May 2024
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	Jan 2023		
252.205-7000	Provision of Information to Cooperative Agreement Holders.	Oct 2024		
252.209-7004	Subcontracting with Firms that are Owned or Controlled by the Government of a Country that is a State Sponsor of Terrorism.	May 2019		
252.211-7008	Use of Government-Assigned Serial Numbers.	Sep 2010		
252.222-7006	Restrictions on the Use of Mandatory Arbitration Agreements.	Jan 2023		
252.223-7006	Prohibition on Storage, Treatment, and Disposal of Toxic or Hazardous Materials.	Sep 2014		
252.223-7008	Prohibition of Hexavalent Chromium.	Jan 2023		
252.225-7001	Buy American and Balance of Payments Program.	Feb 2024		
252.225-7002	Qualifying Country Sources as Subcontractors.	Mar 2022		
252.225-7004	Report of Intended Performance Outside the United States and Canada - Submission after Award.	Jul 2024		
252.225-7009	Restriction on Acquisition of Certain Articles Containing Specialty Metals.	Jan 2023		
252.225-7012	Preference for Certain Domestic Commodities.	Apr 2022		
252.225-7021	Trade Agreements.	Feb 2024		
252.225-7030	Restriction on Acquisition of Carbon, Alloy, and Armor Steel Plate.	Dec 2006		
252.225-7048	Export-Controlled Items.	Jun 2013		
252.225-7052	Restriction on the Acquisition of Certain Magnets, Tantalum, and Tungsten.	May 2024		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	Jan 2023		
252.225-7058	Postaward Disclosure of Employment of Individuals Who Work in the People's Republic of China.	Jan 2023		
252.226-7001	Utilization of Indian Organizations, Indian-Owned Economic Enterprises, and Native Hawaiian Small Business Concerns.	Jan 2023		
252.227-7013	Rights in Technical Data-Other Than Commercial Products and Commercial Services.	Aug 2025		
252.227-7016	Rights in Bid or Proposal Information.	Jan 2025		
252.227-7025	Limitations on the Use or Disclosure of Government-Furnished	Jan 2025		
252.227-7027	Deferred Ordering of Technical Data or Computer Software.	Apr 1988		
252.227-7030	Technical Data-Withholding of Payment.	Mar 2000		
252.227-7037	Validation of Asserted Restrictions on Technical Data.	Jan 2025		
252.232-7010	Levies on Contract Payments.	Dec 2006		
252.235-7011	Final Scientific or Technical Report.	Dec 2019		
252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel.	Jan 2023		
252.240-7997	NIST SP 800-171 DoD Assessment Requirements. (DEVIATION 2026-O0025)	Feb 2026	Deviation 2026-O0025	Feb 2026

252.243-7001	Pricing of Contract Modifications.	Dec 1991
252.243-7002	Requests for Equitable Adjustment.	Dec 2022
252.244-7000	Subcontracts for Commercial Products or Commercial Services.	Nov 2023
252.245-7000	Government-Furnished Mapping, Charting, and Geodesy Property.	Apr 2012
252.245-7003	Contractor Property Management System Administration	Jan 2025
252.245-7005	Management and Reporting of Government Property.	Jan 2024
252.246-7006	Warranty Tracking of Serialized Items.	Mar 2016
252.246-7008	Sources of Electronic Parts.	Jan 2023
252.247-7023	Transportation of Supplies by Sea.	Oct 2024

FAR Clauses Incorporated by Full Text

52.204-19 Incorporation by Reference of Representations and Certifications. (Dec 2014)

INCORPORATION BY REFERENCE OF REPRESENTATIONS AND CERTIFICATIONS (DEC 2014)

The Contractor's representations and certifications, including those completed electronically via the System for Award Management (SAM), are incorporated by reference into the contract.

(End of clause)

52.215-21 Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data-Modifications. (Alternate III) (Feb 2026) Alternate III (Oct 1997)

Alternate III (OCT 1997). As prescribed in 15.110(u)(3), add the following paragraph (c) to the basic clause (if Alternate II is also used, redesignate the following paragraph as paragraph (d)):

(c) Submit the cost portion of the proposal via the following electronic media: email[Insert media format]

52.216-18 Ordering. (Aug 2020)

ORDERING (AUG 2020)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from date of award through 5 years after date of award[insert dates].

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when-

(1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;

(2) If sent by fax, the Government transmits the order to the Contractor's fax number; or

(3) If sent electronically, the Government either-

(i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or

(ii) Distributes the delivery order or task order via email to the Contractor's email address.

(d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of clause)

52.216-19 Order Limitations. (Oct 1995)

ORDER LIMITATIONS (OCT 1995)

(a) *Minimum order*. When the Government requires supplies or services covered by this contract in an amount of less than \$1,000[insert dollar figure or quantity], the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) *Maximum order*. The Contractor is not obligated to honor-

(1) Any order for a single item in excess of 25,000,000[insert dollar figure or quantity];

(2) Any order for a combination of items in excess of 25,000,000[insert dollar figure or quantity]; or

(3) A series of orders from the same ordering office within 5 days that together call for quantities exceeding the limitation in paragraph (b)(1) or (2) of this section.

(c) If this is a requirements contract (i.e., includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within 3 days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of clause)

52.216-22 Indefinite Quantity. (Deviation)

(Feb 2026)

INDEFINITE QUANTITY (FEB 2026) (DEVIATION)

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the ordering period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order, which may include order options to be exercised after the ordering period of this contract but before the end of the period of performance of the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order, including options exercised, to the same extent as if the order were completed during the contract's ordering period; provided, that the Contractor shall not be required to make any deliveries under this contract after 5 years + 6 months[insert date].

(End of clause)

52.216-32 Task-Order and Delivery-Order Ombudsman.

(Sep 2019)

TASK-ORDER AND DELIVERY-ORDER OMBUDSMAN (SEPT 2019)

(a) In accordance with 41 U.S.C. 4106(g), the Agency has designated the following task-order and delivery-order Ombudsman for this contract. The Ombudsman must review complaints from the Contractor concerning all task-order and delivery-order actions for this contract and ensure the Contractor is afforded a fair opportunity for consideration in the award of orders, consistent with the procedures in the contract. Mr. Steven Nickle, Deputy Assistant Secretary of the Navy (Procurement)1000 Navy Pentagon, Washington, DC 20350Phone (703) 614-9600, Fax (703) 614-9394, and email NCAG@navy.mil[Contracting Officer to insert name, address, telephone number, and email address for the Agency Ombudsman or provide the URL address where this information may be found.]

(b) Consulting an ombudsman does not alter or postpone the timeline for any other process (e.g., protests).

(c) Before consulting with the Ombudsman, the Contractor is encouraged to first address complaints with the Contracting Officer for resolution. When requested by the Contractor, the Ombudsman may keep the identity of the concerned party or entity confidential, unless prohibited by law or agency procedure.

(End of clause)

52.217-8 Option to Extend Services.

(Nov 1999)

OPTION TO EXTEND SERVICES (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within TBD at order level[insert the period of time within which the Contracting Officer may exercise the option].

(End of clause)

52.217-9 Option to Extend the Term of the Contract.

(Mar 2000)

OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within TBD at order level[insert the period of time within which the Contracting Officer may exercise the option]; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least TBD at order level days[60days unless a different number of days is inserted] before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed TBD at order level(months) (years).

(End of clause)

52.219-14 Limitations on Subcontracting (DEVIATION 2021-O0008)

(Feb 2026) Deviation 2021-O0008 (Feb 2023)

LIMITATIONS ON SUBCONTRACTING (FEB 2023) (DEVIATION 2021-O0008)

(a) This clause does not apply to the unrestricted portion of a partial set-aside.

(b) *Definition.* *Similarly situated entity*, as used in this clause, means a first-tier subcontractor, including an independent contractor, that--

(1) Has the same small business program status as that which qualified the prime contractor for the award (e.g., for a small business set-aside contract, any small business concern, without regard to its socioeconomic status); and

(2) Is considered small for the size standard under the North American Industry Classification System (NAICS) code the prime contractor assigned to the subcontract.

(c) *Applicability.* This clause applies only to--

(1) Contracts that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(2) Part or parts of a multiple-award contract that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(3) Contracts that have been awarded on a sole-source basis in accordance with subparts 19.8, 19.13, 19.14, and 19.15;

(4) Orders expected to exceed the simplified acquisition threshold and that are--

(i) Set aside for small business concerns under multiple-award contracts, as described in 8.405-5 and 16.505(b)(2)(i)(F); or

(ii) Issued directly to small business concerns under multiple-award contracts as described in 19.504(c)(1)(ii);

(5) Orders, regardless of dollar value, that are--

(i) Set aside in accordance with subparts 19.8, 19.13, 19.14, or 19.15 under multiple-award contracts, as described in 8.405-5 and 16.505(b)(2)(i)(F); or

(ii) Issued directly to concerns that qualify for the programs described in subparts 19.8, 19.13, 19.14, or 19.15 under multiple-award contracts, as described in 19.504(c)(1)(ii); and

(6) Contracts using the HUBZone price evaluation preference to award to a HUBZone small business concern unless the concern waived the evaluation preference.

(d) *Independent contractors.* An independent contractor shall be considered a subcontractor.

(e) *Limitations on subcontracting.* By submission of an offer and execution of a contract, the Contractor agrees that in performance of a contract assigned a North American Industry Classification System (NAICS) code for--

(1) Services (except construction), it will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding certain other direct costs and certain work performed outside the United States (see paragraph (e)(1)(i)), to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract. The following services may be excluded from the 50 percent limitation:

(i) Other direct costs, to the extent they are not the principal purpose of the acquisition and small business concerns do not provide the service. Examples include airline travel, work performed by a transportation or disposal entity under a contract assigned the environmental remediation NAICS code 562910), cloud computing services, or mass media purchases.

(ii) Work performed outside the United States on awards made pursuant to the Foreign Assistance Act of 1961, or work performed outside the United States required to be performed by a local contractor.

(2) Supplies (other than procurement from a nonmanufacturer of such supplies), it will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both supplies and services, the 50 percent limitation shall apply only to the supply portion of the contract;

(3) General construction, it will not pay more than 85 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 85 percent subcontract amount that cannot be exceeded; or

(4) Construction by special trade contractors, it will not pay more than 75 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 75 percent subcontract amount that cannot be exceeded.

(f) The Contractor shall comply with the limitations on subcontracting as follows:

(1) For contracts, in accordance with paragraphs (c)(1), (2), (3) and (6) of this clause--

[] By the end of the base term of the contract and then by the end of each subsequent option period; or

[X] By the end of the performance period for each order issued under the contract.

(2) For orders, in accordance with paragraphs (c)(4) and (5) of this clause, by the end of the performance period for the order.

(g) A joint venture agrees that, in the performance of the contract, the applicable percentage specified in paragraph (e) of this clause will be performed by the aggregate of the joint venture participants.

(1) In a joint venture comprised of a small business protege and its mentor approved by the Small Business Administration, the small business protege shall perform at least 40 percent of the work performed by the joint venture. Work performed by the small business protege in the joint venture must be more than administrative functions.

(2) In an 8(a) joint venture, the 8(a) participant(s) shall perform at least 40 percent of the work performed by the joint venture. Work performed by the 8(a) participants in the joint venture must be more than administrative functions.

(End of clause)

52.219-28 Postaward Small Business Program Rerepresentation. (Deviation)

(Feb 2026)

POSTAWARD SMALL BUSINESS PROGRAM REREPRESENTATION (FEB 2026) (DEVIATION)

(a) *Definitions.* As used in this clause-

Long-term contract means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217-8, Option to Extend Services, or other appropriate authority.

Small business concern-

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (c) of this clause.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

(b) If the Contractor represented that it was a small business concern, a small disadvantaged business concern, or a joint venture that was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (e) of this clause or, if applicable, paragraph (g) of this clause, upon occurrence of any of the following:

(1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.

(2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.

(3) For long-term contracts-

(i) Within 60 to 120 days prior to the end of the fifth year of the contract; and

(ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.

(c) The Contractor shall rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at <https://www.sba.gov/document/support--table-size-standards>.

(d) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a construction or service contract, is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition-

(1) Was set aside for small business and has a value above the simplified acquisition threshold;

(2) Used the HUBZone price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or

(3) Was an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(e) Except as provided in paragraph (g) of this clause, the Contractor shall make the representation(s) required by paragraph (b) of this clause by validating or updating all its representations in the Representations and Certifications section of the System for Award Management (SAM) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting officer in writing within the timeframes specified in paragraph (b) of this clause, that the data have been validated or updated, and provide the date of the validation or update.

(f) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (e) or (g) of this clause.

(g) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along with the contract number and the date on which the rerepresentation was completed:

(1) The Contractor represents that it ☐ is, ☐ is not a small business concern under ____ NAICS Code assigned to ____ contract number.

(2) *[Complete only if the Contractor represented itself as a small business concern in paragraph (g)(1) of this clause.]* The Contractor represents that it ☐ is, ☐ is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) *Women-owned small business (WOSB) joint venture eligible under the WOSB Program.* The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [____ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(4) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [____ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(5) *Service-disabled veteran-owned small business (SDVOSB) joint venture eligible under the SDVOSB Program.* The Contractor represents that it ☐ is, ☐ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [____ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(6) *HUBZone joint venture eligible under the HUBZone Program.* *[Complete only if the offeror is a HUBZone small business concern.]* The offeror represents, as part of its offer, that It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [____ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.] Each HUBZone small business concern participating in the HUBZone joint venture must be certified as a HUBZone concern. [____ Contractor to sign and date and insert authorized signer's name and title.]

(End of clause)

52.222-49 Service Contract Labor Standards-Place of Performance Unknown. (Deviation)

(Feb 2026)

SERVICE CONTRACT LABOR STANDARDS-PLACE OF PERFORMANCE UNKNOWN (FEB 2026) (DEVIATION)

(a) This contract is subject to the Service Contract Labor Standards statute, and the place of performance was unknown when the solicitation was issued. In addition to places or areas identified in wage determinations, if any, attached to the solicitation, wage determinations have also been requested for the following: TBD[insert places or areas]. The Contracting Officer will request wage determinations for additional places or areas of performance if asked to do so in writing by TBD[insert time and date].

(b) Offerors who intend to perform in a place or area of performance for which a wage determination has not been attached or requested may nevertheless submit bids or proposals. However, a wage determination must be requested and incorporated in the resultant contract retroactive to the date of contract award, and there shall be no adjustment in the contract price.

(End of clause)

52.223-11 Ozone-Depleting Substances. (Deviation)

(Feb 2026)

OZONE-DEPLETING SUBSTANCES (FEB 2026) (DEVIATION)

(a) *Definition.* As used in this clause-

Ozone-depleting substance means any substance the Environmental Protection Agency designates in 40 CFR part 82 as-

- (1) Class I, including, but not limited to, chlorofluorocarbons, halons, carbon tetrachloride, and methyl chloroform; or
- (2) Class II, including, but not limited to, hydrochlorofluorocarbons.

(b) *Requirement.* In accordance with 40 CFR 82.84(a)(5), the Contractor shall label products that contain or are manufactured with ozone-depleting substances in the manner and to the extent required by 42 U.S.C. 7671j(b), (c), (d), and (e) and 40 CFR part 82, subpart E, as follows:

Warning: Contains (or manufactured with, if applicable) *_____, a substance(s) which harm(s) public health and environment by destroying ozone in the upper atmosphere.

* The Contractor shall insert the name of the substance(s).

(End of clause)

52.248-1 Value Engineering. (Deviation)

(Feb 2026)

VALUE ENGINEERING (FEB 2026) (DEVIATION)

(a) *General.* The Contractor is encouraged to develop, prepare, and submit value engineering change proposals (VECP's) voluntarily. The Contractor shall share in any net acquisition savings realized from accepted VECP's, in accordance with the incentive sharing rates in paragraph (f) of this clause.

(b) *Definitions.*

Acquisition savings, as used in this clause, means savings resulting from the application of a VECP to contracts awarded by the same contracting office or its successor for essentially the same unit. Acquisition savings include-

- (1) Instant contract savings, which are the net cost reductions on this, the instant contract, and which are equal to the instant unit cost reduction multiplied by the number of instant contract units affected by the VECP, less the Contractor's allowable development and implementation costs;
- (2) Concurrent contract savings, which are net reductions in the prices of other contracts that are definitized and ongoing at the time the VECP is accepted; and
- (3) Future contract savings, which are the product of the future unit cost reduction multiplied by the number of future contract units in the sharing base. On an instant contract, future contract savings include savings on increases in quantities after VECP acceptance that are due to contract modifications, exercise of options, additional orders, and funding of subsequent year requirements on a multiyear contract.

Collateral costs means agency costs of operation, maintenance, logistic support, or Government-furnished property.

Collateral savings, as used in this clause, means those measurable net reductions resulting from a VECP in the agency's overall projected collateral costs, exclusive of acquisition savings, whether or not the acquisition cost changes.

Contracting office includes any contracting office that the acquisition is transferred to, such as another branch of the agency or another agency's office that is performing a joint acquisition action.

Contractor's development and implementation costs, as used in this clause, means those costs the Contractor incurs on a VECP specifically in developing, testing, preparing, and submitting the VECP, as well as those costs the Contractor incurs to make the contractual changes required by Government acceptance of a VECP.

Future unit cost reduction, as used in this clause, means the instant unit cost reduction adjusted as the Contracting Officer considers necessary for projected learning or changes in quantity during the sharing period. It is calculated at the time the VECP is accepted and applies either-

- (1) Throughout the sharing period, unless the Contracting Officer decides that recalculation is necessary because conditions are significantly different from those previously anticipated; or

(2) To the calculation of a lump-sum payment, which cannot later be revised.

Government costs, as used in this clause, means those agency costs that result directly from developing and implementing the VECP, such as any net increases in the cost of testing, operations, maintenance, and logistics support. The term does not include the normal administrative costs of processing the VECP or any increase in this contract's cost or price resulting from negative instant contract savings.

Instant contract, as used in this clause, means this contract, under which the VECP is submitted. It does not include increases in quantities after acceptance of the VECP that are due to contract modifications, exercise of options, or additional orders. If this is a multiyear contract, the term does not include quantities funded after VECP acceptance. If this contract is a fixed-price contract with prospective price redetermination, the term refers to the period for which firm prices have been established.

Instant unit cost reduction means the amount of the decrease in unit cost of performance (without deducting any Contractor's development or implementation costs) resulting from using the VECP on this, the instant contract. If this is a service contract, the instant unit cost reduction is normally equal to the number of hours per line-item task saved by using the VECP on this contract, multiplied by the appropriate contract labor rate.

Negative instant contract savings means the increase in the cost or price of this contract when the acceptance of a VECP results in an excess of the Contractor's allowable development and implementation costs over the product of the instant unit cost reduction multiplied by the number of instant contract units affected.

Net acquisition savings means total acquisition savings, including instant, concurrent, and future contract savings, less Government costs.

Sharing base, as used in this clause, means the number of affected end items on contracts of the contracting office accepting the VECP.

Sharing period, as used in this clause, means the period beginning with acceptance of the first unit incorporating the VECP and ending at a calendar date or event determined by the contracting officer for each VECP.

Unit, as used in this clause, means the item or task to which the Contracting Officer and the Contractor agree the VECP applies.

Value engineering change proposal (VECP) means a proposal that-

(1) Requires a change to this, the instant contract, to implement; and

(2) Results in reducing the overall projected cost to the agency without impairing essential functions or characteristics; *provided*, that it does not involve a change-

(i) In deliverable end item quantities only;

(ii) In research and development (R&D) end items or R&D test quantities that is due solely to results of previous testing under this contract; or

(iii) To the contract type only.

(c) *VECP preparation*. As a minimum, the Contractor shall include in each VECP the information described in paragraphs (c)(1) through (8) of this clause. If the proposed change is affected by contractually required configuration management or similar procedures, the instructions in those procedures relating to format, identification, and priority assignment shall govern VECP preparation. The VECP shall include the following:

(1) A description of the difference between the existing contract requirement and the proposed requirement, the comparative advantages and disadvantages of each, a justification when an item's function or characteristics are being altered, the effect of the change on the end item's performance, and any pertinent objective test data.

(2) A list and analysis of the contract requirements that must be changed if the VECP is accepted, including any suggested specification revisions.

(3) Identification of the unit to which the VECP applies.

(4) A separate, detailed cost estimate for (i) the affected portions of the existing contract requirement and (ii) the VECP. The cost reduction associated with the VECP shall take into account the Contractor's allowable development and implementation costs, including any amount attributable to subcontracts under the Subcontracts paragraph of this clause.

(5) A description and estimate of costs the Government may incur in implementing the VECP, such as test and evaluation and operating and support costs.

(6) A prediction of any effects the proposed change would have on collateral costs to the agency.

(7) A statement of the time by which a contract modification accepting the VECP must be issued in order to achieve the maximum cost reduction, noting any effect on the contract completion time or delivery schedule.

(8) Identification of any previous submissions of the VECP, including the dates submitted, the agencies and contract numbers involved, and previous Government actions, if known.

(d) *Submission*. The Contractor shall submit VECP's to the Contracting Officer, unless this contract states otherwise. If this contract is administered by other than the contracting office, the Contractor shall submit a copy of the VECP simultaneously to the Contracting Officer and to the Administrative Contracting Officer.

(e) Government action.

(1) The Contracting Officer will notify the Contractor of the status of the VECP within 45 calendar days after the contracting office receives it. If additional time is required, the Contracting Officer will notify the Contractor within the 45-day period and provide the reason for the delay and the expected date of the decision. The Government will process VECP's expeditiously; however, it will not be liable for any delay in acting upon a VECP.

(2) If the VECP is not accepted, the Contracting Officer will notify the Contractor in writing, explaining the reasons for rejection. The Contractor may withdraw any VECP, in whole or in part, at any time before it is accepted by the Government. The Contracting Officer may require that the Contractor provide written notification before undertaking significant expenditures for VECP effort.

(3) Any VECP may be accepted, in whole or in part, by the Contracting Officer's award of a modification to this contract citing this clause and made either before or within a reasonable time after contract performance is completed. Until such a contract modification applies a VECP to this contract, the Contractor shall perform in accordance with the existing contract. The decision to accept or reject all or part of any VECP is a unilateral decision made solely at the discretion of the Contracting Officer.

(f) *Sharing rates.* If a VECP is accepted, the Contractor shall share in net acquisition savings according to the percentages shown in the table below. The percentage paid the Contractor depends upon-

(1) This contract's type (fixed-price, incentive, or cost-reimbursement);

(2) The sharing arrangement specified in paragraph (a) of this clause (incentive, program requirement, or a combination as delineated in the Schedule); and

(3) The source of the savings (the instant contract, or concurrent and future contracts), as follows:

Contractor's Share of Net Acquisition Savings (Figure in Percent)				
	Sharing arrangement			
Contract Type	Incentive (Voluntary)		Program Requirement (Mandatory)	
	Instant Contract Rate	Concurrent and Future Contract Rate	Instant Contract Rate	Concurrent and Future Contract Rate
Fixed-price (includes fixed-price-award-fee; excludes other fixed-price incentive contracts)	*50	*50	25	25
Incentive (fixed-price or cost) (other than award fee)	(**)	*50	(**)	25
Cost-reimbursement (includes cost-plus-award-	***25	***25	15	15

fee; excludes other cost-type incentive contracts)				
* The Contracting Office may increase the Contractor's sharing rate to as high as 75 percent for each VECP.				
** Same sharing arrangement as the contract's profit or fee adjustment formula.				
*** The Contracting Office may increase the Contractor's sharing rate to as high as 50 percent for each VECP.				

(g) Calculating net acquisition savings.

(1) Acquisition savings are realized when (i) the cost or price is reduced on the instant contract, (ii) reductions are negotiated in concurrent contracts, (iii) future contracts are awarded, or (iv) agreement is reached on a lump-sum payment for future contract savings (see paragraph (i)(4) of this clause). Net acquisition savings are first realized, and the Contractor shall be paid a share, when Government costs and any negative instant contract savings have been fully offset against acquisition savings.

(2) Except in incentive contracts, Government costs and any price or cost increases resulting from negative instant contract savings shall be offset against acquisition savings each time such savings are realized until they are fully offset. Then, the Contractor's share is calculated by multiplying net acquisition savings by the appropriate Contractor's percentage sharing rate (see paragraph (f) of this clause). Additional Contractor shares of net acquisition savings shall be paid to the Contractor at the time realized.

(3) If this is an incentive contract, recovery of Government costs on the instant contract shall be deferred and offset against concurrent and future contract savings. The Contractor shall share through the contract incentive structure in savings on the instant contract items affected. Any negative instant contract savings shall be added to the target cost or to the target price and ceiling price, and the amount shall be offset against concurrent and future contract savings.

(4) If the Government does not receive and accept all items on which it paid the Contractor's share, the Contractor shall reimburse the Government for the proportionate share of these payments.

(h) *Contract adjustment.* The modification accepting the VECP (or a subsequent modification issued as soon as possible after any negotiations are completed) shall-

(1) Reduce the contract price or estimated cost by the amount of instant contract savings, unless this is an incentive contract;

(2) When the amount of instant contract savings is negative, increase the contract price, target price and ceiling price, target cost, or estimated cost by that amount;

(3) Specify the Contractor's dollar share per unit on future contracts, or provide the lump-sum payment;

(4) Specify the amount of any Government costs or negative instant contract savings to be offset in determining net acquisition savings realized from concurrent or future contract savings; and

(5) Provide the Contractor's share of any net acquisition savings under the instant contract in accordance with the following:

(i) Fixed-price contracts-add to contract price.

(ii) Cost-reimbursement contracts-add to contract fee.

(i) Concurrent and future contract savings.

(1) Payments of the Contractor's share of concurrent and future contract savings shall be made by a modification to the instant contract in accordance with paragraph (h)(5) of this clause. For incentive contracts, shares shall be added as a separate firm-fixed-price line item on the instant contract. The Contractor shall maintain records adequate to identify the first delivered unit for 3 years after final payment under this contract.

(2) The Contracting Officer shall calculate the Contractor's share of concurrent contract savings by-

(i) Subtracting from the reduction in price negotiated on the concurrent contract any Government costs or negative instant contract savings not yet offset; and

(ii) Multiplying the result by the Contractor's sharing rate.

(3) The Contracting Officer shall calculate the Contractor's share of future contract savings by-

- (i) Multiplying the future unit cost reduction by the number of future contract units scheduled for delivery during the sharing period;
- (ii) Subtracting any Government costs or negative instant contract savings not yet offset; and
- (iii) Multiplying the result by the Contractor's sharing rate.

(4) When the Government wishes and the Contractor agrees, the Contractor's share of future contract savings may be paid in a single lump sum rather than in a series of payments over time as future contracts are awarded. Under this alternate procedure, the future contract savings may be calculated when the VECP is accepted, on the basis of the Contracting Officer's forecast of the number of units that will be delivered during the sharing period. The Contractor's share shall be included in a modification to this contract (see paragraph (h)(3) of this clause) and shall not be subject to subsequent adjustment.

(5) *Alternate no-cost settlement method.* When, in accordance with section 48.104-4 of the Federal Acquisition Regulation (FAR), the Government and the Contractor mutually agree to use the no-cost settlement method, the following applies:

- (i) The Contractor will keep all the savings on the instant contract and on its concurrent contracts only.
- (ii) The Government will keep all the savings resulting from concurrent contracts placed on other sources, savings from all future contracts, and all collateral savings.
- (j) *Collateral savings.* If a VECP is accepted, the Contracting Officer will increase the instant contract amount, as specified in paragraph (h)(5) of this clause, by a rate from 20 to 100 percent, as determined by the Contracting Officer, of any projected collateral savings determined to be realized in a typical year of use after subtracting any Government costs not previously offset. However, the Contractor's share of collateral savings will not exceed the contract's firm-fixed-price, target price, target cost, or estimated cost, at the time the VECP is accepted, or \$100,000, whichever is greater. The Contracting Officer will be the sole determiner of the amount of collateral savings.

(k) *Relationship to other incentives.* Only those benefits of an accepted VECP not rewardable under performance, design-to-cost (production unit cost, operating and support costs, reliability and maintainability), or similar incentives shall be rewarded under this clause. However, the targets of such incentives affected by the VECP shall not be adjusted because of VECP acceptance. If this contract specifies targets but provides no incentive to surpass them, the value engineering sharing shall apply only to the amount of achievement better than target.

(l) *Subcontracts.* The Contractor shall include an appropriate value engineering clause in any subcontract-valued at or above the simplified acquisition threshold, as defined in FAR 2.101 on the date of subcontract award, and may include one in subcontracts of lesser value. In calculating any adjustment in this contract's price for instant contract savings (or negative instant contract savings), the Contractor's allowable development and implementation costs shall include any subcontractor's allowable development and implementation costs, and any value engineering incentive payments to a subcontractor, clearly resulting from a VECP accepted by the Government under this contract. The Contractor may choose any arrangement for subcontractor value engineering incentive payments, *provided*, that the payments shall not reduce the Government's share of concurrent or future contract savings or collateral savings.

(m) *Data.* The Contractor may restrict the Government's right to use any part of a VECP or the supporting data by marking the following legend on the affected parts:

"These data, furnished under the Value Engineering clause of contract _____, shall not be disclosed outside the Government or duplicated, used, or disclosed, in whole or in part, for any purpose other than to evaluate a value engineering change proposal submitted under the clause. This restriction does not limit the Government's right to use information contained in these data if it has been obtained or is otherwise available from the Contractor or from another source without limitations."

If a VECP is accepted, the Contractor hereby grants the Government unlimited rights in the VECP and supporting data, except that, with respect to data qualifying and submitted as limited rights technical data, the Government shall have the rights specified in the contract modification implementing the VECP and shall appropriately mark the data. (The terms "unlimited rights" and "limited rights" are defined in part 27 of the Federal Acquisition Regulation.)

(End of clause)

52.252-2 Clauses Incorporated by Reference.

(Feb 1998)

CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/> _____ [Insert one or more Internet addresses]

(End of clause)

52.252-6 Authorized Deviations in Clauses.

(Nov 2020)

AUTHORIZED DEVIATIONS IN CLAUSES (NOV 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any Department of Defense Federal Acquisition Regulation Supplement[insert regulation name] (48 CFR Chapter 2) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

DFARS Clauses Incorporated by Full Text

252.204-7000 Disclosure of Information.

(Oct 2016)

DISCLOSURE OF INFORMATION (OCT 2016)

(a) The Contractor shall not release to anyone outside the Contractor's organization any unclassified information, regardless of medium (e.g., film, tape, document), pertaining to any part of this contract or any program related to this contract, unless-

(1) The Contracting Officer has given prior written approval;

(2) The information is otherwise in the public domain before the date of release; or

(3) The information results from or arises during the performance of a project that involves no covered defense information (as defined in the clause at DFARS 252.204-7012) and has been scoped and negotiated by the contracting activity with the contractor and research performer and determined in writing by the contracting officer to be fundamental research (which by definition cannot involve any covered defense information), in accordance with National Security Decision Directive 189, National Policy on the Transfer of Scientific, Technical and Engineering Information, in effect on the date of contract award and the Under Secretary of Defense (Acquisition, Technology, and Logistics) memoranda on Fundamental Research, dated May 24, 2010, and on Contracted Fundamental Research, dated June 26, 2008 (available at DFARS PGI 204.4 (DFARS/PGI view)).

(b) Requests for approval under paragraph (a)(1) shall identify the specific information to be released, the medium to be used, and the purpose for the release. The Contractor shall submit its request to the Contracting Officer at least 10 business days before the proposed date for release.

(c) The Contractor agrees to include a similar requirement, including this paragraph (c), in each subcontract under this contract. Subcontractors shall submit requests for authorization to release through the prime contractor to the Contracting Officer.

(End of clause)

252.204-7021 Contractor Compliance with the Cybersecurity Maturity Model Certification Level Requirements.

(Nov 2025)

CONTRACTOR COMPLIANCE WITH THE CYBERSECURITY MATURITY MODEL CERTIFICATION LEVEL REQUIREMENTS (NOV 2025)

(a) *Definitions.* As used in this clause-

"Controlled unclassified information" means information the Government creates or possesses, or information an entity creates or possesses for or on behalf of the Government, that a law, regulation, or Governmentwide policy requires or permits an agency to handle using safeguarding or dissemination controls (32 CFR 2002.4(h)).

"Current" means-

(1) With regard to Conditional Cybersecurity Maturity Model Certification (CMMC) Status-

(i) Not older than 180 days for Conditional Level 2 (Self) assessments and Conditional Level 2 (certified third-party assessment organization (C3PAO)) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Conditional CMMC Status date (see 32 CFR 170.16 and 170.17); and

(B) A corresponding affirmation of continuous compliance by an affirming official (see 32 CFR 170.4); and

(ii) Not older than 180 days for Conditional Level 3 (Defense Industrial Base Cybersecurity Assessment Center (DIBCAC)) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Conditional CMMC Status date (see 32 CFR 170.18); and

(B) A corresponding affirmation of continuous compliance by an affirming official;

(2) With regard to Final CMMC Status-

(i) Not older than 1 year for Final Level 1 (Self), with-

and (A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.15);

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official;

(ii) Not older than 3 years for Final Level 2 (Self) assessments and Final Level 2 (C3PAO) assessments, with-

and (A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.16 and 170.17); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official; and

(iii) Not older than 3 years for Final Level 3 (DIBCAC) assessments, with-

and (A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.18);

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official; and

(3) With regard to affirmation of continuous compliance (32 CFR 170.22), not older than 1 year with no changes in compliance with the requirements at 32 CFR part 170.

"Cybersecurity Maturity Model Certification (CMMC) status" means the result of meeting or exceeding the minimum required score for the corresponding assessment. The potential statuses are as follows:

(1) Final Level 1 (Self).

(2) Conditional Level 2 (Self).

(3) Final Level 2 (Self).

(4) Conditional Level 2 (C3PAO).

(5) Final Level 2 (C3PAO).

(6) Conditional Level 3 (DIBCAC).

(7) Final Level 3 (DIBCAC).

"Cybersecurity Maturity Model Certification unique identifier (CMMC UID)" means 10 alpha-numeric characters assigned to each CMMC assessment and reflected in the Supplier Performance Risk System (SPRS) for each contractor information system.

"Federal contract information (FCI)" means information, not intended for public release, that is provided by or generated for the Government under a contract to develop or deliver a product or service to the Government. It does not include information provided by the Government to the public, such as on public websites, or simple transactional information, such as information necessary to process payments.

"Plan of action and milestones" means a document that identifies tasks to be accomplished. It details resources required to accomplish the elements of the plan, any milestones in meeting the tasks, and scheduled completion dates for the milestones, as defined in National Institute of Standards and Technology Special Publication 800-115 (32 CFR 170.21).

(b) *Framework.* The Cybersecurity Maturity Model Certification (CMMC) is a framework for assessing a contractor's compliance with applicable information security protections (see 32 CFR part 170).

(c) *Duplication.* The CMMC assessments will not duplicate efforts from any other comparable DoD assessment, except for rare circumstances when a reassessment may be necessary, for example, when there are indications of issues with cybersecurity and/or compliance with CMMC requirements.

(d) *Requirements.* The Contractor shall-

(1)(i) Have and maintain for the duration of the contract a current CMMC status at the following CMMC level, or higher: CMMC Level 2 (Self) for all information systems used in performance of the contract, task order, or delivery order that process, store, or transmit FCI or CUI; and

(ii) Consult 32 CFR 170.23 related to the flowdown of the CMMC requirements, and flow down the correct CMMC level to subcontracts and other contractual instruments;

(2) Only process, store, or transmit FCI or CUI on contractor information systems that have a CMMC status at the CMMC level required in paragraph (d)(1) of this clause, or higher;

(3) Complete on an annual basis, and maintain as current, an affirmation, by the affirming official (see 32 CFR 170.4), of continuous compliance with the requirements associated with the CMMC level required in paragraph (d)(1) of this clause in the Supplier Performance Risk System (SPRS) (<https://piee.eb.mil>) for each CMMC UID applicable to each of the contractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the contract;

(4) Ensure all subcontractors and suppliers complete prior to subcontract award, and maintain on an annual basis, an affirmation, by the affirming official (see 32 CFR 170.4), of continuous compliance with the requirements associated with the CMMC level required for the subcontract or other contractual instrument for each of the subcontractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the subcontract; and

(5) If the Contractor has a CMMC Status of Conditional, successfully close out a valid plan of action and milestones (32 CFR 170.21) to achieve a CMMC Status of Final.

(e) *Reporting.* The Contractor shall-

(1) Submit to the Contracting Officer-

(i) The CMMC UID(s) issued by SPRS for contractor information systems that will process, store, or transmit FCI or CUI during performance of the contract; and

(ii) Any changes in the CMMC UIDs generated in SPRS throughout the life of the contract, task order, or delivery order, if applicable;

(2) Enter into SPRS the results of a current self-assessment for each CMMC UID, not covered by a C3PAO assessment or DIBCAC assessment, applicable to each of the contractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the contract; and

(3) Complete in SPRS on an annual basis and maintain as current an affirmation of continuous compliance by the affirming official (see 32 CFR 170.4) for each self-assessment, C3PAO assessment, or DIBCAC assessment required under the contract in SPRS.

(f) *Subcontracts.* The Contractor shall-

(1) Insert the substance of this clause, including this paragraph (f) and excluding paragraph (e)(1), in subcontracts and other contractual instruments, including those for the acquisition of commercial products or commercial services, excluding commercially available off-the-shelf items, if the subcontract or other contractual instrument will contain a requirement to process, store, or transmit FCI or CUI; and

(2) Prior to awarding a subcontract or other contractual instrument, ensure that the subcontractor has a current CMMC certificate or current CMMC status at the CMMC level that is appropriate for the information that is being flowed down to the subcontractor based on the requirements at 32 CFR 170.23.

(End of clause)

252.211-7003 Item Unique Identification and Valuation.

(Jan 2023)

ITEM UNIQUE IDENTIFICATION AND VALUATION (JAN 2023)

(a) *Definitions.* As used in this clause-

"Automatic identification device" means a device, such as a reader or interrogator, used to retrieve data encoded on machine-readable media.

"Concatenated unique item identifier" means-

(1) For items that are serialized within the enterprise identifier, the linking together of the unique identifier data elements in order of the issuing agency code, enterprise identifier, and unique serial number within the enterprise identifier; or

(2) For items that are serialized within the original part, lot, or batch number, the linking together of the unique identifier data elements in order of the issuing agency code; enterprise identifier; original part, lot, or batch number; and serial number within the original part, lot, or batch number.

"Data matrix" means a two-dimensional matrix symbology, which is made up of square or, in some cases, round modules arranged within a perimeter finder pattern and uses the Error Checking and Correction 200 (ECC200) specification found within International Standards Organization (ISO)/International Electrotechnical Commission (IEC) 16022.

"Data qualifier" means a specified character (or string of characters) that immediately precedes a data field that defines the general category or intended use of the data that follows.

"DoD recognized unique identification equivalent" means a unique identification method that is in commercial use and has been recognized by DoD. All DoD recognized unique identification equivalents are listed at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html>.

"DoD item unique identification" means a system of marking items delivered to DoD with unique item identifiers that have machine-readable data elements to distinguish an item from all other like and unlike items. For items that are serialized within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier and a unique serial number. For items that are serialized within the part, lot, or batch number within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier; the original part, lot, or batch number; and the serial number.

"Enterprise" means the entity (e.g., a manufacturer or vendor) responsible for assigning unique item identifiers to items.

"Enterprise identifier" means a code that is uniquely assigned to an enterprise by an issuing agency.

"Government's unit acquisition cost" means-

(1) For fixed-price type line, subline, or exhibit line items, the unit price identified in the contract at the time of delivery;

(2) For cost-type or undefinitized line, subline, or exhibit line items, the Contractor's estimated fully burdened unit cost to the Government at the time of delivery; and

(3) For items produced under a time-and-materials contract, the Contractor's estimated fully burdened unit cost to the Government at the time of delivery.

"Issuing agency" means an organization responsible for assigning a globally unique identifier to an enterprise, as indicated in the Register of Issuing Agency Codes for ISO/IEC 15459, located at http://www.aimglobal.org/?Reg_Authority15459.

"Issuing agency code" means a code that designates the registration (or controlling) authority for the enterprise identifier.

"Item" means a single hardware article or a single unit formed by a grouping of subassemblies, components, or constituent parts.

"Lot or batch number" means an identifying number assigned by the enterprise to a designated group of items, usually referred to as either a lot or a batch, all of which were manufactured under identical conditions.

"Machine-readable" means an automatic identification technology media, such as bar codes, contact memory buttons, radio frequency identification, or optical memory cards.

"Original part number" means a combination of numbers or letters assigned by the enterprise at item creation to a class of items with the same form, fit, function, and interface.

"Parent item" means the item assembly, intermediate component, or subassembly that has an embedded item with a unique item identifier or DoD recognized unique identification equivalent.

"Serial number within the enterprise identifier" means a combination of numbers, letters, or symbols assigned by the enterprise to an item that provides for the differentiation of that item from any other like and unlike item and is never used again within the enterprise.

"Serial number within the part, lot, or batch number" means a combination of numbers or letters assigned by the enterprise to an item that provides for the differentiation of that item from any other like item within a part, lot, or batch number assignment.

"Serialization within the enterprise identifier" means each item produced is assigned a serial number that is unique among all the tangible items produced by the enterprise and is never used again. The enterprise is responsible for ensuring unique serialization within the enterprise identifier.

"Serialization within the part, lot, or batch number" means each item of a particular part, lot, or batch number is assigned a unique serial number within that part, lot, or batch number assignment. The enterprise is responsible for ensuring unique serialization within the part, lot, or batch number within the enterprise identifier.

"Type designation" means a combination of letters and numerals assigned by the Government to a major end item, assembly or subassembly, as appropriate, to provide a convenient means of differentiating between items having the same basic name and to indicate modifications and changes thereto.

"Unique item identifier" means a set of data elements marked on items that is globally unique and unambiguous. The term includes a concatenated unique item identifier or a DoD recognized unique identification equivalent.

"Unique item identifier type" means a designator to indicate which method of uniquely identifying a part has been used. The current list of accepted unique item identifier types is maintained at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html>.

(b) The Contractor shall deliver all items under a contract line, subline, or exhibit line item.

(c) *Unique item identifier.*

(1) The Contractor shall provide a unique item identifier for the following:

(i) Delivered items for which the Government's unit acquisition cost is \$5,000 or more, except for the following line items:

Contract Line, Subline, or

Exhibit Line Item Number	Item Description
=====	=====
=====	=====
=====	=====

(ii) Items for which the Government's unit acquisition cost is less than \$5,000 that are identified in the Schedule or the following table:

Contract Line, Subline, or

Exhibit Line Item Number	Item Description
=====	=====
=====	=====
=====	=====

(If items are identified in the Schedule, insert "See Schedule in this table.")

(iii) Subassemblies, components, and parts embedded within delivered items, items with warranty requirements, DoD serially managed reparables and DoD serially managed nonreparables as specified in Attachment Number ____.

(iv) Any item of special tooling or special test equipment as defined in FAR 2.101 that have been designated for preservation and storage for a Major Defense Acquisition Program as specified in Attachment Number ____.

(v) Any item not included in (i), (ii), (iii), or (iv) for which the contractor creates and marks a unique item identifier for traceability.

(2) The unique item identifier assignment and its component data element combination shall not be duplicated on any other item marked or registered in the DoD Item Unique Identification Registry by the contractor.

(3) The unique item identifier component data elements shall be marked on an item using two dimensional data matrix symbology that complies with ISO/IEC International Standard 16022, Information technology - International symbology specification - Data matrix; ECC200 data matrix specification.

(4) *Data syntax and semantics of unique item identifiers.* The Contractor shall ensure that-

(i) The data elements (except issuing agency code) of the unique item identifier are encoded within the data matrix symbol that is marked on the item using one of the following three types of data qualifiers, as determined by the Contractor:

(A) Application Identifiers (AIs) (Format Indicator 05 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology - EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(B) Data Identifiers (DIs) (Format Indicator 06 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology - EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(C) Text Element Identifiers (TEIs) (Format Indicator 12 of ISO/IEC International Standard 15434), in accordance with the Air Transport Association Common Support Data Dictionary; and

(ii) The encoded data elements of the unique item identifier conform to the transfer structure, syntax, and coding of messages and data formats specified for Format Indicators 05, 06, and 12 in ISO/IEC International Standard 15434, Information Technology - Transfer Syntax for High Capacity Automatic Data Capture Media.

(5) *Unique item identifier.*

(i) The Contractor shall-

(A) Determine whether to-

(1) Serialize within the enterprise identifier;

(2) Serialize within the part, lot, or batch number; or

(3) Use a DoD recognized unique identification equivalent (e.g. Vehicle Identification Number); and

(B) Place the data elements of the unique item identifier (enterprise identifier; serial number; DoD recognized unique identification equivalent; and for serialization within the part, lot, or batch number only: original part, lot, or batch number) on items requiring marking by paragraph (c)(1) of this clause, based on the criteria provided in MIL-STD-130, Identification Marking of U.S. Military Property, latest version;

(C) Label shipments, storage containers and packages that contain uniquely identified items in accordance with the requirements of MIL-STD-129, Military Marking for Shipment and Storage, latest version; and

(D) Verify that the marks on items and labels on shipments, storage containers, and packages are machine readable and conform to the applicable standards. The contractor shall use an automatic identification technology device for this verification that has been programmed to the requirements of Appendix A, MIL-STD-130, latest version.

(ii) The issuing agency code-

(A) Shall not be placed on the item; and

(B) Shall be derived from the data qualifier for the enterprise identifier.

(d) For each item that requires item unique identification under paragraph (c)(1)(i), (ii), or (iv) of this clause or when item unique identification is provided under paragraph (c)(1)(v), in addition to the information provided as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the Contractor shall report at the time of delivery, as part of the Material Inspection and Receiving Report, the following information:

- (1) Unique item identifier.
- (2) Unique item identifier type.
- (3) Issuing agency code (if concatenated unique item identifier is used).
- (4) Enterprise identifier (if concatenated unique item identifier is used).
- (5) Original part number (if there is serialization within the original part number).
- (6) Lot or batch number (if there is serialization within the lot or batch number).
- (7) Current part number (optional and only if not the same as the original part number).
- (8) Current part number effective date (optional and only if current part number is used).
- (9) Serial number (if concatenated unique item identifier is used).
- (10) Government's unit acquisition cost.
- (11) Unit of measure.
- (12) Type designation of the item as specified in the contract schedule, if any.
- (13) Whether the item is an item of Special Tooling or Special Test Equipment.
- (14) Whether the item is covered by a warranty.

(e) For embedded subassemblies, components, and parts that require DoD item unique identification under paragraph (c)(1)(iii) of this clause or when item unique identification is provided under paragraph (c)(1)(v), the Contractor shall report as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the following information:

- (1) Unique item identifier of the parent item under paragraph (c)(1) of this clause that contains the embedded subassembly, component, or part.
- (2) Unique item identifier of the embedded subassembly, component, or part.
- (3) Unique item identifier type.**
- (4) Issuing agency code (if concatenated unique item identifier is used).**
- (5) Enterprise identifier (if concatenated unique item identifier is used).**

- (6) Original part number (if there is serialization within the original part number).**
- (7) Lot or batch number (if there is serialization within the lot or batch number).**
- (8) Current part number (optional and only if not the same as the original part number).**
- (9) Current part number effective date (optional and only if current part number is used).**
- (10) Serial number (if concatenated unique item identifier is used).**
- (11) Description.

** Once per item.

(f) The Contractor shall submit the information required by paragraphs (d) and (e) of this clause as follows:

(1) End items shall be reported using the receiving report capability in Wide Area WorkFlow (WAWF) in accordance with the clause at 252.232-7003. If WAWF is not required by this contract, and the contractor is not using WAWF, follow the procedures at <http://dodprocurementtoolbox.com/site/uidregistry/>.

(2) Embedded items shall be reported by one of the following methods-

(i) Use of the embedded items capability in WAWF;

(ii) Direct data submission to the IUID Registry following the procedures and formats at <http://dodprocurementtoolbox.com/site/uidregistry/>; or

(iii) Via WAWF as a deliverable attachment for exhibit line item number (fill in) ____, Unique Item Identifier Report for Embedded Items, Contract Data Requirements List, DD Form 1423.

(g) *Subcontracts*. If the Contractor acquires by subcontract, any item(s) for which item unique identification is required in accordance with paragraph (c)(1) of this clause, the Contractor shall include this clause, including this paragraph (g), in the applicable subcontract(s), including subcontracts for commercial products or commercial services.

(End of clause)

252.235-7010 Acknowledgment of Support and Disclaimer.

(May 1995)

ACKNOWLEDGMENT OF SUPPORT AND DISCLAIMER (MAY 1995)

(a) The Contractor shall include an acknowledgment of the Government's support in the publication of any material based on or developed under this contract, stated in the following terms: This material is based upon work supported by the ____ (name of contracting agency(ies)) under Contract No. ____ (Contracting agency(ies) contract number(s)).

(b) All material, except scientific articles or papers published in scientific journals, must, in addition to any notices or disclaimers by the Contractor, also contain the following disclaimer: Any opinions, findings and conclusions or recommendations expressed in this material are those of the author(s) and do not necessarily reflect the views of the ____ (name of contracting agency(ies)).

(End of clause)

Section J - List of Attachments

Exhibits:

Id	Exhibit Name	Exhibit Description	Reference Identifier	Date	Line Item
A	CDRLs A001-A018	Contract Data Requirements List (CDRL)		12 Mar 2026	

Attachments:

Number	Attachment Name	Attachment Description	Reference Identifier	Date
01	Past Performance Matrix			12 Mar 2026
02	Past Performance Questionnaire			12 Mar 2026
03	QASP			12 Mar 2026

Section K - Representations, Certification, & Other Statements

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.240-90	Security Prohibitions and Exclusions Representations and Certifications. (Deviation)	Feb 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	Sep 2022		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	Oct 2016		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	May 2022		
252.225-7057	Preaward Disclosure of Employment of Individuals Who Work in the People's Republic of China.	Aug 2022		

FAR Clauses Incorporated by Full Text

52.209-7 Information Regarding Responsibility Matters. (Deviation) (Feb 2026)

INFORMATION REGARDING RESPONSIBILITY MATTERS (FEB 2026) (DEVIATION)

(a) *Definitions.* As used in this provision-

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (*e.g.*, Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means-

- (1) The total value of all current, active contracts and grants, including all priced options; and
- (2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (*e.g.*, general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror ☐ has ☐ does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

- (i) In a criminal proceeding, a conviction.
- (ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.
- (iii) In an administrative proceeding, a finding of fault and liability that results in-
 - (A) The payment of a monetary fine or penalty of \$5,000 or more; or
 - (B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of provision)

52.215-6 Place of Performance. (Deviation)

(Feb 2026)

PLACE OF PERFORMANCE (FEB 2026) (DEVIATION)

(a) The offeror or respondent, in the performance of any contract resulting from this request for proposals, ☐ intends, ☐ does not intend [*check applicable block*] to use one or more plants or facilities located at a different address from the address of the offeror or respondent as indicated in this proposal or response to request for information.

(b) If the offeror or respondent checks "intends" in paragraph (a) of this provision, it shall insert in the following spaces the required information:

Place of Performance (Street Address, City, State, County, ZIP Code)	Name and Address of Owner and Operator of the Plant or Facility if Other than Offeror or Respondent
=====	=====
=====	=====

(End of provision)

52.225-18 Place of Manufacture.

(Aug 2018)

PLACE OF MANUFACTURE (AUG 2018)

(a) *Definitions.* As used in this provision-

Manufactured end product means any end product in product and service codes (PSCs) 1000-9999, except-

- (1) FPSC 5510, Lumber and Related Basic Wood Materials;
- (2) Product or Service Group (PSG) 87, Agricultural Supplies;
- (3) PSG 88, Live Animals;
- (4) PSG 89, Subsistence;
- (5) PSC 9410, Crude Grades of Plant Materials;
- (6) PSC 9430, Miscellaneous Crude Animal Products, Inedible;
- (7) PSC 9440, Miscellaneous Crude Agricultural and Forestry Products;
- (8) PSC 9610, Ores;
- (9) PSC 9620, Minerals, Natural and Synthetic; and
- (10) PSC 9630, Additive Metal Materials.

Place of manufacture means the place where an end product is assembled out of components, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the place of manufacture.

(b) For statistical purposes only, the offeror shall indicate whether the place of manufacture of the end products it expects to provide in response to this solicitation is predominantly-

(1) ☐ In the United States (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or

(2) ☐ Outside the United States.

(End of provision)

DFARS Clauses Incorporated by Full Text

252.204-7007 Alternate A, Annual Representations and Certifications.

(Oct 2025) Alternate A (Oct 2025)

ALTERNATE A, ANNUAL REPRESENTATIONS AND CERTIFICATIONS (OCT 2025)

Substitute the following paragraphs (b), (d), and (e) for paragraphs (b) and (d) of the provision at FAR 52.204-8:

(b)(1) If the provision at 52.204-7, System for Award Management, is included in this solicitation, paragraph (e) of this provision applies.

(2) If the provision at 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (e) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

☐ (i) Paragraph (e) applies.

☐ (ii) Paragraph (e) does not apply and the Offeror has completed the individual representations and certifications in the solicitation.

(d)(1) The following representations or certifications in the SAM database are applicable to this solicitation as indicated:

(i) 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation. Applies to all solicitations.

(ii) 252.216-7008, Economic Price Adjustment-Wage Rates or Material Prices Controlled by a Foreign Government. Applies to solicitations for fixed-price supply and service contracts when the contract is to be performed wholly or in part in a foreign country, and a foreign government controls wage rates or material prices and may during contract performance impose a mandatory change in wages or prices of materials.

(iii) 252.225-7042, Authorization to Perform. Applies to all solicitations when performance will be wholly or in part in a foreign country.

(iv) 252.225-7049, Prohibition on Acquisition of Certain Foreign Commercial Satellite Services-Representations. Applies to solicitations for the acquisition of commercial satellite services.

(v) 252.225-7050, Disclosure of Ownership or Control by the Government of a Country that is a State Sponsor of Terrorism. Applies to all solicitations expected to result in contracts of \$200,000 or more.

(vi) 252.229-7012, Tax Exemptions (Italy)-Representation. Applies to solicitations and contracts when contract performance will be in Italy.

(vii) 252.229-7013, Tax Exemptions (Spain)-Representation. Applies to solicitations and contracts when contract performance will be in Spain.

(2) The following representations or certifications in SAM are applicable to this solicitation as indicated by the Contracting Officer:
[Contracting Officer check as appropriate.]

☐ (i) 252.209-7002, Disclosure of Ownership or Control by a Foreign Government.

☐ (ii) 252.225-7000, Buy American-Balance of Payments Program Certificate.

☐ (iii) 252.225-7020, Trade Agreements Certificate.

☐ Use with Alternate I.

☐ (iv) 252.225-7031, Secondary Arab Boycott of Israel.

☐ (v) 252.225-7035, Buy American-Free Trade Agreements-Balance of Payments Program Certificate.

☐ Use with Alternate I.

☐ Use with Alternate II.

☐ Use with Alternate III.

☐ Use with Alternate IV.

☐ Use with Alternate V.

☐ (vi) 252.226-7002, Representation for Demonstration Project for Contractors Employing Persons with Disabilities.

☐ (vii) 252.232-7015, Performance-Based Payments-Representation.

(e) The Offeror has completed the annual representations and certifications electronically via the SAM website at <https://www.sam.gov>. After reviewing the SAM database information, the Offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in FAR 52.204-8(c) and paragraph (d) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer, and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [*Offeror to insert changes, identifying change by provision number, title, date*]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR/DFARS Provision #	Title	Date	Change
_____	_____	_____	_____
_____	_____	_____	_____
_____	_____	_____	_____
_____	_____	_____	_____
_____	_____	_____	_____

Any changes provided by the Offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications located in the SAM database.

(End of provision)

252.204-7016 Covered Defense Telecommunications Equipment or Services-Representation.

(Dec 2019)

COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (DEC 2019)

(a) *Definitions.* As used in this provision, "covered defense telecommunications equipment or services" has the meaning provided in the clause 252.204-7018, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.

(b) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered defense telecommunications equipment or services".

(c) *Representation.* The Offeror represents that it ☐ does, ☐ does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(End of provision)

252.204-7017 Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation.

(May 2021)

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) *Definitions.* "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) *Prohibition.* Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) *Representation.* If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it ☐ will ☐ will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) *Disclosures.* If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

252.227-7017 Identification and Assertion of Use, Release, or Disclosure Restrictions.

(Jan 2025)

IDENTIFICATION AND ASSERTION OF USE, RELEASE, OR DISCLOSURE RESTRICTIONS (JAN 2025)

(a) *Definitions.* As used in this provision-

"Computer software" is defined in-

(1) The 252.227-7014, Rights in Other Than Commercial Computer Software and Other Than Commercial Computer Software Documentation, clause of this solicitation; or

(2) If this solicitation contemplates a contract under the Small Business Innovation Research Program or Small Business Technology Transfer Program, the 252.227-7018, Rights in Other Than Commercial Technical Data and Computer Software-Small Business Innovation Research Program and Small Business Technology Transfer Program, clause of this solicitation.

"SBIR/STTR data" is defined in the 252.227-7018, Rights in Other Than Commercial Technical Data and Computer Software-Small Business Innovation Research Program and Small Business Technology Transfer Program, clause of this solicitation.

"Technical data" is defined in-

(1) The 252.227-7013, Rights in Technical Data-Other Than Commercial Products and Commercial Services, clause of this solicitation; or

(2) If this solicitation contemplates a contract under the Small Business Innovation Research Program or Small Business Technology Transfer Program, the 252.227-7018, Rights in Other Than Commercial Technical Data and Computer Software-Small Business Innovation Research Program and Small Business Technology Transfer Program, clause of this solicitation.

(b) The identification and assertion requirements in this provision apply only to technical data, including computer software documentation, or computer software to be delivered with other than unlimited rights. For contracts to be awarded under the Small Business Innovation Research (SBIR) Program or Small Business Technology Transfer (STTR) Program, these requirements apply to SBIR/STTR data that will be generated under the resulting contract and will be delivered with SBIR/STTR data rights and to any other data that will be delivered with other than unlimited rights. Notification and identification are not required for restrictions based solely on copyright.

(c) Offers submitted in response to this solicitation shall identify, to the extent known at the time an offer is submitted to the Government, the technical data or computer software that the Offeror, its subcontractors or suppliers, or potential subcontractors or suppliers, assert should be furnished to the Government with restrictions on use, release, or disclosure.

(d) The Offeror's assertions, including the assertions of its subcontractors or suppliers or potential subcontractors or suppliers, shall be submitted as an attachment to its offer in the following format, dated and signed by an official authorized to contractually obligate the Offeror:

Identification and Assertion of Restrictions on the Government's Use, Release, or Disclosure of Technical Data or Computer Software.

The Offeror asserts for itself, or the persons identified below, that the Government's rights to use, release, or disclose the following technical data or computer software should be restricted:

Technical Data or Computer Software to be Furnished With Restrictions ¹	Basis for Assertion ²	Asserted Rights Category ³	Name of Person Asserting Restrictions ⁴
____(LIST) ⁵	____(LIST)	____(LIST)	____(LIST)

¹ For technical data (other than computer software documentation) pertaining to items, components, or processes developed at private expense, identify both the deliverable technical data and each such item, component, or process. For computer software or computer software documentation identify the software or documentation.

² Generally, development at private expense, either exclusively or partially, is the only basis for asserting restrictions. For technical data, other than computer software documentation, development refers to development of the item, component, or process to which the data pertain. The Government's rights in computer software documentation generally may not be restricted. For computer software, development refers to the software. Indicate whether development was accomplished exclusively or partially at private expense. If development was not accomplished at private expense, or for computer software documentation, enter the specific basis for asserting restrictions.

³ Enter asserted rights category (e.g., government purpose license rights from a prior contract, rights in SBIR/STTR data generated under a contract resulting from this solicitation or under another contract, limited, restricted, or government purpose rights under a contract resulting from this solicitation or under a prior contract, or specially negotiated licenses).

⁴ Corporation, individual, or other person, as appropriate.

⁵ Enter "none" when all data or software will be submitted without restrictions.

Date	_____
Printed Name and Title	_____

Signature	_____

(End of identification and assertion)

(e) An offeror's failure to submit, complete, or sign the notification and identification required by paragraph (d) of this provision with its offer may render the offer ineligible for award.

(f) If the Offeror is awarded a contract, the assertions identified in paragraph (d) of this provision shall be listed in an attachment to that contract. Upon request by the Contracting Officer, the Offeror shall provide sufficient information to enable the Contracting Officer to evaluate any listed assertion.

(End of provision)

Additional Regulation or Supplemental Clauses Incorporated by Full Text

K-227-W001 INSTRUCTIONS FOR OBTAINING EXPORT-CONTROLLED TECHNICAL DATA (May 2022)
(NAVSEA) (MAY 2022)

(a) An offeror may not receive export-controlled technical data, which is specified in this solicitation, unless the offeror is a qualified U.S. contractor as defined in paragraph (b). See paragraph (c) and (d) for instructions on becoming a qualified U.S. contractor. Questions about this program or DD Form 2345 should be addressed to U.S./Canada Joint Certification Office, Defense Logistics Information Services (DLIS), Federal Center, 74 Washington Avenue North, Battle Creek, MI 49017-3084; or telephone (877) 352-2255; or email jcp-admin@dla.mil.

(b) By Department of Defense (DOD) Directive 5230.25 (hereinafter referred to as "the Directive"), a program was established to allow Qualified U.S. Contractors to obtain export-controlled technical data under certain conditions. A "Qualified U.S. Contractor" is a private individual or enterprise (hereinafter described as a "U.S. Contractor") that, in accordance with procedures established by the Under Secretary of Defense for Research and Engineering, # certifies # does not certify, as a condition of obtaining export-controlled technical data subject to the Directive from the Department of Defense, that:

(1) The individual who will act as recipient of the export-controlled technical data on behalf of the U.S. Contractor is a U.S. citizen or a person admitted lawfully into the United States for permanent residence and is located in the United States;

(2) Such data is needed to bid or perform on a contract with the Department of Defense, or other U.S. Government agency, or for other legitimate business purposes in which the U.S. Contractor is engaged, or plans to engage. The purpose for which the data is needed shall be described sufficiently in such certification to permit an evaluation of whether subsequent requests for data are related properly to such business purpose.

(3) The U.S. Contractor acknowledges its responsibilities under U.S. export control laws and regulations (including the obligation, under certain circumstances, to obtain an export license prior to the release of technical data within the United States) and agrees that it will not disseminate any export-controlled technical data subject to the Directive in a manner that would violate applicable export control laws and regulations.

(4) The U.S. Contractor also agrees that, unless dissemination is permitted by the Directive, it will not provide access to export-controlled technical data subject to the Directive to persons other than its employees or persons acting on its behalf, without the permission of the DOD component that provided the technical data.

(5) To the best of its knowledge and belief, the U.S. Contractor knows of no person employed by it, or acting on its behalf, who will have access to such data, who is debarred, suspended or otherwise ineligible to perform under U.S. Government contracts; or has violated U.S. export control laws or a certification previously made to the Department of Defense under the provisions of the Directive.

(c) Private individuals or enterprises are certified as Qualified U.S. Contractors by submitting a DD Form 2345 to U.S./Canada Joint Certification Office, Defense Logistics Information Services, Federal Center, 74 Washington Avenue, North, Battle Creek, MI 49017-3084.

(d) Canadian contractors may be qualified in accordance with the Directive for technical data that do not require a license for export to Canada under section 125.12 of the International Traffic in Arms Regulations and sections 379.4(d) and 379.5(e) of the Export Administration Regulations, by submitting an equivalent certification to the DLIC.

(End of Provision)

Section L - Instructions, Conditions, & Notices to Offerors or Quoters

Section L

NOTES TO OFFERORS

1. The Crane Division, Naval Surface Warfare Center, Crane, IN intends to award an Indefinite-Delivery Indefinite-Quantity (IDIQ) Multiple Award Contract(s) (MACs) to provide supplies and services as described in Section 3.0 of the Statement of Work. The resultant contract(s) will also contain provisions for Orders to be awarded on a firm-fixed-price basis. The MACs shall have an ordering period from date of contract awards through sixty (60) months after date of award with an option of additional sixty (60) months for a total of one hundred and twenty (120) months.

2. The procurement for the planned MACs will be executed under Full and Open Competition After Exclusion of Sources: Set Asides for Small Business Concerns provisions through the use of competitive proposals as required by FAR 6.102-2. After planned MAC award, all subsequent Orders will be competed among qualified contractors who have been awarded the prototype Technology Area (or Areas) applicable to each requirement in accordance with FAR 16.507, unless one of the exceptions to Fair Opportunity at FAR 16.507-6(b) applies.

3. ONLY US COMPANIES ARE ELIGIBLE FOR AWARD. United States companies are the only eligible companies for award on this MAC IDIQ. This is due to the on-going requirement for base access in the execution of tasks.

4. Only one contract will be awarded per successful Offeror inclusive of all divisions, subsidiaries, and affiliates under common control.

5. Offerors may propose one or more of the Technology Areas identified within the Statement of Work. Awarded contracts will cite the Technology Area (or Areas) for which the Offeror is eligible. Offerors who do not propose on a particular Technology Area in response to this solicitation or who are not awarded a particular Technology Area as a result of this solicitation will not be able to propose on any orders in that particular Technology Area.

6. The cumulative total of all Orders issued under the IDIQ MAC among all MAC awardees will not exceed the total contract amount of \$25M.

7. The Government's best estimate of costs is set forth below. The Government does not guarantee either the amount for each CLIN or the total estimated amount:

ORDERING PERIOD (years 1 - 5)

CLIN	Type	Description	Amount **
0001	FFP	Technology Area 1	\$8,750,000
0002	FFP	Technology Area 2	\$7,500,000
0003	FFP	Technology Area 3	\$6,250,000
0004	FFP	Technology Area 4	\$2,500,000
0005	Not Separately Priced (NSP)	Data	\$0.00
0006	FFP minimum guarantee	Guaranteed payment if MAC holder is not awarded any Orders during the life of the contract.	\$1,000 per MAC awardee (not per Technology Area), included in total contract amount
TOTAL			\$25,000,000

**Estimated, for informational purposes only

8. Industry Submission of Questions. Offerors shall submit questions by 30 April 2026 - 2:00 PM Eastern Time. Questions received after the designated time may not allow sufficient time for the Government to respond. All questions concerning this procurement, either technical or contractual, shall be submitted via email to ashley.n.bechtel2.civ@us.navy.mil. All inquiries shall reference the applicable solicitation and/or specification page and paragraph number.

No direct discussions between the technical representatives and prospective Offerors are permitted.

9. Guaranteed Contract Amount: The Government guarantees each MAC holder \$1,000 throughout the ordering period. The minimum obligation will be paid to an awardee at the end of the ordering period in the event that no order was awarded to them after a competition within any of the Technology Areas and their contract was not terminated. The first order awarded to any MAC holder based on an order-level competition will fulfil the Government's guarantee of the minimum obligation, and \$1,000 will not be paid out separately.

INSTRUCTIONS TO OFFERORS

1.0 INSTRUCTIONS FOR SUBMISSION OF PROPOSALS

Offerors may elect to submit a proposal on one or more of the Technology Areas in the Statement of Work (SOW).

ALL INQUIRIES shall be directed to Ashley Bechtel, Contract Specialist, at: ashley.n.bechtel2.civ@us.navy.mil. If unavailable, inquiries shall be directed to the alternate Point of Contact, Jodee Cool: jodee.l.cool.civ@us.navy.mil.

1.1 Submission Requirements

(a) Each Offeror shall submit its entire proposal electronically. The Government will evaluate each Offeror's understanding of the Government's requirements and ability to perform the work on the basis of its proposal. Offerors shall provide information and documentation in detail to clearly demonstrate their overall qualifications.

(b) Proposals shall be submitted electronically via email to Ashley Bechtel (ashley.n.bechtel2.civ@us.navy.mil). Offerors shall comply with the detailed instructions for format and content of proposals. Proposals that do not comply may be considered unacceptable and may render the Offeror ineligible for award. Generally, Government file size restrictions are limited to 10MB per email. Offerors may submit an email to request a drop off through DoD SAFE if the file size is exceeded. However, page count limitations identified in 1.2(d) below shall be strictly adhered to across multiple attachments associated with the same section.

1.2 Proposal Format

(a) The proposal shall be submitted entirely in the English language. The narrative material in the proposal shall be prepared in no smaller than 10-point font, Times New Roman font style, single-spaced with no less than a one-inch margin on all sides on standard 8-1/2 x 11-inch paper. In the event photo reduction is used for tables, charts, and drawings, their presentation must be clear and legible. Text within tables, diagrams, pictorial charts, or graphic material shall be no smaller than 10-point font. Fold out pages may be used for diagrams, charts or graphic material only and may not exceed 11 inches by 17 inches. Fold out pages will be counted as two (2) pages. Fold out pages may only include narrative sufficient to describe the diagram, chart or graphic material. Every section, figure, and table shall be numbered. Pages in excess of the page count limitation will be removed prior to the evaluation. No hyperlinks are allowed.

(b) Proposals and all attachments shall be readable by Microsoft Office or Adobe Acrobat.

(c) Offerors are required to submit their proposals in separate volumes as shown below. Offerors may propose one or more of the Technology Areas identified in the Statement of Work. For each Technology Area proposed, each Volume shall be organized as outlined in the table below and shall adhere to the page limit identified for each section.

Volume	Section	Section Title	Page Limit
Cover Letter		Cover Letter	No Limit

I		Factor 1 Technical Proposal	
	1.0	Technical Capability - Powertrain Performance Prototyping	4
	1.1	Hypothetical Task - Powertrain Performance Prototyping	2
	2.0	Technical Capability - Advanced Chassis and Body Prototyping	4
	2.1	Hypothetical Task - Advanced Chassis and Body Prototyping	2
	3.0	Technical Capability - Mobility Testing Services	4
	3.1	Hypothetical Task - Mobility Testing Services	2
	4.0	Technical Capability - General Prototyping	4
	4.1	Hypothetical Task - General Prototyping	2
II		Factor 2 Management Approach	4
	1.0	SOW Project Management	
	2.0	Facilities, Equipment, and Processes	
	3.0	Technical Experts *Resumes not included in page limit	
III		Factor 3 Past Performance	
	1.0	Past Performance - Powertrain Performance Prototyping	2 per Reference
	2.0	Past Performance - Advanced Chassis and Body Prototyping	2 per Reference
	3.0	Past Performance - Mobility Testing Services	2 per Reference
	4.0	Past Performance - General Prototyping	2 per Reference
	5.0	Past Performance Matrix	No Limit
IV		Factor 4 Contract Documentation	No Limit

	1.0	Completed, SF 33 signed and all Amendments, including RFP sections which require Offeror completion	
	1.1	Organizational Conflict of Interest Mitigation	

Important: Offerors shall not include classified material in the volumes.

d) Offerors shall provide a cover letter with the following information:

(1) Solicitation number;

(2) The name, address, email address, telephone numbers, Commercial and Government Entity (CAGE) Code, for the offeror and CAGE code for the place of performance, Unique Entity ID, Cybersecurity Maturity Model Certification (CMMC) Unique Identifier(s) and Tax Identification Number;

(3) A statement specifying unconditional acceptance of all terms and conditions of the solicitation and all amendments. Any exceptions taken to any requirements of the solicitation, to include but not limited to technical exceptions, clauses and/or provisions, shall be specified. The cover letter shall indicate in which volume and on what page of the offeror's proposal the exception is addressed;

(4) A statement that the proposal is valid through 30 September 2026;

(5) Names, titles, telephone numbers, and e-mail addresses of person(s) authorized to negotiate on the Offeror's behalf in connection with this solicitation;

(6) DCMA office points of contact, including branch location, contact name, telephone number, and email address, if known;

(7) Name, title, and signature of a person authorized to sign the proposal;

(8) Identify all enclosures being transmitted as part of its proposal; and,

(9) The Technology Area(s) the Offeror is proposing on.

- (10) A statement identifying the Offeror's ability and plan to follow Government procedures to obtain visitor access on Government facilities when required.

2.0 TECHNICAL EVALUATION FACTORS

Offerors shall address each factor in the format and sequence identified in the solicitation. Offerors must provide information in sufficient detail to allow the Government to make an assessment of the Offeror's capability.

Proposals that do not contain the information required in the solicitation risk being determined unacceptable. No assumptions will be made by evaluators regarding areas that are not addressed in the Offeror's written proposal.

There are four (4) Technology Areas identified in the SOW:

1. Powertrain Performance Prototyping
2. Advanced Chassis, Body and Mobility Handling Prototyping
3. Mobility Testing Services
4. General Prototype Fabrication and Integration

Offerors may propose one or more of the Technology Areas. Offerors must address Factors 1 and 3 for each Technology Area being proposed.

Factor 1 - Technical Proposal

Factor 2 - Management Approach

Factor 3 - Past Performance

2.1 Factor 1 - Technical Proposal

For each Technology Area being proposed, the Offeror shall provide a detailed response describing their technical capability to support each proposed Technology Area. Descriptions of technical capabilities shall include abilities and evidence of knowledge and application for each Technology Area proposed. The Offeror shall provide a detailed response for completion of a corresponding hypothetical task in each Technology Area proposed that demonstrates the Offeror understands the tasking and the issues involved in completing tasking associated with each Technology Area. Each response shall also include a list of all assumptions, including derived or assumed generic performance specifications, for each hypothetical task response.

2.1.1 Technical Capabilities

The Offeror shall describe the inherent technical capabilities to perform work in each Technology Area proposed to include technical knowledge, expertise, equipment, facilities, certifications, access to (or ownership of) test facilities, chambers, courses/test tracks, and/or software programs. The Offeror shall include capabilities related to Technology Area descriptions in the SOW paragraph 1.2.

2.1.1.1 Technical Capabilities addressing Powertrain Performance Prototyping

Powertrain Performance Prototyping capabilities shall focus on developing improvements directly related to a vehicle's powertrain & drivetrain performance including, but not limited to, the engine, transmission, axles, electrical motors, and on-board electrical and power systems. The proposal shall demonstrate the ability to improve the mobility capabilities of a vehicular system by improving existing Original Equipment Manufacturer components or by developing new components or complete systems.

2.1.1.2 Technical Capabilities addressing Advanced Chassis, Body, and Mobility Handling Prototyping

Advanced Chassis Body and Mobility Handling Prototyping capabilities shall focus on the areas of chassis, frame, sub frame, suspension and steering, body panels, survivability, and overall payload improvements. Suspension, steering mobility improvements shall focus on designing new prototypes and modifying existing vehicle suspension systems to improve the steering & handling and payload capacities of the mobility platform. The proposal shall demonstrate the ability to improve current vehicle suspensions to include leaf spring, coil spring, four link suspensions, air ride, and all areas of a vehicle suspension and mobility for varying terrain including on road and off-road profiles as prescribed in each vehicle's Mission Terrain Profile.

2.1.1.3 Technical Capabilities addressing Mobility Testing Services

Mobility Testing Services shall focus on the system level testing of complete vehicles, vehicle payload and equipment of both existing equipment and new developmental prototypes. The proposal shall demonstrate the ability to take delivery of Government Furnished Material (GFM)/Government Furnished Equipment (GFE) and system performance specifications to develop and execute test plans and strategies, including but not limited to, complete system level testing, environmental testing, vehicle and component durability, tie-down load pull testing, armor survivability testing, and overall vehicle mobility testing. Testing to Test Operation Procedures, Federal Motor Vehicle Safety Standards and Society of Automotive Engineers as well as other US and NATO testing standards may be required.

2.1.1.4 Technical Capabilities addressing General Prototype Fabrication and Integration

General Prototype Fabrication and Integration capabilities shall focus on developing physical components and assemblies from fabricated, Commercial off-the-Shelf (COTS), modified COTS, and GFM/GFE components as well as integrating these items into a deliverable vehicle or assembly prototype. The proposal shall demonstrate the ability to utilize and leverage already developed designs in the form of existing components and assemblies, conceptual models, Technical Data Packages, and engineering sketches to develop physical prototypes to refine manufacturability and design finalization for verification of fit, form, and function. Proposals for this Technology Area shall demonstrate the following abilities: machining, fabrication, and automotive electrical assembly from engineering conceptual designs and drawings.

2.1.2 Hypothetical Task

For each proposed Technology Area, the Offeror shall describe completing a hypothetical task with a description of implementing subject matter experts and technical resources along a hypothetical schedule showing understanding of setting objectives to meet requirements and implementation of technical processes to provide a product and/or data. The Offeror may describe historical work and processes completed in a Technology Area or an anticipated or concept project relevant to the descriptions included in each Technology Area description of the SOW. The hypothetical task may include descriptions of completing multiple project subjects of each Technology Area.

2.1.2.1 Hypothetical Task Powertrain Performance Prototyping

The Offeror shall describe a concept to complete a prototype project in the Powertrain Performance Prototyping Technology Area (SOW 1.2.1). The concept shall include development of a prototype from a set of objectives and integration onto a mobility platform for design verification and requirement validation. The proposal shall describe any assumptions or derivation of requirements, and how the concept meets those requirements. The proposal shall describe how modeling and simulation were/would be used throughout the design and integration process and how safety was/would be integrated into the design and testing process. The proposal shall include descriptions of the steps required for engineering design (SOW 3.1.1), design analysis (SOW 3.1.2), prototype fabrication and integration (SOW 3.1.3), interface and performance tests (SOW 3.2.1), quality assurance (SOW 3.1.6.2), and transition to LRIP (SOW 3.1.6) as applied to the hypothetical task.

2.1.2.2 Hypothetical Task Advanced Chassis, Body, and Mobility Handling Prototyping

The Offeror shall describe a concept to complete a prototype project in the Advanced Chassis, Body, and Mobility Handling Prototyping Technology Area (SOW 1.2.2). The concept shall include development of a prototype from a set of objectives and integration onto a mobility platform for design verification and requirement validation. The proposal shall describe any assumptions or derivation of requirements, and how the concept meets those requirements. The proposal shall describe how modeling and simulation was/will be used throughout the design and integration process. The proposal shall describe how safety will be integrated into the design and testing process. The proposal shall include descriptions of the steps required for engineering design (SOW 3.1.1), design analysis (SOW 3.1.2), prototype fabrication and integration (SOW 3.1.3), interface and performance tests (SOW 3.2.1), quality assurance (SOW 3.1.6.2), and transition to LRIP (SOW 3.1.6) as applied to the hypothetical task.

2.1.2.3 Hypothetical Task Mobility Testing Services

The Offeror shall describe a concept to complete a project in Mobility Testing Services Technology Area (SOW 1.2.3). The concept shall include receipt of a vehicle as GFP, integrating auxiliary equipment, determining a test plan, and executing the test plan per a Government standard or specification referenced in the SOW. The proposal shall describe any assumptions or derivation of requirements, and how the concept meets those requirements. The proposal shall describe any testing parameters that were/would be used throughout the testing and documentation process and how safety was/would be integrated into the testing process and how tests validate requirements. The proposal shall include descriptions of the steps required for prototype fabrication and integration (SOW 3.1.3), interface and performance tests (SOW 3.2.1), configuration control (SOW 3.1.6.3), and configuration audits (3.1.6.4) as applied to the hypothetical task.

2.1.2.4 Hypothetical Task General Prototype Fabrication and Integration

The Offeror shall describe a concept to complete a prototype project in the General Prototype Fabrication and Integration Technology Area (SOW 1.2.4). The concept shall include development of a prototype from a set of objectives and conceptual design requirements for a mobility platform. The concept design shall be further developed into a detailed design and integration onto a mobility platform for design verification and requirement validation. The proposal shall describe any assumptions or derivation of requirements, and how the developed design prototype meets project requirements. The proposal shall describe how modeling and simulation were/would be used throughout the design and integration process and how safety will be integrated into the design and testing process. The proposal shall include descriptions of the steps required for a detailed engineering design (SOW 3.1.1) design analysis (SOW 3.1.2), development of a Technical Data Package (SOW 3.1.4), prototype fabrication and integration (SOW 3.1.3), interface and performance tests (SOW 3.2.1), quality assurance (SOW 3.1.6.2), and transition to LRIP (SOW 3.1.6) as applied to the hypothetical task.

2.2 Factor 2 - Management Approach

Only one (1) submittal is required regardless of how many Technology Areas are being proposed.

2.2.1 SOW Project Management

The Offeror shall provide a description of their management approach demonstrating the Offeror's ability to manage the tasks in the Statement of Work addressing each of the following:

- Performance
- Schedule
- Affordability and Total Ownership Cost (including procedures, methods and controls to be used to establish baselines and reduction targets)

- Quality
- Reliability and maintainability
- Safety
- Human systems engineering and integration

The Offeror shall include in this description an approach for monitoring progress of the design, including design documentation, design reviews, and technical performance. The Offeror shall identify any areas of the management approach applicable to a specific Technology Area to which it is proposing.

2.2.2 Facilities, Equipment, and Processes

Offerors shall provide a description of the proposed management approach for facility(s) and equipment (to include engineering labs, fabrication shops, test facilities, and ranges, etc.) to be used in completion of the work under each Technology Area proposed. Offerors are not required to address facilities used for any administrative or clerical work performed under the contract. Offers shall provide a description of management, design and integration processes to be used in completion of the work under each Technology Area proposed. Process control shall be included in the proposal with a description of how processes are managed to ensure completion of a quality technical product.

The Offeror shall explain the management of subcontractors to ensure their products are delivered on time and are of sufficient quality to enable the Offeror to meet all contractual requirements. The Offeror shall explain its approach toward subcontracting. This explanation shall include contractual arrangements, qualification requirements, selection process(es), including a process that verifies that subcontractors' products meet the Offeror's flow down requirements, contingency plans, quality assurance, interfaces, and management interactions.

2.2.3 Technical Experts

The Offeror shall identify the technical expert(s) designated to complete task and delivery orders, application of engineering design, fabrication, and integration. The proposal shall include a short resume for the technical expert(s) (minimum of one, maximum of 3) that outlines the following: employee name, number of years of professional experience, current position/title/employer, educational history, chronology of professional experience, and work on Government contracts. The proposal shall address the technical expert's authority, ability to independently commit company resources to performance under the contract, and the technical expert's line of communication to senior company management.

2.3 Factor 3 - Past Performance

(a) The Past Performance portion of this proposal shall be submitted as part of Volume III and shall be no more than 2 pages per Reference per Technology Area being proposed for the narrative, not including the Past Performance Matrix (Solicitation Attachment 01) and the Past Performance Questionnaire (Solicitation Attachment 02).

(b) Past performance proposal shall include:

i. Descriptions for a minimum of three (3), maximum of five (5) recent past performance references, per Technology Area being proposed, to which are relevant to the effort required by this solicitation. For the purposes of this solicitation, recent contracts are defined as those on which performance occurred during the last three (3) calendar years from the issue date of this solicitation. Relevant contracts are defined as either prime contracts or major subcontracts for work associated with the proposed technology areas. Commercial and state/local contracts may be included, if necessary.

ii. The description shall include the following information in the following format:

1. Identify in specific detail for each contract listed, why or how you consider that effort relevant or similar to the effort required by this solicitation.
2. Your (and/or your subcontractor's) CAGE and DUNS number.
3. Government or Commercial contracting activity (customer), address, telephone number, and email address.
4. Procuring Contracting Officer's name, telephone number and email address.
5. Government or Commercial contracting activity technical representative or Contracting Officer's Representative; and telephone numbers.
6. Contract Number
7. Contract Award date
8. Contract Type
9. Awarded Price/Cost
10. Final, or projected final, Price/Cost
11. Original delivery schedule
12. Final or projected final, delivery schedule
13. A narrative explanation on each previous contract listed describing the objectives achieved and any cost growth or schedule delays encountered and any revised delivery schedules as well as the reason(s) the delivery schedule was revised.

iii. The Offeror shall also provide the above required information for any and all contracts under which it has been terminated in whole or in part, for default or cause during the past ten (10) years, to include those currently in the process of such termination as well as those which are not similar to the proposed effort.

iv. Note: Offerors are reminded that both independent data and data provided by Offerors in their proposals may be used to assess Offeror past performance. Since the Government may not necessarily interview all of the sources provided by the Offerors, it is incumbent upon the Offeror to explain the relevance of the data provided. The Government does not assume the duty to search for data to cure problems it finds in proposals. The burden of providing thorough and complete past performance source data remains with the Offerors. Proposals that do not contain the information requested by this paragraph risk rejection or high-performance risk assessment by the Government.

v. For the purposes of this solicitation, recent contracts are defined as those on which performance occurred during the last three calendar years from issue date of this solicitation. In determining relevancy, the Offeror should consider the size, content, and complexity type and value of the contract, and the type of requirement compared to this solicited requirement. The Offeror should also consider the level or amount of effort. Only past performance associated with the Technology Area being proposed will be considered relevant. If an Offeror has no current or relevant past performance information for itself, its predecessor companies, or its major or critical subcontractors, the Offeror should so state that in this volume and explain.

vi. Each Offeror shall submit present and past performance information for itself on projects of similar size, scope and technical complexity. The Offerors may choose to submit present and past performance information for major or critical proposed subcontractors, team members, or joint venture partners that have experience in projects of similar size, scope, and technical complexity of each Technology Area being proposed. The total number of past performance references for each Offeror, per Technology Area, shall not exceed 5 (including any references submitted by subcontractors, team members and/or joint ventures). This volume shall provide a list of current and relevant contracts on which the Offeror has performed in the format required in the Proposal Requirements portion of this document. This information, as well as other information the Government may obtain elsewhere via Government databases (CPARs, etc.) and other Government agencies (DCMA, etc.), will be used to evaluate the Offeror's Past Performance. The Government reserves the right to solicit feedback beyond what is identified in the questionnaire. **NO CLASSIFIED PAST PERFORMANCE SUPPLEMENTS WILL BE ACCEPTED.** The Offeror may submit performance on classified programs as long as that information can be verified. If the Offeror intends to submit in the manner the information that is classified (customer, contract number, etc.) should be marked "reserved" and the description/write up of the work performed shall remain unclassified. If the Offeror cannot describe what work was accomplished in an unclassified manner the Offeror cannot submit that program for Past Performance evaluation. Offerors are notified that the Government will evaluate the data provided in this volume and data obtained from other sources that is determined to be current and relevant to the effort at hand in the development of its performance risk assessments.

(c) Past Performance Matrix (PPM)- Offeror shall provide a Past Performance Matrix (Solicitation Attachment 01) for each of the Past Performance Questionnaire (PPQ) sent out listing the following:

i. Organization/Customer

- ii. Brief Description
- iii. Contract Number
- iv. Telephone Number & email of Organization/Customer Point of Contact (POC)
- v. Date PPQ sent to POC and transmission method utilized

(d) Past Performance Questionnaire (PPQ) - The Offeror shall contact past performance references directly and request they complete the PPQ (Solicitation Attachment 02) and submit directly to the agency, to Ashley Bechtel, ashley.n.bechtel2.civ@us.navy.mil.

Under no circumstance shall the questionnaires be returned to the Offerors. Any information provided by the Offeror's references is subject to verification and validation by the Government during the evaluation process. The Government may make contact and follow up with the listed references identified on the PPM. The Offeror may provide information on problems encountered on the identified contracts as well as the Offeror's corrective actions.

2.4 Factor 4 - Contract Documentation

The Offeror shall submit the following information with its proposal:

- (a) Signed Solicitation package to include all signed Amendments, all representations and certifications executed and fill-ins completed. No page limit exists for the signed Solicitation with Amendments.
- (b) Organizational Conflict of Interest Mitigation Plan: In accordance with Section C, Section I, and the Organizational Conflict of Interest provision L-209-H009, the Offeror shall identify any and all conflicts of interest or potential conflicts of interest related to this solicitation and provide a mitigation plan to address the conflicts and/or potential conflicts. If a conflict of interest does not exist, the Offeror shall provide a statement indicated as such in the Cover Letter.

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation.	Jan 2017		
52.204-7	System for Award Management-Registration. (Deviation)	Feb 2026		
52.207-6	Solicitation of Offers from Small Business Concerns and Small Business Teaming Arrangements or Joint Ventures (Multiple-Award Contracts).	Aug 2024		
52.214-34	Submission of Offers in the English Language.	Apr 1991		
52.214-35	Submission of Offers in U.S. Currency.	Apr 1991		
52.215-1	Instructions to Offerors-Competitive Acquisition. (Deviation)	Feb 2026		
52.216-27	Single or Multiple Awards.	Oct 1995		

52.233-2 Service of Protest. (Deviation)

Feb 2026

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	Mar 2023		
252.215-7010	Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data.	May 2024		
252.215-7013	Supplies and Services Provided by Nontraditional Defense Contractors.	Jan 2023		
252.215-7016	Notification to Offerors-Postaward Debriefings.	Oct 2025		
252.225-7003	Report of Intended Performance Outside the United States	Oct 2025		

FAR Clauses Incorporated by Full Text

52.211-14 Notice of Priority Rating for National Defense, Emergency Preparedness, and Energy Program Use. (Apr 2008)

NOTICE OF PRIORITY RATING FOR NATIONAL DEFENSE, EMERGENCY PREPAREDNESS, AND ENERGY PROGRAM USE (APR 2008)

Any contract awarded as a result of this solicitation will be ☐ DX rated order; ☐ DO rated order certified for national defense, emergency preparedness, and energy program use under the Defense Priorities and Allocations System (DPAS) (15 CFR700), and the Contractor will be required to follow all of the requirements of this regulation. [Contracting Officer check appropriate box.]

(End of provision)

52.216-1 Type of Contract. (Deviation) (Feb 2026)

TYPE OF CONTRACT (FEB 2026) (DEVIATION)

The Government contemplates award of a Firm-Fixed Priced[Contracting Officer insert specific type of contract] contract resulting from this solicitation.

(End of provision)

52.219-4 Notice of Price Evaluation Preference for HUBZone Small Business Concerns. (Feb 2026)

NOTICE OF PRICE EVALUATION PREFERENCE FOR HUBZONE SMALL BUSINESS CONCERNS (FEB 2026) (DEVIATION)

(a) Evaluation preference.

(1) Offers will be evaluated by adding a factor of 10 percent to the price of all offers, except-

(i) Offers from HUBZone small business concerns that have not waived the evaluation preference; and

(ii) Otherwise successful offers from small business concerns.

(b) *Waiver of evaluation preference.* A HUBZone small business concern may choose to waive the evaluation preference. If the concern waives the preference, the factor will be added to its offer for evaluation purposes.

☐ Offeror chooses to waive the evaluation preference.

(c) *Joint venture.* A HUBZone joint venture agrees that, in the performance of the contract, at least 40 percent of the aggregate work performed by the joint venture shall be completed by the HUBZone small business parties to the joint venture. Work performed by the HUBZone small business parties to the joint venture must be more than administrative functions.

(End of provision)

52.252-1 Solicitation Provisions Incorporated by Reference. (Feb 1998)

SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that

must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/>_____ [Insert one or more Internet addresses]

(End of provision)

52.252-5 Authorized Deviations in Provisions.

(Nov 2020)

AUTHORIZED DEVIATIONS IN PROVISIONS (NOV 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any Department of Defense Federal Acquisition Regulation Supplement[insert regulation name](48 CFR Chapter 2) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

DFARS Clauses Incorporated by Full Text

252.204-7025 Notice of Cybersecurity Maturity Model Certification Level Requirements.

(Nov 2025)

NOTICE OF CYBERSECURITY MATURITY MODEL CERTIFICATION LEVEL REQUIREMENTS (NOV 2025)

(a) *Definitions.* As used in this provision, "controlled unclassified information (CUI)," "current," "Cybersecurity Maturity Model Certification (CMMC) status," "Cybersecurity Maturity Model Certification unique identifier (CMMC UID)," "Federal contract information (FCI)," and "plan of action and milestones" have the meaning given in the Defense Federal Acquisition Regulation Supplement 252.204-7021, Contractor Compliance With the Cybersecurity Maturity Model Certification Level Requirements, clause of this solicitation.

(b)(1) *Cybersecurity Maturity Model Certification (CMMC) level.* The CMMC level required by this solicitation is: CMMC Level 2 (Self). This CMMC level, or higher (see 32 CFR part 170), is required prior to award for each contractor information system that will process, store, or transmit Federal contract information (FCI) or controlled unclassified information (CUI) during performance of the contract.

(2) The Offeror will not be eligible for award of a contract, task order, or delivery order resulting from this solicitation if the Offeror does not have, for each of the contractor information systems that will process, store, or transmit FCI or CUI and that will be used in performance of a contract resulting from this solicitation-

(i) The current CMMC status entered in the Supplier Performance Risk System (SPRS) (<https://piee.eb.mil>) at the CMMC level required by paragraph (b)(1) of this provision; and

(ii) A current affirmation of continuous compliance with the security requirements identified at 32 CFR part 170 in SPRS.

(c) *Plan of action and milestones.* If the Offeror has a CMMC Status of Conditional, the Offeror shall successfully close out a valid plan of action and milestones (32 CFR 170.21) to achieve a CMMC Status of Final.

(d) *CMMC unique identifiers.* The Offeror shall provide, in the proposal, the CMMC unique identifier(s) (CMMC UIDs) issued by SPRS for each contractor information system that will process, store, or transmit FCI or CUI during performance of a contract, task order, or delivery order resulting from this solicitation. The Offeror also shall update the list when new CMMC UIDs are generated in SPRS. The CMMC UIDs are provided in SPRS after the Offeror enters the results of self-assessment(s) for each such information system.

(End of provision)

252.215-7012 Requirements for Submission of Proposals via Electronic Media.

(Jan 2018)

REQUIREMENTS FOR SUBMISSION OF PROPOSALS VIA ELECTRONIC MEDIA (JAN 2018)

The Offeror shall submit the cost portion of the proposal via the following electronic media: email

(End of provision)

252.215-7992 Only One Offer. (DEVIATION 2026-O0048)

(Mar 2026) Deviation 2026-O0048 (Mar 2026)

TABLE						
	National	Commercial		Source of Supply		Actual
Line	Stock	Product or	Company	Address	Part No.	Mfg?
<u>Items</u>	<u>Number</u>	<u>Commercial</u> <u>Service</u> <u>(Y or N)</u>				
(1)	(2)	(3)	(4)	(4)	(5)	(6)
=====	=====	=====	=====	=====	=====	=====
(1) List each deliverable item of supply and item of technical data.						
(2) If there is no national stock number, list "none".						
(3) Use "Y" if the item is a commercial product or commercial service; otherwise use "N." If "Y" is listed, the Offeror need not complete the remaining columns in the table.						
(4) For items of supply, list all sources. For technical data, list the source.						
(5) For items of supply, list each source's part number for the item.						

(6) Use "Y" if the source of supply is the actual manufacturer; "N" if it is not; and "U" if unknown.

(End of provision)

Additional Regulation or Supplemental Clauses Incorporated by Full Text

L-204-H003 NOTIFICATION OF USE OF NAVY SUPPORT CONTRACTORS FOR OFFICIAL CONTRACT FILES (NAVSEA) (APR 2019) (Apr 2019)

(a) NAVSEA may use a contractor to manage official contract files here in after referred to as "the support contractor", including the official file supporting this procurement. These official files may contain information that is considered a trade secret, proprietary, business sensitive or otherwise protected pursuant to law or regulation, here in after referred to as "protected information". File management services consist of any of the following: secretarial or clerical support; data entry; document reproduction, scanning, imaging, or destruction; operation, management, or maintenance of paper-based or electronic mail rooms, file rooms, or libraries; and supervision in connection with functions listed herein.

(b) The cognizant Contracting Officer will ensure that any NAVSEA contract under which these file management services are acquired will contain a requirement that

- (1) The support contractor not disclose any information;
- (2) Individual employees are to be instructed by the support contractor regarding the sensitivity of the official contract files;
- (3) The support contractor performing these services be barred from providing any other supplies and/or services, or competing to do so, to NAVSEA for the period of performance of its contract and for an additional three years thereafter unless otherwise provided by law or regulation; and,
- (4) In addition to any other rights the offeror may have, it is a third party beneficiary who has the right of direct action against the support contractor, or any person to whom the support contractor has released or disclosed Protected Information, for the unauthorized duplication, release, or disclosure of such Protected Information.

(c) Submission of a proposal will be considered as consent to NAVSEA's permitting access to any information, irrespective of restrictive markings or the nature of the information submitted, by its file management support contractor for the limited purpose of executing its file support contract responsibilities.

(d) NAVSEA may, without further notice, enter into contracts with other contractors for these services. Offerors are free to enter into separate non-disclosure agreements with the file support contractor. Contact the Procuring Contracting Officer for contractor specifics. However, any such agreement will not be considered a prerequisite before information submitted is stored in the files or otherwise encumber the government.

(End of Provision)

L-209-H009 NOTIFICATION OF POTENTIAL ORGANIZATIONAL OR PERSONAL CONFLICT (S) OF INTEREST (NAVSEA) (APR 2022) (Apr 2022)

(a) Offerors are reminded that certain existing contractual arrangements may preclude, restrict or limit participation, in whole or in part, either as a subcontractor or as a prime contractor under this competitive procurement. Of primary concern are those contractual arrangements in which the Offeror provides support to _____, or related laboratories (if applicable), in support of operation of the office or any of its programs. General guidance may be found in FAR 9.505; however, this guidance is not all-inclusive. The Offeror's attention is directed to the "Organizational Conflict of Interest" (OCI) or similar requirement which may be contained in current or completed contract(s) which prohibits the prime or subcontractor from providing certain supplies or services to the Government as described above during the period of the current "support" contract(s) or for a period after completion of the "support" contract(s). Notwithstanding the existence or non-existence of an OCI or similar requirement in current or completed contract(s), the Offeror shall comply with FAR subpart 9.5 and identify whether an OCI exists and not rely solely on the presence of an OCI or similar requirement.

(b) Offerors also are reminded that certain potential conflicts of interest may arise where an Offeror has unequal access to nonpublic information about a competitor that may provide the Offeror with an unfair competitive advantage and preclude, restrict or limit participation, in whole or in part, either of the individual, subcontractor or prime contractor under this

competitive procurement. For example, a potential conflict may arise if former Department of Navy employee(s), subcontractors, or teaming partners of the Offeror may have gained access to nonpublic information about a competitor through participation in previous or ongoing performance or during the solicitation development/source selection process associated with this competitive procurement, and then participates in the formation of the Offeror's proposal. Other potential conflicts of interest may arise where either the former Department of Navy employee(s), subcontractors, or teaming partners of the Offeror under this competitive procurement set the ground rules for competition; for example, by drafting specifications or assisting in the drafting of the statement of work. General guidance may be found in FAR 3.101 and 9.505; however, this guidance is not all-inclusive.

(c) If an Offeror identifies a potential conflict of interest that exists at any tier, that Offeror is requested to notify the Contracting Officer within 14 days of the date of this solicitation. The Offeror shall provide: (1) the contract or previous source selection's solicitation number and name and phone number of the Contracting Officer for the contract which gives rise to a potential conflict of interest; (2) a copy of the requirement; (3) the statement of work and technical instruction from the existing contract, as applicable; (4) a brief description of the type of work to be performed by each subcontractor under the competitive procurement; (5) a brief description of the individual's, subcontractor's, or teaming partner's unequal access to nonpublic information about a competitor, which may lead to a conflict of interest in the formation of the Offeror's proposal, or establishment of ground rules for this competitive procurement, as applicable; (6) an OCI mitigation plan, as applicable; and (7) any additional information the Contracting Officer should consider in making a determination of whether a conflict of interest exists. The Government may independently verify the information received from the Offeror. The requirement to identify potential conflicts of interest as outlined herein continues until contract award. Notwithstanding the above, the Government reserves the right to determine whether a conflict of interest exists based on any information received from any source.

(d) The Government will notify an Offeror of any conflict of interest within 14 days of receipt of all required information. Those Offerors deemed to have a conflict of interest may be ineligible for award. Failure to provide the information in a timely manner does not waive the Government's rights to make a conflict of interest determination. The Offeror is notified that if it expends time and money on proposal preparation, such expenditure is at its own risk regardless of whether the Government determines a personal or organizational conflict of interest does or does not exist.

(e) Any potential prime contractor which proposes an individual, subcontractor, or teaming partner later determined to have a conflict of interest and deemed ineligible to participate in the current competition, may not be granted the opportunity to revise its proposal to remove the ineligible individual, subcontractor or teaming partner. The Government reserves the right to determine which Offerors remain in the competitive range through the normal source selection process.

(f) If the Offeror determines that a potential organizational and/or personal conflict of interest does not exist at any tier, the Offeror shall include a statement to that effect in its response to this solicitation.

(End of Provision)

L-215-H007 SUBMISSION OF QUESTIONS BY OFFERORS—ALTERNATE I (NAVSEA) (NOV 2021) (Nov 2021)

(a) Offerors may submit questions or request clarification of any aspect of this solicitation. It is the Offeror's responsibility to bring to the attention of the Contracting Officer at the earliest possible time, but prior to the closing date, any ambiguities, discrepancies, inconsistencies, or conflicts between the SOW or PWS (as applicable) and other solicitation documents attached hereto or incorporated by reference. Each question should identify solicitation number, document, page number, paragraph number or other identifier relating to the question. Questions without this information may not be answered. Acknowledgment of questions received will not be made.

(b) The deadline for receipt of questions is 30 April 2026. Although every effort will be made, the Government makes no guarantee that questions received after the date above will be answered.

(c) All questions shall be submitted via email to the point of contact listed for this solicitation. Responses will be posted to the SAM web page at <https://www.SAM.gov>.

(End of Provision)

L-215-H004 INSTRUCTIONS FOR PRICING OF CONTRACT DATA REQUIREMENTS LIST (NAVSEA) (OCT 2018) (Oct 2018)

(a) The Offeror shall complete the "Price Group" (Block 17) and "Estimated Total Price" (Block 18) of each data item on the Contract Data Requirements List (CDRL) of this solicitation using the following instructions:

(1) Block 17. Use the specified price group defined below in developing estimated prices for each data item on the DD Form 1423:

(a) Group I. Definition - Data which is not otherwise essential to the offeror's performance of the primary contracted effort (production, development, testing, and administration) but which is required by DD Form 1423.

(i) Estimated Price - Costs to be included under Group I are those applicable to preparing and assembling the data item in conformance with Government requirements, and the administration and other expenses related to reproducing and delivering such data items to the Government.

(b) Group II. Definition - Data which is essential to the performance of the primary contracted effort but the offeror is required to perform additional work to conform to Government requirements with regard to depth of content, format, frequency of submittal, preparation, control, or quality of the data item.

(i) Estimated Price - Costs to be included under Group II are those incurred over and above the cost of the essential data item without conforming to Government requirements, and the administration and other expenses related to reproducing and delivering such data items to the Government.

(c) Group III. Definition - Data which the offeror must develop for his internal use in performance of the primary contracted effort and does not require any substantial change to conform to Government requirements with regard to depth of content, format, frequency of submittal, preparation, control, or quality of the data item.

(i) Estimated Price - Costs to be included under Group III are the administrative and other expenses related to reproducing and delivering such data items to the Government.

(d) Group IV. Definition - Data which is developed by the contractor as part of his normal operating procedures and his effort in supplying these data to the Government is minimal.

(i) Estimated Price - Group IV items should normally be shown on the DD Form 1423 at no cost.

(2) Block 18. For each data item, enter an amount equal to that portion of the total price which is estimated to be attributable to the production or development for the Government of that item of data. The estimated data prices shall be developed only from those costs which will be incurred as a direct result of the requirement to supply the data, over and above those costs which would otherwise be incurred in performance of the contract if no data were required. The entry "N/C" for "no charge" will be acceptable. The estimated price shall not include any amount for rights in data. The Government's rights to use the data shall be governed by the pertinent provisions of the contract.

(End of Provision)

L-245-H001 AVAILABILITY OF GOVERNMENT PROPERTY (NAVSEA) (JUL 2024)

(Jul 2024)

Government property is offered for use under this solicitation. The contractor is responsible for all costs related to making the property available for use, including (but not limited to) payment of all transportation, installation, and rehabilitation costs.

(End of Text)

L-245-H002 INSTRUCTIONS REGARDING GOVERNMENT PROPERTY (NAVSEA) (JUL 2024)

(Jul 2024)

All offerors shall submit the following information in their proposal:

(1) A list or description of all Government property that the offeror or its subcontractors propose to use on a rent-free basis. The list shall identify the accountable contract under which the property is held and the authorization for its use (from the contracting officer having cognizance of the property);

(2) The dates during which the property will be available for use (including the first, last, and all intervening months) and, for any property that will be used concurrently in performing two or more contracts, the amounts of the respective uses in sufficient detail to support prorating the rent;

(3) The amount of rent that would otherwise be charged in accordance with FAR 52.245-9, Use and Charges;
and

(4) A description of the offeror's property management system, plan, and any customary commercial practices, voluntary consensus standards, or industry-leading practices and standards to be used by the offeror in managing Government property.

(End of Provision)

Section M - Evaluation Factors for Award

Section M - Evaluation Factors for Award

EVALUATION FACTORS

1.0 BASIS FOR AWARD

1.1 General Information

(a) The Government intends to make multiple awards as a result of this RFP. The Government intends to award contracts to approximately 10-12 companies per Technology Area. Awards shall be made to Offeror (s) who are deemed responsible in accordance with FAR 9.104; whose proposal conforms to the solicitation requirements; and is determined to provide value to the Government in accordance with the factors listed in this solicitation. Offers that do not conform to the requirements stated herein may be determined unacceptable and may be rejected without further evaluation.

(b) The Government intends to award without negotiations (except for clarifications as described in FAR 15.202(2), as permitted by FAR 15.203 and FAR 52.215-1. Therefore, the Offeror's initial proposal should contain the Offeror's best terms and conditions from a technical standpoint. However, the Government reserves the right to conduct negotiations to permit Offerors to revise their proposals.

1.2 Factors

The Government will evaluate the following factors that will be considered for award.

FACTORS	
1	Technical Capabilities
2	Management Approach
3	Past Performance
4	Contract Documentation

2.0 PROPOSAL EVALUATION

The Government will evaluate offers and assign: one of the adjectival ratings indicated in paragraph 3.1 of this provision for each Technology Area in Factor 1; one adjectival rating as indicated in paragraph 3.1 for the proposal in its entirety (not Technology Area specific) in Factor 2; and one of the adjectival ratings indicated in paragraph 3.2 of this provision for each Technology Area in Factor 3. The Offeror's proposal shall be in the format prescribed by, and shall contain a response to, each of the areas identified in Section L.

The evaluation factors for the award decision are listed below:

Factor 1 (Technical) is equal to Factor 2 (Management Approach), and when combined they are significantly more important than Factor 3 (Past Performance).

2.1 Factor 1 - Technical Proposal

The Government will evaluate the responses for Technical Capability and Hypothetical Task for each proposed Technology Area to assess the Offeror's understanding of the Technology Area (SOW 1.2), technical capabilities (SOW 3.0), issue(s), requirement(s), skill(s), knowledge, facilities and personnel required. The Government shall assign separate individual ratings to each Technical Capability response and Hypothetical Task response for each technology area proposed.

2.2 Factor 2 - Management Approach

The Government will evaluate the Offeror's ability to manage the tasks in the Statement of Work. The Government will evaluate how the Offeror proposes to optimize and manage the following:

- Performance
- Schedule
- Affordability and Total Ownership Cost (including procedures, methods and controls to be used to establish baselines and reduction targets)
- Quality
- Reliability and maintainability
- Safety
- Human systems engineering and integration

The Government will evaluate the Offeror's ability to manage the progress of the design and the quality assurance measures to ensure successful implementation of the requirements.

The Government will evaluate the proposed Technical Experts' qualifications to manage tasks, including their authority, ability to independently commit company resources to performance under this contract and their line of communication to senior company management. The Government will also evaluate the proposed Technical Experts' previous experience managing and executing on similar efforts.

The Government will evaluate how the Offeror plans to manage its subcontractors to ensure products are delivered on time, within budget, and are of sufficient quality to enable the Offeror to meet all contractual requirements.

2.3 Factor 3 - Past Performance

The Government will evaluate the responses for Past Performance for each proposed Technology Area to assess the degree of confidence the Government has in an Offeror's ability to supply products and services that meet users' needs, based on a demonstrated record of performance. The Government may consider past performance information contained in the Contractor Performance Assessment Reporting System (CPARS). The Government may also contact all or some of each Offeror's customers to obtain past performance information. The Government reserves the right to limit or expand the number of references it decides to contact and contact references other than those provided by the Offeror. In the case of an Offeror without a record of relevant past performance or for whom information on past performance is not available, the Offeror will not be evaluated unacceptable on past performance.

2.4 Factor 4 - Contract Documentation

The Government will evaluate the submitted contract documentation on a pass/fail basis to verify compliance with all requirements. If the Offeror has failed to meet any of the pass/fail requirements, the proposal is ineligible for award and will be eliminated from further consideration. The Government may waive minor oversights and irregularities in the submitted contract documentation provided that they are considered immaterial in its judgment. The Government reserves the right to not evaluate other proposal volumes I-III (Factors 1-3) if Offeror has failed to meet the requirements under Volume IV.

3.0 STANDARDS FOR EVALUATION

The Government will perform an evaluation of the technical evaluation factors and subfactors based on the Offeror's proposal.

3.1 Factors 1 & 2: Technical & Management Evaluation

The purpose of the Technical and Management factors are to assess whether the Offeror's proposal will satisfy the Government's minimum requirements. The Technical evaluation will be stringent due to the complexity and nature of this work. Offerors shall provide exceptional evidence in their proposals to give confidence in Technical and Management abilities to receive an Acceptable rating. The evaluation will also consider the successful application of Government and Industry standards and best practices and innovative approaches that add value to the project/program and benefit the Government.

The Government will evaluate the Offeror's proposal for Factors 1 & 2 against these requirements to determine whether the proposal is acceptable or unacceptable, using the ratings and descriptions outlined in the table below:

Adjectival Rating	Description
Acceptable	Proposal meets the requirements of the solicitation.
Unacceptable	Proposal does not meet the requirements of the solicitation.

3.2 Factor 3: Past Performance Evaluation

The past performance evaluation is an assessment of the Offeror's probability of meeting the solicitation requirements. This assessment is based on the Offeror's record of relevant and recent past performance information that pertains to the products and/or services outlined in the solicitation requirements.

In addition to the sources identified by the Offeror, the Government may review CPARS ratings, other Government databases, and other existing past performance ratings on relevant contracts. In addition, information obtained from other sources, such as past and present customers, cognizant contract administration offices, other Government agencies (including state and local Governments), consumer protection organization, Better Business Bureaus and other who may have useful information.

The Contracting Officer is not responsible for locating or securing any information not furnished with the offer. The Government may, however, utilize all available information, including information not provided by the Offeror, in the past performance evaluation. The Government reserves the right to limit the number of references it decided to contact, to contact references other than those provided by the Offeror, to review than all information submitted, and to only analyze sufficient information to make a reasonable determination of each Offerors past performance rating.

Offerors will be given an opportunity to address unfavorable reports of past performance to which they have not previously had an opportunity to respond in accordance with FAR 15.306(a)(2). In particular, relevant contracts will be examined to ensure that corrective measures have been put in place to prevent the

reoccurrence of past performance problems. Prompt actions taken to correct performance problems will be a reflection of management concern for customer satisfaction however, such action may not mitigate all negative performance trends.

The Government will initially evaluate the Offeror's past performance recency, and relevancy, using the table below:

Recency: The first is to evaluate the recency of the Offerors past performance. Recency is generally expressed as a time period during which past performance references are considered relevant and is critical to establishing the relevancy of past performance information. For the purposes of this solicitation, recent contracts are defined as those which performance has been conducted 3 years prior to the issue date of the solicitation.

Relevance: The second is to determine how relevant a recent effort accomplished by the Offeror is to the effort to be acquired through the source selection.

Past Performance Relevancy Ratings

Adjectival Rating	Description
Very Relevant	Present/past performance effort involved essentially the same scope and magnitude of effort and complexities this solicitation requires.
Relevant	Present/past performance effort involved similar scope and magnitude of effort and complexities this solicitation requires.
Somewhat Relevant	Present/past performance effort involved some of the scope and magnitude of effort and complexities this solicitation requires.
Not Relevant	Present/past performance effort involved little or none of the scope and magnitude of effort and complexities this solicitation requires.

Based on this evaluation, the Government will determine whether the Offeror's relevant past performance record provides for Substantial Confidence, Satisfactory Confidence, Neutral Confidence, Limited Confidence or No Confidence, using the descriptions in the table below:

Past Performance Confidence Assessments Rating

Adjectival Rating	Description
Substantial Confidence	Based on the offeror's recent/relevant performance record, the Government has a high expectation that the offeror will successfully perform the required effort.
Satisfactory Confidence	Based on the offeror's recent/relevant performance record, the Government has a reasonable expectation that the offeror will successfully perform the required effort.
Neutral Confidence	No recent/relevant performance record is available or the offeror's performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned. The offeror may not be evaluated favorably or unfavorably on the factor of past performance.
Limited Confidence	Based on the offeror's recent/relevant performance record, the Government has a low expectation that the offeror will successfully perform the required effort.
No Confidence	Based on the offeror's recent/relevant performance record, the Government has no expectation that the offeror will successfully perform the required effort.

NOTE: In the case of an offeror without a record of relevant past performance or for whom information on past performance is not available may not be evaluated favorably or unfavorably on past performance (see FAR15. 202(c)(1)). Therefore, the offeror shall be determined to have unknown (or "neutral") past performance.

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.217-4	Evaluation of Options Exercised at Time of Contract Award. (Deviation)	Feb 2026		
52.217-5	Evaluation of Options. (Deviation)	Feb 2026		

Additional Regulation or Supplemental Clauses Incorporated by Full Text

M-215-H002 MULTIPLE AWARDS (NAVSEA) (OCT 2018)

(Oct 2018)

It is the intent of the Government to award more than one contract as a result of this solicitation. The Government reserves the right to make one or more awards based upon the number of acceptable proposals received and the availability of funding.

(End of Provision)

M-247-H001 F.O.B. EVALUATION CRITERIA (NAVSEA) (DEC 2018)

(Dec 2018)

OFFERS SUBMITTED ON AN F.O.B. BASIS OTHER THAN THAT SPECIFIED IN SECTION F SHALL BE REJECTED AS UNACCEPTABLE.

(End of Provision)